

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

07/21/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**DECLARATION OF
TYLER J. O'CONNELL IN SUPPORT
OF DEFENDANT'S MOTION TO
DECLARE PLAINTIFF A
VEXATIOUS LITIGANT AND TO
REQUIRE SECURITY**

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 I, Tyler J. O'Connell, declare:

2 1. I am an attorney licensed to practice law before all courts in the State of California,
3 and I am an associate at the law firm of Porter Scott, counsel of record for Defendant CSAA
4 INSURANCE EXCHANGE ("Defendant"). Except for those matters stated on information and
5 belief, the facts set forth herein are true of my own personal knowledge and if called as a witness, I
6 could and would properly testify hereto.

7 2. The declaration is submitted in support of Defendant's motion to declare Plaintiff
8 FRANCISCUS DYLAN ROSARIO a vexatious litigant pursuant to Code of Civil Procedure section
9 391(b)(2)-(3) and to require Plaintiff to furnish security pursuant to Code of Civil Procedure section
10 391.3.

11 3. Plaintiff is self-represented in this action. A true and correct Copy of Plaintiff's
12 Amended Complaint, showing his signature block as a party *in propria persona*, is attached hereto
13 as **Exhibit A**.

14 4. Plaintiff has filed an Amended Complaint against the insurance carrier for Defendant
15 from Plaintiff's underlying personal injury jury trial, filed in 2021. Plaintiff's underlying case was
16 entitled: *Rosario v. Abdelhalim, San Francisco County Superior Court Case No. CGC-21-594102*.
17 Plaintiff lost that 2021 case, wherein he also represented himself *in propria persona*, by defense
18 verdict, on liability.

19 5. Plaintiff has filed a Notice of Appeal in the underlying case, *Case No. CGC-21-*
20 *594102*. (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**).

21 6. While that appeal remained pending, Plaintiff filed another lawsuit entitled *Rosario*
22 *v. Abdelhalim, San Francisco County Superior Court Case No. CGC-25-631801*, wherein he named
23 the original defendant from his 2021 case, as well as that defendant's insurance carrier and all
24 defense attorneys who litigated the case against Plaintiff, culminating in a defense verdict.

25 7. While that appeal remained pending, Plaintiff also concurrently filed this lawsuit
26 against CSAA, *Case No. CGC-25-631802*.

27 8. These new 2025 actions by Plaintiff target Defendants solely for their conduct in
28 litigation.

1 9. On May 12, 2026, this Court granted Defendants CSAA, Carbone, and Chambers’
2 jointly filed Anti-SLAPP motion in *Case No. CGC-25-631801*. Defendants’ motion for attorneys’
3 fees remains pending.

4 10. On July 1, 2026, this Court granted Defendant CSAA’s Anti-SLAPP motion in this
5 case. Defendant CSAA’s motion for attorneys’ fees remains pending.

6 11. Since filing these new lawsuits in 2025, Plaintiff, *in propia persona*, has engaged in
7 the following unmeritorious, unnecessary, frivolous, and harassing litigation activities:

8 a. In *Case No. CGC-25-631801*, since only February 2026:

9 i. Plaintiff has sent Defense counsel no fewer than one-hundred and twenty-one
10 (121) email correspondences making threats, serving frivolous filings, and/or threatening to
11 report Defense counsel (and Defense counsel’s non-attorney staff members) to the California
12 State Bar without justification;

13 ii. Plaintiff has appeared in Court several times without requesting oral
14 argument;

15 iii. Plaintiff has served several rounds of burdensome, harassing, and
16 unnecessary discovery, which was precluded as a matter of law while Defendants’ Anti-
17 SLAPP motion remained pending;

18 iv. Plaintiff has filed frivolous discovery motions, while Defendants’ Anti-
19 SLAPP motion remained pending;

20 v. Plaintiff has repeatedly attempted to seek leave to amend his pleadings, while
21 Defendants’ Anti-SLAPP motion remained pending;

22 vi. Plaintiff has filed and served innumerable purported “Opposition” papers to
23 Defendants’ Anti-SLAPP motion, far in excess of the single Opposition allowed by the
24 Code;

25 vii. Plaintiff has made several insulting and disparaging remarks about Defense
26 counsels, in email correspondences;

27 viii. Plaintiff has continued to insult and disparage Defendants Ms. Priya
28 Navaratnasingham and Mr. Alberto Reyna; by capitalizing the letters “RAT” in Ms.

1 Navaratnasingham’s last name, by spelling it as “*NavaRATnasingham*,” and by referring to
2 Mr. Alberto Reyna, instead, as “*Ms. Reyna*”—despite being instructed by both Defense
3 counsel and this Court to cease in that disparaging behavior;

4 ix. Plaintiff has engaged in extensive, burdensome, and harassing barrages of
5 emails and court filings that are prepared with artificial intelligence large language models.
6 In so doing, Plaintiff has created, by design, a veritable deluge of paper, burdening Defense
7 counsel and the Court;

8 x. Plaintiff has filed approximately 70 documents on the Court’s docket,
9 including so-called, “motions,” “bench briefs,” “supplemental briefs,” “other papers,” and
10 various Declarations and exhibits—clogging Defense counsel’s file and this Court’s docket
11 with such A.I.-drafted, frivolous filings.

12 b. In this case: Case No. CGC-25-631802, also since only February 2026, Plaintiff has
13 engaged in much of the same behavior, such as:

14 i. Plaintiff has sent Defense counsel no fewer than one-hundred and thirty (130)
15 email correspondences making threats, serving frivolous filings, and/or threatening to report
16 Defense counsel (and Defense counsel’s non-attorney staff members) to the California State
17 Bar without justification;

18 ii. Plaintiff has appeared in Court several times without requesting oral
19 argument;

20 iii. Plaintiff has served several rounds of burdensome, harassing, and
21 unnecessary discovery, which was precluded as a matter of law while Defendants’ Anti-
22 SLAPP motion remained pending;

23 iv. Plaintiff has filed frivolous discovery motions, while Defendant’s Anti
24 SLAPP motion remained pending;

25 v. Plaintiff has repeatedly attempted to seek leave to amend his pleadings, while
26 Defendant’s Anti-SLAPP motion remained pending;

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vi. Plaintiff has filed and served innumerable purported “Opposition” papers to Defendant’s Anti-SLAPP motion, far in excess of the single Opposition allowed by the Code;

vii. Plaintiff has made several insulting and disparaging remarks about Defense counsels, in email correspondences;

viii. Plaintiff has engaged in extensive, burdensome, and harassing barrages of emails and court filings that are prepared with artificial intelligence large language models. In so doing, Plaintiff has created a veritable deluge of paper, burdening Defense counsel and the Court;

ix. Plaintiff has filed approximately 200 documents on the Court's docket, including so-called, “motions,” “bench briefs,” “supplemental briefs,” “other papers,” and various Declarations and exhibits—clogging Defense counsel’s file and this Court’s docket with such A.I.-drafted, frivolous filings; and

x. Since Defendant's Anti-SLAPP motion was granted; Plaintiff has now stated an intention of circumventing this Court's Anti-SLAPP Rulings, by suing CSAA, again, but now in Contra Costa County, so as to evade this Court's rulings and judicial personnel, whom Plaintiff describes in less than favorable terms, in email correspondences.

12. Attached hereto as **Exhibit 1** are merely a few illustrative examples of Plaintiff's abusive and harassing email correspondences, sent to Defense counsel.

13. Attached hereto as **Exhibit 2** are Plaintiff's discovery requests, for which Plaintiff filed motions "to compel, deem admitted, and for sanctions," despite Defendant's pending Anti-SLAPP motion, which was ultimately granted.

I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration was executed on July 21, 2026, at Sacramento, California.

Tyler J. O'Connell

Tyler J. O'Connell

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EXHIBIT 1

From: Dylan Rosario
To: [Serena Blithe](#); [Tyler O'Connell](#); [Maria Reyes](#); [Veronica Jackson](#); [Priya Navaratnasingham](#); [Alberto Reyna](#)
Subject: Re: Case No. CGC-25-631801 -- Bench Brief for May 12, 2026 Hearing (9:30 a.m., Dept. 301)
Date: Tuesday, May 12, 2026 12:59:25 PM
Attachments: [PLAINTIFF-REQUEST-FOR-JUDICIAL-NOTICE-AND-STATEMENT-OF-APPELLATE-PRESERVATION-MAY-11-2026-CGC-25-631801.pdf](#)
[POS-050-20-SECOND-SUPPLEMENTAL-RJN-AND-APPELLATE-PRESERVATION-MAY-11-2026.pdf](#)

External email

Hi Tyler,

I hope you are doing well.

I am writing to inquire whether you will be the attorney handling the appeal for Case No. CGC-25-631801. Given the rapport we have developed throughout the underlying litigation, I would prefer to continue working with you as opposing counsel. Specifically, I am interested to know if your current retention for the defense extends to the appellate level, or if your firm intends to bring in separate counsel to handle the appeal.

If there is to be a substitution of attorney, please let me know at your earliest convenience. On a related note, it is my understanding that the issue of fee reversal may be stayed during the pendency of the appeal, though I plan to verify the specific procedural requirements regarding that freeze.

I would appreciate any clarity you can provide on who will be representing the defense moving forward. If they plan to bring in a more senior counsel, I couldn't care less; I simply believe that the rapport we've built gives us a highly effective chemistry. (I sent a message to this effect late last night, so please excuse any duplication if it was eventually delivered).

I expect I will be seeing you tomorrow on the second case. I am curious to hear what your complex special counsel thought of today's hearing.

The beauty of Case 801 is that we secured a substantial amount of discovery on the record prior to the judge issuing a ruling. This means that all records regarding the defense's suppression of evidence—and the court's reliance on their reckless disregard for the truth, will be front and center on appeal. I am glad I ignored your suggestion to withhold those documents; ensuring the record accurately reflects the reality of the situation is paramount. Fortunately, we established a robust docket, and the appellate court will have plenty to read. As you already know, the trick is identifying the fundamental basis and standing.

Extrinsic fraud is grounds for vacating the original, illegally procured judgment. I will not stop pushing forward until the court has fully, and I mean completely, adjudicated every single statement and misrepresentation made by your clients. You may have bought yourself a little bit of time, but I suppose that is your role here: playing the delay game. I am just wondering when the actual *defense* comes into play, because we both know the denials have been thoroughly documented.

Best regards,

Dylan Rosario

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From: Dylan Rosario
To: [Tyler O'Connell](#); [Serena Blithe](#); [Monique Schubert](#); [Dylan Rosario](#); [Chad S. Tapp](#); [Priya Navaratnasingham](#); [Alberto Reyna](#)
Cc: CRU@calbar.ca.gov
Subject: Posture letter on CGC-25-631801 appellate inevitability, CCP § 425.17(c) gateway, JKC3H8 v. Colton omission, and cost considerations for CSAA
Date: Friday, May 15, 2026 11:43:45 AM

External email

Counsel,

A quick note before the post May 12 dust settles, just so nobody on your side of the table can say later they didn't see the lay of the land. This isn't me coming at you. Treat it as a one shot orientation piece, on a single record, so your client and your firm understand in writing why the appellate track is now locked in, why the May 12, 2026 order gets the de novo treatment from a fresh set of eyes upstairs, why pretending JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 doesn't exist is its own ticket to reversal, and why every extra month of motion practice down here is just CSAA's meter running on a delay the Court of Appeal is going to hand right back.

First thing. The trial court record is closed for preservation. The May 11 wave (the CCP § 1008 reconsideration motion with Exhibit T and the proposed Third Amended Complaint, the Second Supplemental RJN with the Statement of Appellate Preservation, the Governing Law RJN, the Silent Witness master exhibits, and the matched POS-050s), the May 13 rebuild packet, the post May 12 scaffolds keyed to CRC 3.1312(a), CCP §§ 1008, 657, 663, and 904.1(a)(13), and the May 15 deem admit preservation stack (Notice of Intent, Notice of Non Receipt with three exhibits, Written Objections, the Cost of Proof Reservation, and the POS-050s) all stitch together into a self contained appellate record under California Rules of Court, rule 8.120. Lid is on. Wax is dry. The record is the record.

On the law, the posture is not complicated. An anti SLAPP grant gets looked at cold, both prongs, no deference. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376. On this record, Division Three of the First District has at least eight separate routes to reversal, and any one of them by itself is enough to flip the order:

- - The court walked straight into § 425.16 without first running the § 425.17(c) gateway that *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12 and *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309 say is the door you have to open first.
- - It treated affirmative misrepresentation suppression by panel counsel is garden variety intrinsic fraud, which is exactly what *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, and *Kougasian v. TMSL, Inc.* (2004) 34 Cal.4th 974 say it isn't.
- - The "fully litigated" finding leans on judicially noticed filings whose truth is the very thing the fraud claim is fighting about. *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548 says you can't do that.
- - It scrambled equitable vacatur together with ancillary money relief, the same conflation *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 already untangled.
- - It refused plaintiff's supplemental briefing while quietly letting in late defense reply declarations. That kind of one way valve is exactly what *In re Marriage of Carlsson* (2008) 163 Cal.App.4th 281 calls reversible.

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- - The May 15 deem admit posture is built on retroactively pulling the § 425.16(g) stay backward over defaults that fell due before the stay even existed. The statute says "upon the filing." Words mean things.
- - Granting "in its entirety," with no severance analysis at all, is the move *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995 specifically forecloses.

Pick any one of those threads. Pull. The whole order unravels.

You see, when attorneys walk into the trial court before the jury is even seated and misrepresent the record in order to suppress evidence, and then turn around and get the bench to lean on that misrepresentation as the basis for adverse rulings against the other side, that is extrinsic fraud, letter for letter, every word of the doctrine. *Kougasian* and *Kulchar* are not subtle on that point. You and I both know that when the Court of Appeal looks down at the record and sees the misrepresentation sitting right next to the rulings that flowed out of it, the chain is plain as day. So don't take a victory lap on me right now just because Dept. 301 is sitting on ~4000 cases. Judge Van Aken is doing a hell of a job under that load, and I am genuinely grateful she pointed me up the road to the First District, because that way a three justice panel of Division Three gets to slow down, on a clean written record, and look closely at what actually happened here. And without a doubt, you and I both know what they are going to see.

The cleanest path, though, runs straight through JKC3H8. Your firm's April 23, 2026 opposition put on the page that "no such authority exists" on the leave to amend versus § 425.16 intersection. JKC3H8 is published, it's on point, and it's controlling. It holds that an amended complaint that strips out the protected activity allegations moots a later filed anti SLAPP motion. (221 Cal.App.4th at pp. 471 to 472.) *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450 says every superior court in California has to follow it. End of debate. Plaintiff's proposed Third Amended Complaint, filed May 11, 2026, is the textbook JKC3H8 narrowing pattern, not the "subvert or avoid" exception drawn at pages 477 to 478. Two things fall out. First, the May 12 order was decided against the wrong operative pleading because nobody ran the JKC3H8 mootness analysis at all. Second, leaving controlling authority off the page lights up California Rule of Professional Conduct 3.3(a)(2), and once that's lit, it's a record entry the Court of Appeal does not have to look away from on de novo review. Inversion either way.

Sitting right next to that is the full weight of § 425.17(c). The Legislature wrote the word "insurance" right onto the face of the carve out. *Simpson Strong-Tie* calls it categorical and gateway first. The May 12 order disposed of all of that in one conclusory sentence with no real work shown on either the "in the course of delivering" prong of (c)(1) or the "regulatory ... investigation" prong of (c)(2). And just in case anyone wants to argue around the carve out, *Flatley v. Mauro* (2006) 39 Cal.4th 299 parks an independent illegal conduct exit right alongside it.

Every immediately appealable order under CCP § 904.1(a)(13) ends up briefed twice when the Court of Appeal reverses. Reconsideration tolls under CRC 8.108(e); new trial under CRC 8.108(b); vacate 663 under CRC 8.108(c). The notice of appeal clock is jurisdictional, full stop. On top of that, CSAA is already in the parallel UCL lane in CGC-25-631802 (May 29, 2026 consolidated hearing, Dept. 302), the cost of proof reservation under CCP § 2033.420 just hit the file today, and the regulatory channel preserved by *Moradi-Shalal v. Fireman's Fund Ins. Co.* (1988) 46 Cal.3d 287 and *Zhang v. Superior Court* (2013) 57 Cal.4th 364 is

sitting right there with the engine warm.

One word on the room. The First District is not limited in its capacity and attention to detail, as Dept. 301 is. The May 12 order signs off with "Plaintiff presented his case, lost, and may pursue his appeal rights." Division Three, three justices, de novo, on a written record (Reporter "N/A," CRC 8.137 agreed statement election), is going to receive a clean question of law that trial court bandwidth has no real way to step on.

Look, I know you want to wave this off as just a second appeal, and I get the instinct, because the whole record is going right back up in front of the same First District, Division Three. Different doorway, same building. And I guess if it ends in a vacatur of the underlying judgment, sure, you are right, the result rhymes with an appeal. But the court does not look at an extrinsic fraud channel the same way it looks at error correction on a closed record, and lucky for us those justices, as Judge Van Aken already pointed out, are very nice people and very thorough, and they actually read everything you put in front of them.

Here is the thing. I never needed to win 801 down here in superior court. I just needed to get you in the room and arguing something, anything, and the anti SLAPP was plenty, because that was enough to put the evidence on the elevator and ride it up to the Court of Appeal on a completely orthogonal approach. The extrinsic route I am riding right now was not even my dig. That hole got dug by your own clients. Priya and Alberta put CSAA in it the moment they decided to misrepresent the record to the tribunal, and that single decision is the exact thing that opened the avenue for me to walk in front of the appellate court with a novel opportunity to vacate the original judgment.

As for your role in this whole 801 vacatur picture, like I said before, you should have engaged me on the facts instead of reaching for the anti SLAPP, because that vehicle is going to crumble out from under you the second the panel reads it. Either way, Superior Court opened up every avenue I needed.

So as much as you might want to chalk this up as a nice win for the defense, what you actually picked up is a little bit of delay, and what you handed me, with both hands, is the entire evidentiary record dropped right onto the desk of a panel of very sophisticated justices who are not going to get fooled by quiet omissions of controlling authority. And honestly, Tyler, just between us, out of every motion you had on the menu, you happened to reach for the exact one I needed you to pick up. Funny how that worked out. Almost like the script wrote itself. I really do hope you do not end up added to the list below, because it would be unfortunate to watch you suffering alongside your compatriots over there.

In any case, great job.

Sincerely,

F. Dylan Rosario, in pro per
Tel. 650.488.7510 • soltrinox@gmail.com

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CALBAR REF# ::
26-O-14201 :: A. Reyna

26-O-14202 :: P. Navarat
26-O-14203 :: M. Chambers

<https://www.calbar.ca.gov/public/concerns-about-attorney/recent-disciplinary-actions>

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From: Dylan Rosario
To: [Tyler O'Connell](#); [Chad S. Tapp](#); [Monique Schubert](#); [Maria Reyes](#); [Veronica Jackson](#); [Serena Blithe](#)
Cc: department206@sftc.org; Intake@calbar.ca.gov; fraud@insurance.ca.gov; investigations@insurance.ca.gov
Subject: MAC: CCP §128.7(c)(1) and California Rules of Professional Conduct 3.3(a)(2)
Date: Tuesday, May 26, 2026 12:46:01 PM

*****External email*****

CSA Panel Counsel: Tyler, Chad, Serena, Monique, Reyes, and Jackson,

This is a formal meet and confer under CCP §128.7(c)(1) and California Rules of Professional Conduct 3.3(a)(2). Please treat this email as my written demand and as the operative safe harbor notice.

You were served today. As of this morning, May 26, 2026, you received electronic service via File and ServeXpress of the following notices bearing directly on this demand: the Notice of Directly Adverse Authority (RPC 3.3(a)(2), JKC3H8), the Notice of Additional Directly Adverse Authority (Dickinson / Newport Harbor), the Notice of Threshold Authority (Inland Oversight / CCP §425.17(c)), the RFJN of CCP §425.17 and Commercial-Speech Exemption Opinions, and the RFJN of JKC3H8 v. Colton and Newport Harbor. You also received the §128.7 sanctions motion bundle, including the notice, memo, declaration, and RFJN, all of which are now on file in Dept. 302 and pending clerk review. You have the portal receipts. You have the exhibits. You have been noticed.

The core problem. Your anti-SLAPP motion and your supporting papers omit two categories of directly adverse controlling authority you were obligated to disclose under RPC 3.3(a)(2):

1. CCP §425.17(c) -- The California Legislature enacted this provision specifically to eliminate anti-SLAPP protection for defendants, like CSAA, that are commercial insurers providing services to the public. This is not an obscure statute. It is the threshold exemption that terminates the anti-SLAPP analysis before burden-shifting even begins. Your motion does not cite it, does not distinguish it, and does not acknowledge it exists.
2. JKC3H8 v. Colton / Newport Harbor -- These decisions apply the commercial-speech exemption in contexts directly analogous to the conduct at issue here. Your opposition to my MFL-SAC stated "no such authority" exists. That representation was false. The authority exists. It was controlling. You did not disclose it.

Both omissions violate RPC 3.3(a)(2). Both were material to the Court's analysis. Both have now been placed in front of Dept. 302 by me, not by you.

This is not the first department that has seen this. I have already presented these same violations to Department 301 in the companion matter CGC-25-631801. The record in that case reflects the same pattern of omission on the same threshold legal questions. I am raising it here because the consolidated docket makes it directly relevant to the June 24 hearing, and because the Court in both departments is entitled to a full and accurate record.

What I am asking you to do. Under CCP §128.7(c)(1), you have 21 days from the date of service of the §128.7 motion -- served today -- to voluntarily withdraw or correct the offending pleadings. Specifically, I am asking you to:

1. Vacate or withdraw any motion, brief, or opposition paper in which you represented that no authority supports the CCP §425.17(c) commercial-speech exemption as applied to CSAA;
2. File a supplemental authority notice in both CGC-25-631802 and CGC-25-631801 disclosing JKC3H8 v. Colton, Newport Harbor, and the full text of CCP §425.17(c) to each respective department;
3. Confirm in writing whether you intend to maintain the anti-SLAPP motion in light of the §425.17(c) threshold exemption; and
4. Confirm in writing whether CSAA will stipulate that the anti-SLAPP discovery stay is inapplicable given the statutory exemption, and that Set Six discovery responses are owed without further delay.

If you take the corrective steps above within the safe harbor period, I will withdraw the §128.7 motion. If you do not, I will present the motion to the Court on June 24 and ask for sanctions, fees, and a finding of violation on the record.

Additional meet and confer items. While we are in contact, I am also raising the following issues that require a written response:

- Set Six discovery default. Responses were due and not served. Please confirm by June 2, 2026 whether CSAA will serve responses without objection or whether I should proceed with a motion to compel.
- Second reply papers (Tx 79430135). Your May 8, 2026 second reply was not authorized under CRC 3.1113. Please confirm whether you will stipulate to striking those papers from the record, or whether I should present the issue to the Court at the June 24 hearing.
- Improper new matter in demurrer reply. Your demurrer reply introduced arguments and evidence not raised in the

moving papers. Please identify which arguments you intend to rely upon at the June 24 hearing so I have a fair opportunity to respond, or stipulate that the new matter is withdrawn.

Response deadline. Please respond in writing no later than Monday, June 2, 2026 at 5:00 p.m. If I do not hear from you by that date, I will treat your silence as a refusal to meet and confer in good faith and will notify the Court accordingly at the June 24 hearing.

Porter Scott and CSAA legal team, I am not interested in unnecessary motion practice. If there is a professional resolution here, I am open to it. But the record is going to reflect what it reflects, and the Court is going to have the full picture on June 24 regardless of whether we resolve this between us first.

Regards,

Franciscus Dylan Rosario,
Plaintiff (Self-Represented)
soltrinox@gmail.com
650.488.7510
May 26, 2026

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From: Dylan Rosario
To: [Chad S. Tapp](#)
Cc: [Tyler O'Connell](#); [Maria Reyes](#); [Stephanie Hengl](#)
Subject: Re: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt
Date: Tuesday, June 23, 2026 10:07:44 AM
Attachments: [ATT00001.htm](#)
[image001.png](#)

External email

Dear Chad and Tyler,

Regardless of your assessment of the filing, we will discuss these matters during tomorrow's hearing.

Your claim that the trial was fully litigated contradicts the record, in which the judge explicitly stated he did not fully adjudicate the merits of the underlying case. I suggest you review the case details regarding how the judgment was procured, as well as the judge's on-the-record statements concerning the jury instructions.

While you may characterize these facts however you wish, numerous witnesses were present when Judge Wong issued these rulings, and some of them will be in the courtroom tomorrow. I have been addressing your client's deception for months; the record remains clear, even if you choose to ignore it.

I look forward to your explanation of the court's prohibition on the jury's use of the law, specifically when the defense itself placed that law before them. If you truly believe this matter was fully adjudicated, please note that Judge Van Aken has not yet entered an order on case 801. We will await today's preliminary notice and address the 801 case misrepresentations, along with the omissions in 802, in court tomorrow.

Please take notice that I have requested a court reporter to record everything your law firm says regarding what your client knew, as well as all statements from the judge, so you can stop with the gaslighting. For some reason, Tyler continues to imagine that I was admonished about filing documents and pleadings. In reality, the judge stated that I am supposed to receive the preliminary ruling. He informed both me and the defense of this, and you will note that Tyler also admitted to not receiving the preliminary ruling from Judge Quinn. I do not know what type of admonishment you continue to imagine, but it is obvious you do not need artificial intelligence to hallucinate things, you manage to do it yourselves just fine.

Now that you have been put on notice regarding the legal violations in the underlying action, I appreciate your admission that you have read the filing. Given Tyler's apparent difficulties with reading comprehension, I would like to know what you actually plan to discuss tomorrow regarding the record, where the judge openly admits to blocking and refusing to apply the law that was placed in front of the jury.

Even if you want to frame this as a SLAPP, Tyler and Chad, it does not change the reality of what the judge said. The court is now on notice that your claim of the underlying trial being fully adjudicated is false; by Judge Wong's own admission, the law was withheld from the jury. Your entire affirmative defense asserting that the underlying trial was adjudicated on its merits is a fraudulent statement, and your client knows it.

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I am glad you acknowledge reading my filing, but just because you think it is "slop" does not make it false. Perhaps your problem, Chad, is that you are so concerned with form and presentation that you miss the forest for the trees. You need to look past the aesthetics and examine the fundamental merits of my case. I sincerely hope you appear in court tomorrow along with Tyler and the rest of your crew, so the people who know me can get a good look at the faces of individuals working for a multi-billion insurance company who simply cannot accept reality.

Your client procured the underlying verdict through extrinsic fraud. Your case was so weak that you needed a judge to manufacture law to help your clients win. Subsequently, two attorneys on the jury felt that your colleague, Garrett Wong—who is fortunately no longer on the bench, violated professional codes of conduct, the judicial code of conduct, and the Constitution of the United States. While I can only personally vouch for the judicial report I submitted to the judicial violations board regarding Judge Wong, his absence from the bench is undeniable. Whether due to my complaint, numerous complaints from other witnessing attorneys, or the recorded record itself, we know for a fact that the underlying case was never actually decided on the merits. Judge Wong left that evidence directly in the reporter's transcript when he clearly stated that he prohibited the jury from considering the law placed in front of them.

Either you and Tyler need to go back to law school to understand what that means, or you are completely delirious and have lost touch with the law. Perhaps the piles of insurance money you collect have caused you to lose your spine when it comes to standing up for the truth. This is highly indicative of what I have seen from your client: they are so afraid of the fact that they violated state law that they somehow convinced a judge to literally tell the jury they are not allowed to use the law right in front of them.

You could not win cleanly, so you figured out how to manipulate a judge, and it appears he lost his seat as a result. I do not think Judge Van Aken is going to make the same mistake. I believe the court fully understands the implications of what your client has been doing here since day one.

You are the ones who are either too afraid to face me on the merits, or who somehow literally believe your client is correct. I suggest you talk to your client about what happens next. If all of this goes up to the district court, you will have three different cases with the same judges looking directly at all of your client's contradictions, and there are quite a few of them.

I know you keep claiming that you are just doing your job and defending your client. However, defending your client also means telling them when to stop digging their own hole.

Conduct yourself accordingly,

F.D. Rosario
Plaintiff in Pro Per.

On Mon, Jun 22, 2026, 6:34 PM Chad S. Tapp <ctapp@porterscott.com> wrote:

I read it. Your entire pleading is such AI slop that it's unintelligible and I have no idea what you're seeking. Total garbage.

Good luck,



Chad S. Tapp

Attorney | Shareholder

[2180 Harvard Street | Suite 500 | Sacramento, CA 95815](#)
T| 916.929.1481 x 541 F| 916.927.3706

www.porterscott.com

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, June 22, 2026 5:01 PM

To: Tyler O'Connell <toconnell@porterscott.com>; Chad S. Tapp <ctapp@porterscott.com>; Maria Reyes <mreyes@porterscott.com>; Stephanie Hengl <shengl@porterscott.com>

Subject: Re: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt

*****External email*****

On Mon, Jun 22, 2026 at 4:54 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Dear Porter Scott Team,

I have reserved the attached filing for today. You have approximately 24 hours to redact your claims of immunity; otherwise, as you can see, this matter is now going before the judge.

0010

Please note that the Request for Judicial Notice runs outside of the reply regarding the objection to the anti-SLAPP demurrer. While Tyler has indicated he will not be reading this, I strongly suggest that the rest of your team does so.

Regards,

Frank Dylan Rosario
Plaintiff in pro per

----- Forwarded message -----

From: **FileAndServeXpress** <TransactionReceipt@secure-mail.fileandservexpress.com>

Date: Mon, Jun 22, 2026 at 4:47 PM

Subject: Case: CGC-25-631802; Transaction: 79843794 Transaction Receipt

To: <soltrinox@gmail.com>

To: Franciscus Dylan Rosario
Subject: Transaction Receipt

This email is to confirm receipt of your documents. The transaction option you selected was "File And Serve". The details for this transaction are listed below.

Court: CA Superior Court County of San Francisco-Civil
Case Name: FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE
EXCHANGE ET AL
Case Number: CGC-25-631802
Transaction ID: 79843794
Authorized Date/Time: Jun 22 2026 4:47PM PDT
Authorizer: Franciscus Dylan Rosario
Authorizer's Organization: (SRI)-Rosario, Franciscus
Sending Parties:
ROSARIO,, FRANCISCUS DYLAN
Served Parties:
CSAA Insurance Exchange
Document Title(s):
PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE OF APRIL 23, 2025 WONG
INSTRUCTION (CGC-21-594102) (27 pages)
Exhibits (18 pages)

Link to transaction details page where all documents can be viewed:

http://url9504.fileandservexpress.com/ls/click?upn=u001.Pq3R6f12wiw9BwrcdSeRfUhFmFFBNEYRBGV3AiSWToF7jq5DqcgBVPeE3uSQzG-2BNKBwjWtDqSOw-2Fu7h6M-2FF4UkJYY7fSWkCzCK8NWI5qfkk-3DXKX1_yXrJZH7HFH9b7lSjjgLRgGQ6-2FaOdWzPP99uApXWo7FOdBR4-2FgyGxU-2BORnLRLQrWqbTjxB20hp44WhkdQ8auIF2v8vT5cKzGNvMTiKJM7wTkZjFPiPtvPM TfQKSBqYE2BbNWAABr-2B-2BD39nExH1-2Fyl-2BDIWDm2jKdez-2Bsp8KbJQyvA70Ab9hloT2w0HYP0dnlPEXH-2FwJPio8djz1ZaOt1SFHQ-3D-3D

Documents with direct links (The direct links will be available for your convenience for the next 7 days):

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE OF APRIL 23, 2025 WONG
INSTRUCTION (CGC-21-594102) (Clerk review status: Pending):

[http://url9504.fileandservexpress.com/ls/click?
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Exhibits (Clerk review status: Pending):

[http://url9504.fileandservexpress.com/ls/click?
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Additional Recipients:

TYLER OCONNELL
Monique Schubert
CHAD TAPP
DEPT 302
Rebekah Morrissey
investigations insurance
DEPT 302

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From: Dylan Rosario
To: [Chad S. Tapp](#); [Tyler O'Connell](#); Rebekah.Morrissey@csaa.com; [Serena Blithe](#); investigations@insurance.ca.gov
Cc: [Stephanie Hengl](#)
Subject: Re: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)
Date: Tuesday, July 7, 2026 12:04:50 PM
Attachments: [image001.png](#)

External email

CSAA Counsel,

Here we go, Chad and Tyler. I am providing a narrative version because I know you guys sometimes have a hard time reading the authorities.

Like I said, when you took your position on the anti-SLAPP regarding the denial letter, you admitted that you immediately moved into an adversarial litigation posture without conducting a thorough, fair, and objective investigation. That is a direct violation of the California Insurance Code and the Fair Claims Settlement Practices Regulations. Plain and simple.

It was your choice to claim the litigation privilege to try and make your client immune. But by explicitly stating on the record that you immediately moved into that litigation posture, you caused your defense to collapse across all the other actions you took. CSAA immediately adopted an unlawful deny-delay-defend institutional practice before completing its regulatory duties. No amount of rewinding your statements on the record can defeat that.

You have now locked yourselves into an admission of violating the Insurance Code and unfair competition laws. When you chose to use an anti-SLAPP claiming the letter was pre-litigation, it immediately triggered the inverse consequence on the regulatory side. Maybe you need to look this up: you cannot send a denial letter to an unrepresented claimant, prior to ever communicating with them, in anticipation of litigation. That is a textbook unfair claims settlement practice.

Maybe because you are attorneys, you think nobody else understands what an unlawful claims practice looks like? Hubris, arrogance, I don't care. The two of you are ignoring the reality of the implications of saying you sent a letter in anticipation of litigation. That is an immediate admission of violating the Insurance Code and the Fair Claims Settlement Practices Regulations. There is just no way around it.

Here is a narrative for you, converted from my other documents, but it doesn't change the fact that you chose to bypass an investigatory duty under the Fair Claims Settlement Practices Regulations. This was the one letter you could never admit was a litigation document, because by doing so, you immediately admitted to violating fair claims laws. But that is exactly what happened. I told you guys this before, and you completely ignored me, assuming that just because I am a pro per, I don't understand how to read the law. At least I got you guys to admit to the violations on the 801 and 802 cases. Now all I need to do is show the court the other primary rights that were never adjudicated, namely the violations of the fair claims settlement laws.

And Tyler, you keep saying that I'm trying to build a bad faith case. Well, yeah, because CSAA violated the law and acted unlawfully. But I didn't even have to build the case because

you guys already admitted to it. So, without any further rhetoric, let's see what you guys think about this newly refined message that will go in front of the appeals court on Case 801 and Case 802.

You'll be excited to hear that because we never litigated the insurance violations, I have every right under California law to pursue those causes of action now. Through discovery and the immunity privilege position that you, Chad and Tyler filed with the court, and thanks to those filings those causes of action have ripened, and I now have your clear, on-the-record statements that you violated the laws. Make sure your friends at CSAA who are paying your bills know exactly what you wrote and what the implications are for them now.

I. The Strategic Choice and Its Self-Inflicted Nature

When Porter Scott filed the April 6, 2026 Meet-and-Confer letters and the April 9, 2026 Anti-SLAPP special motions to strike in the two companion CSAA matters, the defense made a decision that would prove structurally catastrophic to its own position. Instead of characterizing the February 25, 2021 twenty-one-day denial letter as an ordinary, neutral, coverage-evaluation product of routine claim handling, defense counsel deliberately elected to shield that letter under three overlapping immunity theories: Civil Code section 47(b) litigation privilege, Code of Civil Procedure section 425.16 protected petitioning activity, and Insurance Code section 790.03 recast as a mandatory "statutory and regulatory requirement." Each theory required, as a load-bearing element, the same factual predicate. Each theory required defense to swear that CSAA was, on February 25, 2021, already treating the third-party claimant not as a claimant entitled to a fair investigation, but as a litigation adversary against whom the carrier had assumed an adversarial posture in "anticipation of litigation."

That election was dangerous because a shield cannot function as a shield in an insurance case unless the very posture it presupposes is a violation of the statutory duty of good faith. Defense could not have both. Defense could not simultaneously (a) sit under the Civil Code section 47(b) umbrella by proving that litigation was already under serious consideration on day twenty-one and (b) argue that the carrier had discharged its 10 California Code of Regulations section 2695.7 duty of thorough, fair, and objective investigation on the same date. The two positions occupy mutually exclusive factual spaces. By reaching for the shield, defense conceded the very fact that eliminates the good-faith defense. That is the danger. That is the trap. And because the shield's trigger is codified in *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268, and *Briggs v. Eden Council for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1115, defense cannot now walk the recital back without dissolving the shield it invoked. The concession is load-bearing. Once it is on paper it cannot be unwritten.

II. What "Anticipation of Litigation" Legally Means

The phrase "anticipation of litigation" is not rhetorical filler. In California appellate practice it is a specific evidentiary and procedural gateway. To invoke Civil Code section 47(b) for a

pre-suit communication such as the February 2021 denial letter, the party asserting the privilege must show that litigation was "contemplated in good faith and under serious consideration" at the moment the communication issued. The identical trigger governs Code of Civil Procedure section 425.16(e)(2), which protects statements made "in connection with an issue under consideration or review by a legislative, executive, or judicial body." When defense counsel typed, in the Case 802 Anti-SLAPP MPA at pages 8 to 9, that "CSAA had a duty to investigate that claim and take a prompt denial position. This is protected conduct in anticipation of litigation," defense was not describing an internal mood. Defense was pleading the Neville and Briggs prerequisite as a fact.

The rhetorical move that follows is the one defense probably did not intend to make. Because the "anticipation of litigation" recital is a factual predicate for the privilege, plaintiff need not challenge it. Plaintiff can simply accept it. Under Evidence Code section 1220 and Code of Civil Procedure section 2033.410, a statement of fact contained in an adversary's own pleading is a judicial admission that binds the pleader. The plaintiff's reply framework is therefore inverted: rather than deny that the letter was written in anticipation of litigation, plaintiff accepts that recital in full, and then draws from it the statutory consequence that CSAA had, twenty-one days after the collision, already exited the neutral coverage-evaluation posture and entered adversarial claim positioning. That is not a metaphor. It is the definition of the posture *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809 and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713 identify as bad-faith claim handling.

III. The Missing Settlement Effort and the Section 790.03(h)(5) Predicate

Insurance Code section 790.03(h)(5) declares it an unfair claim-handling practice to fail to attempt in good faith to effectuate prompt, fair, and equitable settlement of claims in which liability has become reasonably clear. The regulatory floor beneath that statute is set by 10 California Code of Regulations section 2695.7, which requires the insurer to conduct a thorough, fair, and objective investigation before accepting or rejecting a claim, and to communicate its acceptance or rejection with an explanation of the specific policy provisions or facts supporting the decision. Together these provisions describe a claim-handling architecture built around one principle: before a carrier positions against a claimant, it must first investigate and, where liability is or may be reasonably clear, engage in good-faith settlement communication.

The defense's own written record shows that the February 2021 letter did neither. It contains no offer, no invitation to negotiate, no reservation of rights that leaves open a later evaluation, no acknowledgment that additional evidence such as the 911 audio, the computer-aided dispatch logs, the body-worn camera footage, and the San Francisco Police Department supplementals might change the picture. The letter is a "prompt denial position," as defense's own MPA describes it. And immediately upon that denial, defense typed that the letter was "in anticipation of litigation." That combination, on the face of the defense's own filings, is a self-executing section 790.03(h)(5) admission. There was no settlement attempt because the carrier had already elected the litigation posture. Defense

told the court that the denial letter was itself the litigation posture.

Section 790.03(h)(6) makes the same posture actionable from a different angle. That subdivision reaches carriers that compel claimants to institute litigation to recover amounts due by offering substantially less than the amounts ultimately recovered or by refusing to engage in settlement conduct that would obviate suit. When a carrier goes on the record and says that its very first communication with a third-party claimant was written in anticipation of litigation, it has admitted that litigation was the mechanism by which the claim would be resolved. The carrier did not shift into a litigation stance in response to unreasonable claimant demands. The carrier occupied the litigation stance twenty-one days after the accident, before the file was materially developed, before public-record evidence was gathered, and before any settlement communication was attempted.

IV. The Neville and Briggs Trap: Shield Trigger Equals Factual Admission

The trap the defense fell into operates as a six-move logical sequence. Move one is the election. Defense elected to shield the February 2021 letter under section 47(b) and section 425.16(e)(2) as pre-suit petitioning activity conducted in anticipation of litigation. Move two is the shield's prerequisite. Neville and Briggs, both controlling authorities, require that litigation must have been contemplated in good faith and under serious consideration at the time of the communication. Move three is the automatic factual admission. Because the shield's prerequisite is a factual predicate, invoking the shield is invoking the fact. Defense has told the court, on the record, that CSAA had already exited the neutral coverage-evaluation posture and entered the adversarial litigation posture on the twenty-first day.

Move four is the Egan consequence. An adversarial-from-day-one posture cannot coexist with the Egan requirement of a thorough, fair, and objective investigation before decision. Egan describes an insurer that has a duty to give at least as much consideration to the interests of its insured, and by extension the third-party claimant it is regulating through the Fair Claims Settlement Practices Regulations, as it gives to its own interests. That duty is not discretionary. It is not subject to strategic recharacterization. And it cannot be discharged by a carrier that treats the claimant as an adversary before the file is developed. Move five is the section 790.03(h) cascade. The same admission that supports the section 47(b) shield converts into predicates under section 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13), as well as violations of 10 California Code of Regulations sections 2695.1(a), 2695.4(a), 2695.5, 2695.7(b), 2695.7(c), 2695.7(d), and 2695.7(g). Move six is the Anti-SLAPP gateway defeat. Because Code of Civil Procedure section 425.17(c) enumerates "insurance" on the face of the statute and categorically removes commercial insurance conduct from the reach of section 425.16 when three conditions are met, and because defense's own text pleads each of those three conditions, the special motion is barred at the gateway before the court reaches either prong.

The genius, and the tragedy for the defense, is that once the "anticipation of litigation"

recital is on paper, defense cannot back away from it. The recital is the shield. To retract it is to lose the shield. To keep it is to admit the section 790.03(h) predicate. That is the closed loop the defense has drawn around itself.

V. The Wilson Genuine-Dispute Forfeiture

Wilson v. 21st Century Ins. Co., 42 Cal.4th at 723 to 724, is the controlling authority on the genuine-dispute defense. Wilson holds that an insurer may defend against a bad-faith claim by showing that its position at the time of denial was based on a genuine dispute over coverage or liability, measured on the file that then existed. Two features of the Wilson doctrine are crucial to understand why the defense's admissions self-destruct.

First, Wilson is a temporal doctrine. Reasonableness is measured at the moment of denial, on the record that existed at that moment. It is not measured against a jury verdict rendered years later. Yet the Case 801 Anti-SLAPP MPA at page 9 typed the exact hindsight sentence Wilson forbids: "Notably, the jury agreed with CSAA and also found that the Insured was not negligent, which, incidentally, reinforces the validity of CSAA's position of liability in its February 2021 denial letter." That sentence, in Porter Scott's own text, is a straight admission that the defense views the 2021 denial as validated by the 2024 to 2025 tribunal verdict rather than as an independent good-faith investigation product. Wilson forecloses that maneuver. Once counsel types the hindsight argument, the Wilson defense is forfeited, and any future genuine-dispute assertion is estopped on the face of the brief.

Second, Wilson requires that the file at the time of denial actually reflect a good-faith investigation. If the file shows that the carrier positioned before investigating, then no genuine dispute defense can arise, because the carrier did not evaluate the dispute in the first place. Defense's admission that the letter was written in anticipation of litigation is the same admission, at a different angle, that the file at the time of denial was not the product of a section 2695.7(d) investigation. It was the product of adversarial preparation. A file assembled to prepare for litigation is not a file assembled to fairly resolve a claim. The Wilson defense cannot attach to it.

VI. The Section 425.17(c) Gateway Bar

Code of Civil Procedure section 425.17(c) is not a discretionary carve-out. It is a categorical exclusion. When three enumerated conditions are met, the special motion to strike under section 425.16 does not apply at all. The three conditions are that the statement or conduct occurred in the course of the person's delivery of goods or services, that the statement concerned the speaker's business operations or those of a business competitor, and that the intended audience was an actual or potential customer or a person likely to influence customer decisions. Insurance is enumerated on the face of the statute.

Defense's own text supplies every element of section 425.17(c). Defense pleaded that the

denial letter was issued as a "statutory and regulatory requirement" under Insurance Code section 790.03 and 10 California Code of Regulations section 2695.7. That is the delivery of insurance services. Defense pleaded that the denial letter was a compliance product regulated by section 790.03 and the Fair Claims Settlement Practices Regulations. That is the speaker's own business operations. And defense pleaded that the intended audience was the third-party liability claimant, who under 10 California Code of Regulations section 2695.2(c) is defined as a "claimant" within the regulatory audience of a carrier for purposes of the regulatory scheme. That is a customer or a person likely to influence customer decisions within the meaning of section 425.17(c).

The consequence is that the Anti-SLAPP motion is defeated at the gateway. The court does not reach the prong-one "protected activity" analysis or the prong-two "probability of prevailing" analysis. The motion falls before those analyses begin. And it falls not on plaintiff's argument but on defense's own text. Defense's brief, in the very language it chose to protect the letter, supplies each element of the categorical statutory exclusion.

VII. The Twenty-One-Day Timeline as Structural Bad Faith

The regulatory framework contemplates a specific temporal cadence for claim handling. 10 California Code of Regulations section 2695.5(b) requires the insurer to respond to communications regarding a claim within fifteen calendar days. Section 2695.7(b) requires the insurer to accept or deny the claim within forty calendar days after receiving proof of the claim. Those provisions establish a floor, not a ceiling. They do not authorize the carrier to elect adversarial positioning inside the first twenty-one days. They require the carrier to use that time to conduct a thorough, fair, and objective investigation before deciding whether to accept or reject.

The Silent-Witness materials in this matter, the 911 audio, the computer-aided dispatch, the body-worn camera footage, and the San Francisco Police Department supplementals, were public-record evidence. A good-faith investigator on day twenty-one would have been gathering that evidence, not writing a denial position paper. A good-faith investigator would have been engaging the claimant, not preparing for the claimant's expected suit. A good-faith investigator, in other words, would have been discharging the section 2695.7(d) duty, not composing a Neville-and-Briggs shield.

By pleading that the February 2021 letter was written in anticipation of litigation, defense has told the court that CSAA did the opposite. CSAA did not investigate and then position. CSAA positioned first, in an adversarial posture, and then closed the file. That inversion of the regulatory cadence is not merely a fact that plaintiff might allege. It is a fact defense has typed into two Anti-SLAPP motions.

VIII. The Deny-Delay-Defend Architecture in Defense's

Own Paraphrase

The Case 802 Anti-SLAPP MPA at page 6 reproduces the FAC's causal allegation and stitches it to defense's own characterization of CSAA's conduct: "insurance claims evaluation, issuing pre-litigation denial letters, arguing in Court, and funding the defense." The paraphrase links, in a single causal chain, the twenty-one-day denial letter, the third-party litigation that followed, and the 9-3 defense verdict achieved by the same institution that authored the letter. That is not a plaintiff's construction of the case. It is the defense's own narration.

Section 790.03(h)(6) targets exactly the architecture the paraphrase describes. A carrier that denies the claim, forces the claimant into court, then funds and controls the defense at trial, and finally offers the trial verdict as retrospective vindication of the initial denial, has performed the deny-delay-defend sequence in the pure form the Legislature had in mind when it drafted section 790.03(h)(6). The template repetition of the intimidation script across both companion Meet-and-Confer letters and both Anti-SLAPP MPAs supplies the "general business practice" element of the section 790.03(h) lead-in. Insurance Code section 790.03(h) opens with a lead-in that captures conduct performed with such frequency as to indicate a general business practice. Two case files, one self-represented claimant, identical language: the frequency is documented in the defense's own filings.

IX. Why This Constitutes a Violation of Good Faith

Good faith in California insurance law is not an atmosphere. It is a specific implied covenant, given content by Egan and by the Fair Claims Settlement Practices Regulations. It requires the insurer to give as much consideration to the interests of the claimant, in the third-party context regulated by section 790.03 and the accompanying regulations, as it gives to its own. It requires the insurer to conduct an investigation before positioning. It requires the insurer to communicate acceptance or rejection with an explanation grounded in policy provisions and facts. It requires the insurer to attempt good-faith settlement where liability is reasonably clear. It requires the insurer, above all, to preserve the neutral coverage-evaluation posture until the file supports a decision.

The defense's Anti-SLAPP filings admit that CSAA did none of those things. The filings admit that the carrier moved directly from receipt of the claim to an adversarial position within twenty-one days. They admit that the carrier's first communication with the claimant was written in anticipation of litigation. They admit that the carrier made no settlement effort. They admit that the carrier funded, directed, and controlled the resulting litigation as a matter of Insurance Code duty. They admit that the carrier views the trial verdict as retrospective justification of the initial denial. Each admission, standing alone, is a violation of the implied covenant of good faith and of the section 790.03(h) predicates that give the covenant content. Together they constitute a documented, memorialized deny-delay-defend architecture.

X. Conclusion: The Shield That Documented the Wound

The dangerous thing the defense did in choosing this Anti-SLAPP posture was to memorialize the very fact that eliminates the good-faith defense. By reaching for Civil Code section 47(b) and Code of Civil Procedure section 425.16, defense had to plead the Neville and Briggs prerequisite that litigation was already under serious consideration on February 25, 2021. That prerequisite is not neutral. It is the definition of a carrier that has abandoned neutral coverage evaluation for adversarial positioning at the earliest possible moment. By pleading Insurance Code section 790.03 as a "statutory and regulatory requirement," defense conceded the applicability of the regulatory floor and joined compliance as a triable question. By pleading the duty to defend and the funding, direction, and control of panel counsel, defense conceded tripartite agency and opened CSAA to vicarious and ratification liability for panel counsel's tribunal conduct. And by refusing to attempt settlement, the defense converted the ordinary Egan bad-faith investigation duty into a documented failure on the face of the record.

The defense chose immunity. The defense wrote its way into liability. Every sentence that was intended to defeat plaintiff's action now, when accepted at face value under Evidence Code section 1220 and Code of Civil Procedure section 2033.410, supplies a section 790.03(h) predicate, a section 425.17(c) gateway trigger, and a Zhang v. Superior Court (2013) 57 Cal.4th 364 UCL predicate. The immunity shield the defense reached for is not a shield. It is a signed confession, filed in duplicate across two case captions, that CSAA treated the third-party claimant as a litigation adversary before it treated the claimant as a claimant at all. That is the violation of good faith. That is what the record now shows. And that is what the defense cannot walk back, because the very act of walking back would dissolve the immunity shield it typed into being.

Conduct yourself accordingly

F.D. Rosario

cc: investigations@insurance.ca.gov

On Mon, Jul 6, 2026 at 8:03 PM Dylan Rosario <soltrinox@gmail.com> wrote:
Chat and Tyler,

Our last meeting made it completely obvious that you've now admitted to the court that your client sent a letter in anticipation of litigation. Plus, by stating on the record that you didn't even retrieve the 911 records, you admitted to failing your mandated duty to investigate. That admission itself isn't even the core of my lawsuit. Either you just don't get this, or you are intentionally playing dumb with me, because this all comes down to an insurer's statutory duty of fair claims settlement.

As I cited below from your own filings, sending a denial letter at that early stage might well have been anticipatory litigation. But when you admit that, you are also formally admitting

that your client violated the core requirements of fair claims handling. Bingo.

I honestly don't know how two supposedly fantastic attorneys can't understand the most basic concepts of insurance law. Either you skipped that part of law school, or you are just in complete denial. Let's look at your own premise. You stated that you sent a letter in anticipation of litigation before you actually completed an investigation. That is a textbook unfair claims settlement practice.

Plain and simple, you went on the record, and I am going to make sure every court in California reads it directly. I will not stop, Chad, until every court sees your argument that CSAA can just bypass its investigative duties and retroactively immunize itself by mailing a letter afterward. You really need to understand that this is not going away.

Furthermore, Chad, you can't retroactively whitewash your client's failure to investigate just because you filed a piece of paper later on. You guys didn't win anything on the anti-SLAPP on the merits. The only thing you accomplished was establishing a factual record that I now have in my possession. The California Department of Insurance is going to have it soon, too. They are going to review your statements and ask exactly where you got the authority to bypass the law. They will gladly remind you and your client that issuing an immediate denial in anticipation of litigation, without first performing a thorough, fair, and objective investigation, is a direct breach of your statutory and regulatory duties in the State of California.

By electing Civil Code § 47(b) and CCP § 425.16 as its shields in the April 9, 2026 Anti-SLAPP MPAs filed on both dockets,

Porter Scott pleaded on behalf of CSAA that the February 25, 2021 denial letter was issued in "anticipation of litigation" as a "prompt denial position" and as a "statutory and regulatory requirement," which admissions independently ::

- (i) violate 10 C.C.R. § 2695.7(d) as a matter of law,**
- (ii) trigger Ins. Code § 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13),**
- (iii) forfeit the Wilson genuine-dispute defense by reliance on hindsight, and**
- (iv) supply the Bus. & Prof. Code § 17200 predicate under Zhang,**

all of which together constitute a breach of the implied covenant of good faith and fair dealing enforceable against CSAA regardless of the defense's asserted privilege. And gratefully now I'm bringing in the state board of insurance to ensure that all of the records at CSAA are properly accounted for, including the imaginary file that they claim they have for me. Because you can't manufacture records in the past, you see it takes two parties to certify it, and even if you guys manufacture one just like your imaginary concluded investigation documents, the other side is not gonna have a record of you subpoena or request, we would see some kind of transaction number or even some kind of debit to an account to pay for the records and I'm gonna go on on a line here and we're gonna probably find that you don't have that. And not having that, when you say that you were anticipating litigation, well, we know what laws that violet don't we.

Quotation 1. Case 802 Anti-SLAPP MPA, p. 8 (Section D.1: "CSAA's 'Liability-Claim Denial Letter' is Protected Conduct")

Porter Scott typed, verbatim:

"Here, CSAA reviewed the available evidence, including the statements of its Insured, and reached a prompt denial position. This is protected conduct in anticipation of litigation. Indeed, CSAA had a duty to promptly investigate Plaintiff's then-pending claim, as codified in Insurance Code § 790.03 and 10 Cal. Code Regs. § 2695.7 This is precisely what CSAA did: comply with its statutory duty and issue a denial letter with an understanding that 'litigation [was] imminent' unless Plaintiff's claim was accepted. (Aronson, supra, 58 Cal.App.4th at 271.) This is a protected pre-litigation statement, protected by the Anti-SLAPP statute."

(Case 802 MPA, p. 8; extraction lines 1216-1248.)

Quotation 2. Case 802 Anti-SLAPP MPA, p. 9 (same section, second half)

"CSAA's issuing of a liability denial letter is a statutory and regulatory requirement in the context of a submitted claim and pending litigation. . . . [T]he issuance of that denial letter, be it false, negligently issued, fraudulent, or otherwise, is protected conduct and subject to the Anti-SLAPP statute's protections. This is especially so as CSAA knew that this denial was likely 'to initiate official action' on Plaintiff's part in filing his lawsuit. (Kashian, supra, 98 Cal.App.4th at 913.)"

(Case 802 MPA, pp. 8-9; extraction lines 1298-1339.)

Quotation 3. Case 802 Anti-SLAPP MPA, p. 7 (framing paragraph for the entire motion)

"Plaintiff's allegations are solely based on i) CSAA's pre-litigation investigation and claim denial of Plaintiff's (a third party's) claim; and ii) CSAA's position as maintained by its insurance defense counsel, in litigation both pre-trial and during trial."

(Case 802 MPA, p. 7; extraction lines 1085-1104.)

Quotation 4. Case 801 Anti-SLAPP MPA, p. 10 ("duty to defend" recital)

"Not only is this not actionable, but these acts are wholly within the litigation privilege and required under the Insurance Code and the insurance policy, as a part of CSAA's duty to defend its Insured."

(Case 801 MPA, p. 10; extraction lines 1380-1388.)

Quotation 5. Case 801 Anti-SLAPP MPA, p. 9 ("hindsight vindication" argument)

"Notably, the jury agreed with CSAA and also found that the Insured was not negligent, which, incidentally, reinforces the validity of CSAA's position of liability in its February 2021 denial letter."

(Case 801 MPA, p. 9; extraction lines 1361-1365.)

Quotation 6. Case 801 Anti-SLAPP MPA, p. 9 (internal-investigations recital)

"Courts have long found 'internal investigations' conducted in anticipation of litigation to be protected activity under the Anti-SLAPP statute."

(Case 801 MPA, p. 9; extraction lines 1286-1298.)

Under California insurance law, the covenant of good faith is not a preference; it is an implied statutory and common-law term of every policy. (Comunale v. Traders & General Ins. Co. (1958) 50 Cal.2d 654, 658-659; Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818-819.) **That covenant requires the carrier to conduct a "thorough, fair, and objective investigation" before taking any adverse claim position. (Egan, 24 Cal.3d at 819; 10 C.C.R. § 2695.7(d).)** A denial issued twenty-one days after the collision, before any communication with the claimant, before the 911 audio, computer-aided dispatch, body-

worn camera, and police supplementals are gathered, is structurally the opposite of that duty: it is a position taken without a file.

Under the Fair Claims Settlement Practices Regulations, the carrier must first acknowledge (10 C.C.R. § 2695.5(b)), disclose (§ 2695.4(a)), and investigate (§ 2695.7(d)) before it may deny. ***Skippping the first three and going straight to denial is a per se breach of the regulatory floor and independently triggers Ins. Code § 790.03(h)(3), (h)(5), and (h)(13).***

Under common law, ***the same act is bad faith because the covenant obliges the insurer to give the claimant's interests "at least as much consideration" as its own*** (Comunale, 50 Cal.2d at 659) and forbids "unreasonable" denial of benefits (Neal v. Farmers Ins. Exchange (1978) 21 Cal.3d 910, 921-922; Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713, 723).

And under agency and contract law, ***a party that pre-commits to an adversarial posture before dialogue destroys the mutual-exchange premise on which the covenant rests.*** That is the definition of bad faith in every legal register that governs the transaction.

The statute of limitations on my fraud and Insurance Code causes of action runs from the date I discovered the concealed conduct, not from the date of the collision. Under the delayed-discovery rule (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807 to 808; Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1109 to 1111), the clock does not start until the plaintiff has, or reasonably should have, discovered the wrongful conduct and its factual basis. That date is the date PSA Law informed the court, on the record, that CSAA and its retained counsel had never retrieved the 911 audio, the CAD entries, the body-worn camera footage, or the SFPD supplementals before issuing the February 25, 2021 twenty-one day denial letter.

That on-record statement is itself the admission I need. It establishes, out of your own client's mouth, that CSAA closed the file and issued a denial without conducting the "thorough, fair, and objective investigation" required by 10 C.C.R. § 2695.7(d). It is also chargeable to CSAA under Evidence Code § 1222 and the agency principles CSAA itself pleaded when it typed, in the 801 Anti-SLAPP MPA at page 10, that panel counsel's work was "required under the Insurance Code and the insurance policy, as a part of CSAA's duty to defend its Insured."

You cannot have this both ways. Either the investigation was complete and the twenty-one day denial letter was lawful, or the investigation was never done and the denial was a "prompt denial position taken in anticipation of litigation," as the 802 Anti-SLAPP MPA at page 8 admits. CSAA has now committed to the second position on the docket. That admission lands squarely on Insurance Code § 790.03(h)(1), (h)(3), (h)(5), (h)(6), and (h)(13), the Fair Claims Settlement Practices Regulations at 10 C.C.R. § 2695.4(a), § 2695.5(b), and § 2695.7(d), the Egan investigation duty (24 Cal.3d 809, 819), the Wilson time-of-denial rule (42 Cal.4th 713, 723 to 724), and the common-law covenant of good faith and fair dealing implied by Civil Code §§ 1655 and 1656.

These matters were never adjudicated. This is not the same lawsuit.

On the "claim splitting" objection. California follows the primary-rights doctrine, not the transactional test. (Crowley v. Katleman (1994) 8 Cal.4th 666, 681 to 682; Mycogen Corp.

v. Monsanto Co. (2002) 28 Cal.4th 888, 904; Bay Cities Paving & Grading, Inc. v. Lawyers' Mutual Ins. Co. (1993) 5 Cal.4th 854, 860.)

A cause of action is defined by the violation of a single primary right, and different primary rights produce different causes of action even where the underlying facts overlap. A single wrongdoer can and often does invade several primary rights in the course of the same course of conduct. Each invasion is a separate action.

A plaintiff harmed in multiple ways is therefore entitled to pursue those wrongs in the order and sequence that best vindicates each right. That is neither claim splitting nor piecemeal abuse. It is the doctrine California adopted precisely to permit selective adjudication. A plaintiff may (i) adjudicate the primary right that has crystallized first, (ii) preserve the primary rights that require discovery not yet obtained, and (iii) refuse to bundle unripe or independent causes into a single proceeding where doing so would prejudice proof or waive statute-of-limitations protections that run separately for each right.

That is the posture here. The primary right invaded in the personal-injury action was the right to be free from negligent operation of a motor vehicle. The primary rights invaded by CSAA's post-collision claim handling are different: the regulatory right protected by Insurance Code § 790.03 and 10 C.C.R. § 2695, the contractual right protected by the implied covenant of good faith and fair dealing, and the statutory right protected by Business and Professions Code § 17200 under Zhang v. Superior Court (2013) 57 Cal.4th 364, 384 to 385. Those primary rights were not before the trial court in the underlying action. They could not have been adjudicated there, and they were not adjudicated there. Res judicata does not attach. Collateral estoppel does not attach. There is no bar.

To be clear about what your client admitted, and what it means: CSAA has told the court that the February 25, 2021 letter was a "prompt denial position" issued "in anticipation of litigation" as a "statutory and regulatory requirement." That is not a defense. That is the definition of the violation.

The letter cannot simultaneously be an act of neutral compliance with the Fair Claims Settlement Practices Regulations and an act of adversarial litigation posturing. It is one or the other. CSAA elected the second characterization on the docket, and that election is a judicial admission binding under Evidence Code § 1220 and Code of Civil Procedure § 2033.410.

Bearing false witness in a judicial proceeding is not shielded conduct. It is the very thing Civil Code § 47(b) is designed to expose through cross-examination, not conceal from scrutiny.

Regards, Rosario

Enjoy.

F.D. Rosario

On Mon, Jul 6, 2026 at 6:19 PM Dylan Rosario <soltrinox@gmail.com> wrote:

Mr. O'Connell:

I will keep this brief and limited to correcting factual and legal inaccuracies in your letter. Silence should not be read as agreement with any characterization below.

1. The new complaint is not a "third-party bad faith" action. It does not sue on Insurance Code section 790.03(h) as a private right of action, and it does not seek personal injury damages. It pleads fraud, concealment, UCL, aiding and abetting, restitution, and declaratory relief based on CSAA's non-communicative institutional failure to obtain foundational evidence (911 audio, body-worn camera, CAD) before certifying a "concluded" investigation. Section 790.03(h) appears only as the standard of care under Moradi-Shalal and Zhang. Your "nearly impossible cause of action" label describes a claim I did not bring.

2. The prior orders did not adjudicate these claims, and no court has told me I "can't sue CSAA." The July 1, 2026 order struck a communication-framed FAC on Civil Code section 47(b) litigation privilege and denied intra-case amendment under Simmons. It did not reach 10 CCR section 2695.7(d), section 790.03(h) as standard of care, or the fraud, UCL, and declaratory primary rights pleaded now. Simmons is an intra-case amendment rule only. (Contreras v. Dowling (2016) 4 Cal.App.5th 774, 791; JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477 to 478.)

3. Raising res judicata and collateral estoppel is not an admission of frivolousness. Addressing preclusion in advance applies the primary-right doctrine. Under Crowley v. Katleman (1994) 8 Cal.4th 666, 681 to 682, and Mycogen (2002) 28 Cal.4th 888, 904, preclusion bars only the primary right actually adjudicated. Anticipating a defense and defeating it is the opposite of conceding it.

4. CCP 391(b)(2) does not fit these facts. That subdivision requires relitigation after a matter has been "finally determined." The 801 and 802 anti-SLAPP orders are on appeal and are therefore not final. The new complaint asserts different primary rights that were never adjudicated, so it is not relitigation of a determined issue. Post-trial motions and appeals within a single action are not separate "litigations" that count toward vexatious-litigant status.

5. You conflate three distinct matters with different defendants and different primary rights. The personal injury action concerned the driver. The regulatory and fraud claims concern CSAA's claims-handling conduct at its Walnut Creek operations. These are not "the same underlying matter."

6. The costs, comparative-fault, and "100% fault" statements do not bear on this action. The new complaint does not relitigate the collision or the personal injury verdict. Its subject is CSAA's failure to obtain evidence it later admitted was "readily obtainable," including the insured's own recorded 911 statement.

7. The personal accusations are unsupported and are disputed. Your assertions of "racist and misogynistic behavior" carry no record citation and are denied. Your claim that prior counsel told you they could not put me on the stand "because of a fraud on the court" describes privileged communications you would have no proper basis to know, is hearsay,

and is denied. Besides the fact that my prior council tried to sell me out for less than what you offered two days later at CSAA. Maybe you didn't know that my prior council who made these claims against me because it would illustrate their failure to pursue my case diligently I think that's how the court looks at it when an attorney violates the professional code of conduct, however, it is when you ask to file a malpractice lawsuit because trust me, I have enough against Dolan and they have a special place on the shelf for when that case gets put together, but I'm going to make sure that we end up adjudicating everything with you first at CSAA.

8. Venue. The new action is filed in Contra Costa County, where CSAA maintains its principal place of business and administered the claim. It does not add to any San Francisco docket.

I disagree that this filing is frivolous or brought in bad faith. It is grounded in Crowley, Mycogen, Baral, Park, Bonni, and Kimmel, and it pleads primary rights no court has decided. I reserve all rights, including as to any 128.5 or 391 motion, and note that a motion filed on the inaccurate premises above would itself lack merit.

Consider this my meeting confirm Chad

Respectfully,

Franciscus Dylan Rosario,
Plaintiff in Pro Per

On Mon, Jul 6, 2026 at 6:00 PM Chad S. Tapp <ctapp@porterscott.com> wrote:

Mr. Rosario,

It's against my better judgment to respond. However, I feel compelled since this is beyond anything I've witnessed in decades of practice.

Please accept this as a brief response to simply frame things for our CCP 128.5 motion for frivolous pleadings and moving to have you declared a vexatious litigant, which will be filed if you pursue yet another complaint related to the same underlying matter.

Brief Facts

You filed the original complaint seeking personal injury damages for riding the wrong direction in traffic on a scooter.

CSAA investigated and determined there was no liability adverse to its insured driver since, at least in part, you were going the wrong direction on your scooter. Simple.

A jury of your peers agreed that you caused your own injuries because of your inability to prudently ride a scooter. The Court awarded \$76K in costs to the defense.

You filed a Motion for New trial and then an Appeal on the underlying matter after the adverse verdict. These efforts all failed.

Next, you sued CSAA for basically third-party bad faith (a nearly impossible cause of action in California). During the course of the litigation, you engaged in racist and misogynistic behavior, intentionally demeaning staff counsel Ms. Navaratnasingham. Ironically, all the while pretending to be a victim of bad faith handling by CSAA. You then lost on an Anti-SLAPP and now will owe even more in fees and costs.

Meet & Confer per CCP section 128.5

Despite the above, you've had an epiphany about the new "evidence" you uncovered during the CSAA litigation and wish to sidestep the most recent ruling with a new pleading. This is the definition of frivolous. You've had many chances in court and have lost them all. To pretend you've been deprived of your ability to present your case is a joke and you've lost all credibility in the process.

You have not been a victim of anything except your own bad judgment and poor decision-making. The above is only a small example of the filings by you and you've successfully overburdened both my office and SF County Superior Court. It would take me at least 10 hours to summarize all of your filings. In fact, if they were printed, we would have multiple volumes the size of the old Yellow Pages.

Your newly threatened complaint as described above is frivolous and being done in bad faith. It is completely devoid of merit, and you know it. In fact, you basically admit it in your threats below whereby you preemptively raise *res judicata* and collateral estoppel defenses. What is it you're trying to accomplish? There are people truly deserving of a day in court and basic due process who are being denied that right because a few people like you can backlog the entire system. Frankly, the entire underlying trial was a waste of time and resources since it was so obvious that you had 100% comparative fault.

Every person you've encountered has wronged you in your own mind: CSAA, the court, the jury, your prior lawyer, defense counsel, my firm, and even our own legal secretaries have caused you this massive injustice? Please take a close look in the mirror and reevaluate your decision to file another complaint. Bear in mind that your prior counsel actually informed defense counsel that they couldn't in good conscience put you on the witness stand since you were pursuing a fraud on the court. So, you represented yourself and started your long losing streak.

Meet & Confer for Vexatious Litigant Status

Despite the above, you've had an epiphany about the "evidence" you uncovered during the CSAA litigation and wish to sidestep the most recent ruling with a new pleadings. This is the definition of frivolous. You've had many chances in Court and have lost every battle. You've also repeatedly asserted the same allegations against CSAA specifically and have been told by the court that you can't pursue your lawsuit against them.

Thankfully, CCP section 391 gives us some guidance. If declared a vexatious litigant per this statute, the court can have you post a financial bond to cover the defendant's legal fees if the case is lost. This is particularly compelling where you already owe unpaid fees and costs ordered by the court. The judge can also issue a pre-filing order, which means you must get special permission from the presiding judge before you can file any new lawsuit.

CCP section 391 (b) (2) "After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined ..."

The above provision is directly on point, and we will file a motion accordingly if you pursue CSAA any further in a separate matter arising from the same underlying, operative facts.

Please accept this as our meet and confer attempt, and also our final plea to stop the incessant, AI generated frivolous filings and constant barrage of emails. We will not be responding any further on this topic and will proceed as outlined above if you file a new complaint.



Chad S. Tapp

Attorney | Shareholder

2180 Harvard Street | Suite 500 | Sacramento, CA 95815
T| 916.929.1481 x 541 F| 916.927.3706

www.porterscott.com

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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Monday, July 6, 2026 3:44 PM

To: Tyler O'Connell <toconnell@porterscott.com>; Chad S. Tapp <ctapp@porterscott.com>;
Stephanie Hengl <shengl@porterscott.com>; Serena Blithe <sblithe@porterscott.com>

Subject: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

*****External email*****

Date: July 6, 2026

From:

Franciscus Dylan Rosario, Plaintiff in Pro Per
7624 Melody Dr.
Rohnert Park, CA 94928

To:

Tyler J. O'Connell, Esq.
Porter Scott, A Professional Corporation
2180 Harvard Street
Sacramento, CA 95815
Counsel for Defendant CSAA Insurance Exchange

Re: *Franciscus Dylan Rosario v. CSAA Insurance Exchange*, Case No. CGC-25-631802

Order: Order Granting Special Motion to Strike First Amended Complaint and Denying Other Relief (filed July 1, 2026)

Dear Mr. O'Connell and Porter Scott Team:

This letter puts CSAA and its counsel on notice of Plaintiff's position on the scope of the July 1, 2026 anti-SLAPP order in CGC-25-631802 and Plaintiff's retained right to pursue unadjudicated causes of action in a new action. Plaintiff provides this notice in advance of filing so that any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection can be evaluated now, against the order's four corners and controlling California authority, rather than raised reflexively later.

I. What the July 1, 2026 Order Actually Decided

Read on its face, the order is narrow. Department 301 held only that:

1. **Injury framing.** Plaintiff was "damaged because the letter led [him] to believe that evidence had been collected and preserved and CSAA had made an adequate investigation," and "the FAC pleads that plaintiff was harmed by the representation."
2. **Prong one.** The FAC "arises from protected activity" because "Plaintiff's action is based on defendant's litigation conduct" (FAC paragraph 22F), and the pre-litigation denial letter also implicates the anti-SLAPP statute (FAC paragraphs 1, 2, 4, and 22D).
3. **Prong two.** In one sentence: "Plaintiff cannot establish his claims because the litigation privilege bars them." Civil Code section 47(b) was extended to "defendant's defense conduct including the prelitigation denial letter."
4. **Amendment.** Denied within Case 802 under *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073.
5. **Everything else.** Demurrer, motion to strike, motion to compel, and related motions were taken off calendar as moot.

The court cited exactly five FAC paragraphs: 22F, 1, 2, 4, and 22D. That citation set defines the universe of FAC content the order actually engaged. No claim-by-claim gravamen analysis was performed under *Baral v. Schnitt* (2016) 1 Cal.5th 376, or *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995. The court did not adjudicate:

- 10 CCR section 2695.7(d) (reasonable investigation);
- Insurance Code section 790.03(h) (unfair claims practices);
- Civil Code section 1710(3) (fraud by concealment);
- Constructive fraud under *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, and *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713;
- Negligence per se under Evidence Code section 669;
- UCL predicates under Business and Professions Code section 17200; or
- Declaratory relief under Code of Civil Procedure section 1060.

The court struck a communication-framed theory. It did not, and on the record before it could not, strike institutional-omission theories that were never pleaded and never analyzed under a *Park* gravamen lens.

II. *Res Judicata* Does Not Bar a New Action on Different Primary Rights

California uses the primary-right doctrine. Claim preclusion bars a second action only where it seeks vindication of the same primary right the first proceeding actually adjudicated. *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904. The primary right is defined by the specific legal injury, not by shared facts or a shared defendant. *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797-798; see *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1097-1099.

The primary right adjudicated in Case 802 is the right to be free from harm caused by CSAA's communications (the denial letter and litigation conduct). That right was extinguished on privilege grounds. The following are separate primary rights and were not adjudicated:

Primary right (new complaint)	Why it is not the 802 primary right
Freedom from certifying a "concluded" investigation without obtaining 911 audio, BWC, and CAD records (10 CCR section 2695.7(d))	Institutional omission complete before any letter describes it
Freedom from concealment of an empty file (Civil Code section 1710(3))	Actionable silence, not the words in the denial
Freedom from constructive fraud in the special insurer-claimant relationship (<i>Egan; Wilson</i>)	Breach of fiduciary and regulatory duty
Freedom from regulatory breach as negligence per se (Evid. Code section 669)	Standard-of-care violation
Freedom from unfair claims practices (Ins. Code section 790.03(h))	Failure to investigate, settle, or explain
UCL unlawful, unfair, or fraudulent business practices (Bus. & Prof. Code section 17200)	Predicated on regulatory breach
Declaratory relief (CCP section 1060)	Not speech; not petitioning

Issue preclusion is also unavailable. Under *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341, an issue must have been "actually litigated" and "necessarily decided." The July 1 order did neither with respect to any of the primary rights listed above.

III. Anti-SLAPP Reaches Allegations, Not Cases

Section 425.16 targets "allegations of protected activity," not entire cases and not causes of action whose gravamen is non-communicative institutional conduct. *Baral*, 1 Cal.5th at 393-396; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060; *Bonni*, 11 Cal.5th at 1009-1012. A claim survives if the speech or petitioning activity is "evidence of liability" rather than "the wrong itself." *Park*, 2 Cal.5th at 1060.

The July 1 order cited *Park* and then collapsed prong two into a single privilege ruling about the denial letter and litigation conduct. It did not perform the claim-by-claim gravamen inquiry *Bonni* requires. That procedural choice, not any merits determination, is what leaves the non-communicative field open.

Section 47(b) likewise reaches communications, not the underlying non-communicative conduct they may later describe. *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209-213; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1058-1062; *White v. Western Title Ins. Co.* (1985) 40 Cal.3d 870, 887-888; *Trilogy Plumbing, Inc. v. Navigators Specialty Ins. Co.* (2020) 50 Cal.App.5th 920, 933. Mishandling of the claims process, including failure to investigate before certifying an investigation as "concluded," is not protected petitioning even when litigation follows.

The gravamen of the forthcoming action is a sequence of institutional acts between February 4 and February 25, 2021: CSAA did not obtain foundational objective evidence; CSAA certified its investigation as "concluded" without it; CSAA denied without attempting settlement although the insured's admission made liability reasonably clear; CSAA concealed the empty file until discovery events in the underlying trial. None of those acts is speech. The denial letter is downstream evidence, not the tort.

IV. *Simmons* Bars Amendment in Case 802, Not a New Action

Simmons is an intra-case rule. It bars amendment within the same case once an anti-SLAPP motion is granted. It does not bar a new action on different primary rights with different elements. *Contreras v. Dowling* (2016) 4 Cal.App.5th 774, 791 (bar directed at amendments designed to subvert the strike within the same case); *JKC3H8, Inc. v. Colton* (2013) 221 Cal.App.4th 468, 477-478 (non-targeted claims survive). Plaintiff accepts the *Simmons* bar as to Case 802. The bar does not extend to a separately filed action on different primary rights.

V. Use of CSAA's Anti-SLAPP Record as Evidence, Not as Preclusion

CSAA's anti-SLAPP briefing recited the falsity-when-made and failure-to-obtain facts, then asserted immunity. On a new complaint pleading different primary rights, those recitals are party admissions usable to prove the underlying institutional tort under Evidence Code sections 1220 and 1222 and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987. They are not preclusion weapons against a primary right the court never adjudicated.

VI. Design of the Forthcoming Complaint

The forthcoming complaint:

1. Accepts the court's category ruling as to the FAC paragraphs it struck and omits them;
2. Disavows communication as the gravamen of liability;
3. Passes the removal test, meaning that every count stands on institutional acts and omissions if every communication reference is deleted;
4. Uses the denial letter, MILs, and trial statements only as documentary evidence under *Park* and *Kimmel*, not as the wrong;
5. Pleads accrual and tolling grounded in concealment, with an April 16, 2025 discovery anchor, which the July 1 order also did not adjudicate.

This is not a "refile in disguise" and is not sham pleading. It is the ordinary and legally required consequence of a narrow anti-SLAPP ruling entered in a mixed-conduct universe, which is the universe *Baral*, *Park*, and *Bonni* were written to govern.

VII. Closing

The July 1, 2026 order does three things for future litigation and only three: it strikes a communication-framed First Amended Complaint; it applies sections 425.16 and 47(b) to that framed theory; and it denies intra-case amendment under *Simmons*. It does not adjudicate CSAA's failure to obtain foundational evidence, does not decide regulatory breach under 10 CCR section 2695.7(d) or Insurance Code section 790.03(h), does not decide fraud, concealment, UCL, settlement failure, or declaratory relief on non-communicative grounds, and does not hold that *res judicata* bars different primary rights.

Under *Crowley*, *Mycogen*, *Boeken*, *Lucido*, *Baral*, *Park*, *Bonni*, and *Kimmel*, Plaintiff retains the right to file a new complaint that adjudicates CSAA's institutional failure of duty on its own non-communicative terms. Plaintiff will file that complaint in due

course. Plaintiff is also coordinating with the California Department of Insurance regarding the underlying regulatory issues, and is prosecuting appellate review of the orders in Cases 801 and 802 under California Rules of Court, rule 8.104. Appellate review is de novo as to both prongs, so the 801 and 802 orders remain live.

Plaintiff's position, stated plainly: no amount of privilege immunizes fraud, and discovery of the concealed conduct during a related proceeding does not confer retroactive immunity on the underlying acts. The next action is not about what CSAA said. It is about what CSAA did and failed to do, specifically the failure to investigate, the certification that an investigation had been completed when it had not, and the concealment of that failure. None of those acts is communicative. All of them are in the next complaint. Any *res judicata*, *Simmons*, sham-pleading, or "FAC refile" objection will be evaluated against the authorities and record citations above.

Conduct yourself accordingly.

/s/ Franciscus Dylan Rosario
Franciscus Dylan Rosario
Plaintiff in Pro Per

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EXHIBIT 2

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related to CGC-21-594102)

Case Management Conference: May 27,
2026 at 10:30 a.m., Department 610, 400
McAllister Street, San Francisco, CA
94102-3680

**AMENDED COMPLAINT FOR
DAMAGES AND INJUNCTIVE RELIEF**

1. FRAUD AND DECEIT (Civ. Code §§
1709-1710)
2. VIOLATION OF BUS. & PROF. CODE §
17200 (UCL)

DEMAND FOR JURY TRIAL

INTRODUCTION AND LIMITED THEORY OF THE CASE

1. Plaintiff brings this action on a narrow, document-anchored theory: a pre-litigation business misrepresentation by Defendant CSAA Insurance Exchange in a liability-claim denial letter, **made**

1 **knowingly or recklessly and used as institutional leverage to discourage or curtail an injured**
2 **claimant's pursuit of a valid claim (a deny–delay–defend claim-suppression tactic).**

3 2. The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
4 in substance, that it had “concluded” its investigation and “concluded” its insured was not liable
5 (the Denial Letter).

6 3. Plaintiff alleges that, in context and ordinary meaning, the Denial Letter represented a completed
7 investigative fact, namely that CSAA had already performed and completed an investigation suf-
8 ficient to justify a categorical liability denial as of the letter date, **and that the representation of**
9 **investigative finality was intended and reasonably understood to signal futility—i.e., that fur-**
10 **ther pursuit would be pointless unless Plaintiff undertook burdens CSAA represented had**
11 **already been completed.**

12 4. Plaintiff alleges that the Denial Letter representation of a “concluded” investigation was mate-
13 rially false when made because, at that time, CSAA had not obtained or reviewed **basic, readily**
14 **obtainable, and foundational objective liability evidence** for the incident, including:

- 15 • 911 audio;
- 16 • body-worn camera footage; and
- 17 • computer aided dispatch records.

18 As alleged below, these categories of foundational objective evidence were generated contempora-
19 neously with the February 4, 2021 incident and were identifiable and obtainable during the period
20 CSAA represented its investigation had already “concluded.”

21 5. Plaintiff further alleges that the falsity of the Denial Letter is corroborated by CSAA's later
22 claim activity reflecting post-denial pursuits of the same foundational objective liability evidence.

23 6. Plaintiff alleges reliance and resulting economic injury in two connected categories:

- 24 • discrete out-of-pocket procurement and investigation expenses incurred to obtain the founda-
25 tional objective evidence that CSAA represented had already been investigated; and
- 26 • fees and costs incurred in the related third-party litigation that Plaintiff alleges was reason-
27 ably and proximately forced by the Denial Letter misrepresentation, **because the misrep-**
28 **resentation shifted the burden of foundational evidence collection and authentication**

1 **onto Plaintiff as the price of continuing**, and that are sought here as damages under the
2 tort-of-another doctrine described in *Prentice v. North Am. Title Guar. Corp.*

3 7. Plaintiff pleads attorney-fee damages with segregation and proof discipline, and does not seek
4 to recover unrecoverable or unsegregated fees. Plaintiff seeks third-party litigation fees and costs,
5 if any, only to the extent they are proximately caused by CSAA's tortious conduct and are proven
6 with competent evidence, segregation, and reasonableness.

7 8. Plaintiff further alleges that he incurred additional economic loss in the form of lost earnings,
8 diminished earning capacity, and lost productive time attributable to the incremental procurement,
9 review, authentication, and litigation-support burdens created by CSAA's Denial Letter misrepresentation.
10 Plaintiff pleads these categories separately from attorney-fee damages and will prove
11 them with competent, non-speculative evidence, including documentation of time expended, economic
12 value of that time, and the causal connection to the fraud-induced burdens alleged herein.

13 **JURISDICTION AND VENUE**

14 9. This Court has jurisdiction over this action because the causes of action asserted herein arise
15 from conduct occurring in California and involve Defendants who do business in California.

16 10. Venue is proper in San Francisco County because the events and omissions giving rise to the
17 claims occurred, in substantial part, in San Francisco County, and Defendant CSAA does business
18 in this County.

19 **PARTIES**

20 11. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in Sonoma County,
21 California.

22 12. Defendant CSAA INSURANCE EXCHANGE ("CSAA") is a California reciprocal insurer
23 and, upon information and belief, does business in California, including in San Francisco County.

24 13. Plaintiff is ignorant of the true names and capacities of Defendants sued herein as DOES
25 1 through 50, inclusive, and therefore sues these Defendants by such fictitious names. Plaintiff
26 will amend this Complaint to allege their true names and capacities when ascertained. Plaintiff is
27 informed and believes, and based thereon alleges, that each Doe Defendant is legally responsible
28 in some manner for the occurrences alleged and that Plaintiff's damages were proximately caused

1 by their conduct.

2 **FACTUAL ALLEGATIONS**

3 **THE COLLISION AND CLAIM SUBMISSION**

4 14. On or about February 4, 2021, Plaintiff was struck by a vehicle driven by CSAA's insured in
5 connection with the related matter CGC-21-594102.

6 15. Plaintiff made a bodily injury liability claim to CSAA as the liability insurer for its insured.

7 **THE FEBRUARY 25, 2021 DENIAL LETTER**

8 16. On February 25, 2021, CSAA mailed Plaintiff the Denial Letter stating, in substance:

9 "We have concluded our investigation... [and] concluded that our insured is not
10 liable."

11 17. Plaintiff alleges the Denial Letter represented that CSAA had already completed its investi-
12 gation as of February 25, 2021, and had reached its liability conclusion based on that completed
13 investigation.

14 18. Plaintiff alleges the Denial Letter statement that the investigation was "concluded" was ma-
15 terially false when made because, at the time of the Denial Letter, CSAA had not obtained and
16 reviewed foundational objective liability evidence, including:

- 17 • the 911 call audio;
- 18 • body-worn camera footage; and
- 19 • computer aided dispatch records.

20 Plaintiff alleges that the timing and obtainability facts supporting this falsity are set forth in para-
21 graphs 19 through 22, below.

22 **CHRONOLOGY OF PRE-DENIAL INVESTIGATION AND OBTAIN- 23 ABILITY**

24 19. Plaintiff alleges that the collision occurred on or about February 4, 2021. Plaintiff further
25 alleges that, because law enforcement responded and the incident was reported through emergency
26 channels, foundational objective incident records were generated contemporaneously in the or-
27 dinary course, including a 911 call recording, computer aided dispatch ("CAD") logs reflecting
28 the dispatch and response sequence, and officer body-worn camera footage ("BWC") capturing

1 on-scene statements and observations.

2 20. Plaintiff alleges that CSAA's Denial Letter dated February 25, 2021 necessarily represented
3 that CSAA had completed whatever investigation it claims to have performed during the approx-
4 imately three-week period between February 4, 2021 and February 25, 2021. Plaintiff further
5 alleges that the 911 recording and CAD logs were readily identifiable, requestable, and obtainable
6 within that time period through routine insurer claim-handling practices and ordinary third-party
7 record requests, and that BWC evidence was likewise identifiable and obtainable through appro-
8 priate requests, subpoenas, and/or law-enforcement record channels where liability was contested
9 and police responded.

10 21. Plaintiff further alleges that the practical obtainability of the 911 recording is corroborated by
11 later objective record history: Plaintiff's then-counsel (Dolan Law Firm) obtained the 911 audio
12 recording on May 12, 2021, as reflected in sworn hearing testimony in the Underlying Action.
13 (Hearing Tr., Feb. 18, 2025, p. 31, ll. 22–24.) Plaintiff alleges that the same categories of foun-
14 dational objective evidence were obtainable during the period CSAA represented its investigation
15 had already “concluded,” and that CSAA's failure to obtain and review such evidence before issu-
16 ing a categorical denial renders the “investigation concluded” representation materially false or, at
17 minimum, recklessly made without reasonable grounds.

18 **OBJECTIVE CLAIM ACTIVITY AFTER THE DENIAL LETTER**

19 22. Plaintiff alleges that CSAA's post-denial claim activity reflects subsequent efforts to obtain the
20 same foundational objective liability evidence identified above—i.e., 911 audio, body-worn camera
21 footage, and computer aided dispatch records—corroborating that CSAA's investigation was not
22 actually concluded when CSAA issued the Denial Letter, **and corroborating that CSAA's “in-**
23 **vestigation concluded” representation conveyed investigative finality that was untrue when**
24 **made.**

C-1. CORROBORATION OF SCIENTER AND INSTITUTIONAL CLAIM-SUPPRESSION PURPOSE (DDD)

22A. Plaintiff alleges that describing an investigation as “concluded” in a categorical liability denial is not a neutral phrase; it is a representation of investigative finality that carries foreseeable coercive force. A reasonable consumer understands “concluded investigation” to mean the insurer has already obtained and evaluated basic objective incident records typically used to verify liability—especially where such records are readily obtainable from public agencies or routine channels.

22B. Plaintiff alleges CSAA’s failure to obtain and review the foundational objective liability records identified above before issuing a categorical “investigation concluded / not liable” denial supports an inference of scienter: either CSAA actually knew the investigation was not complete when it represented otherwise, or CSAA made the representation recklessly without reasonable grounds for believing it true, because the existence and relevance of such records are obvious and central to a reasonable liability investigation.

22C. Plaintiff further alleges the purpose and natural consequence of falsely representing investigative finality is institutional claim suppression—i.e., to shift the cost and delay of basic evidence collection to the claimant, increase the claimant’s burden to continue, and induce abandonment, curtailment, or discounted resolution. Plaintiff alleges this is consistent with a deny–delay–defend pattern in which the insurer creates leverage through delay and burden-shifting rather than through a good-faith investigation.

22D. Plaintiff alleges that CSAA’s later claim activity corroborates the falsity and further corroborates CSAA’s state of mind at the time of the Denial Letter, because post-denial efforts to obtain the same foundational objective records are inconsistent with the claim that CSAA had already “concluded” its investigation as of February 25, 2021.

22E. Plaintiff pleads paragraphs 22A–22D as corroboration of CSAA’s knowledge, recklessness, and institutional purpose at the time of the Denial Letter, and not as an attempt to litigate privileged communications or to transform this action into a separate “fraud on the court” cause of action.

1 **RELIANCE AND ECONOMIC INJURY**

2 23. Plaintiff alleges he reasonably and justifiably relied on CSAA's written statement that its
3 investigation was "concluded" by understanding it, in ordinary consumer meaning, to represent
4 that CSAA had already obtained and reviewed foundational objective liability evidence before
5 issuing a categorical denial—**not merely that CSAA had reached an opinion, but that CSAA**
6 **had completed the basic investigative steps that would justify stating the investigation itself**
7 **was finished.**

8 24. Plaintiff alleges that, as a direct and proximate result of CSAA's misrepresentation, Plain-
9 tiff incurred discrete out-of-pocket procurement and investigation expenses to obtain records and
10 evidence that CSAA represented had already been investigated, including:

- 11 • fees paid to obtain public records and related materials;
- 12 • fees paid for copying, certification, and retrieval; and
- 13 • fees paid for transcription and review of obtained audio and video.

14 **FORCED THIRD-PARTY LITIGATION AND PRENTICE ATTORNEY-** 15 **FEE DAMAGES**

16 25. Plaintiff alleges that CSAA's Denial Letter misrepresentation reasonably and foreseeably
17 forced Plaintiff into third-party litigation in CGC-21-594102 to vindicate his claim and to obtain
18 and authenticate foundational objective evidence relevant to liability, **because CSAA's misrepre-**
19 **sentation and continuing denial position functionally required Plaintiff to undertake record**
20 **procurement and authentication burdens CSAA represented had already been completed,**
21 **thereby increasing delay and pressure to give up.**

22 26. Plaintiff alleges that the third-party litigation generated incremental evidence procurement and
23 authentication burdens, and that Plaintiff incurred fees and litigation costs in that third-party action
24 that would not have been incurred but for CSAA's Denial Letter misrepresentation.

25 27. Plaintiff alleges that the fees and costs incurred in the third-party litigation are sought here
26 as tort damages under the tort-of-another doctrine described in Prentice, because CSAA's tortious
27 conduct caused Plaintiff to incur fees in litigation with another party.

1 28. Plaintiff does not seek attorney fees in this action as a prevailing-party fee award. Plaintiff
2 seeks third-party litigation fees and costs as consequential damages proximately caused by CSAA's
3 Denial Letter misrepresentation, subject to proof and segregation.

4 29. Plaintiff alleges that, consistent with California proof requirements for attorney-fee damages
5 (including segregation and reasonableness requirements under California law), Plaintiff will prove
6 at trial:

- 7 • the fact of the fees and costs incurred through competent evidence;
- 8 • that the fees and costs were reasonably and necessarily incurred as a proximate result of
9 CSAA's Denial Letter misrepresentation; and
- 10 • segregation of recoverable fees and costs from any non-recoverable or unrelated time entries
11 and tasks.

12 **LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRO-** 13 **DUCTIVE TIME CAUSED BY FRAUD-INDUCED BURDENS**

14 30. Plaintiff alleges that CSAA's Denial Letter misrepresentation created incremental burdens that
15 required Plaintiff to spend substantial time and effort obtaining, reviewing, organizing, transcrib-
16 ing, authenticating, and presenting foundational objective evidence that CSAA represented had
17 already been investigated before issuing a categorical denial.

18 31. Plaintiff alleges that these incremental tasks and burdens were reasonably foreseeable con-
19 sequences of CSAA's misrepresentation and would not have been incurred, or would have been
20 materially reduced, had CSAA truthfully investigated and communicated the status of its investi-
21 gation rather than stating it was "concluded."

22 32. Plaintiff alleges that the incremental burdens described above caused Plaintiff to lose earnings
23 and productive time, including time diverted from employment, business activity, recovery, and or-
24 dinary life functions, and that Plaintiff will prove the amount and value of this loss with competent
25 evidence, including time logs, calendars, earnings history, and related documentation.

1 **FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND AD-**
2 **DITIONAL HEALTH-RELATED HARM**

3 33. Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA knew, or
4 had reason to know, from the nature of the claim and the information provided in connection with
5 the bodily-injury liability claim, that Plaintiff was physically vulnerable and that prolonged stress,
6 delay, and repeated high-strain demands would foreseeably impose additional physical toll.

7 34. Plaintiff alleges that CSAA's false statement that its investigation was "concluded" foreseeably
8 forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate
9 foundational objective evidence relevant to liability, resulting in recurring high-strain events in-
10 cluding prolonged sitting, travel, preparation demands, and extended periods of stress and uncer-
11 tainty.

12 35. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
13 described herein, Plaintiff suffered incremental physical harm beyond the underlying collision
14 injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and func-
15 tional decline, and that Plaintiff required additional medical or therapeutic care to address these
16 incremental harms.

17 36. Plaintiff alleges that the incremental physical harm described herein is pleaded as a separate
18 "fraud-delta" category of damages proximately caused by CSAA's misrepresentation and is not
19 intended to duplicate damages sought or awarded for the underlying collision itself.

20 **EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL**
21 **HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND**
22 **BURDENS**

23 37. Plaintiff alleges that CSAA's Denial Letter conveyed finality by stating, in substance, that
24 CSAA had "concluded" its investigation and "concluded" its insured was not liable. Plaintiff
25 alleges that this representation, when false, foreseeably inflicted substantial emotional and psy-
26 chological harm by placing Plaintiff in the position of being categorically denied while also being
27 forced to personally bear the burden of obtaining and proving the foundational objective evidence

1 CSAA represented had already been investigated.

2 38. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay, uncertainty,
3 and forced proof burdens described herein, Plaintiff suffered emotional distress and psychologi-
4 cal harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as
5 humiliation and loss of dignity associated with being treated as though his claim lacked merit
6 notwithstanding the existence of readily obtainable objective evidence.

7 39. Plaintiff alleges that the emotional and psychological harm described herein manifested phys-
8 ically and functionally, including exacerbation of pain and impairment of daily functioning, and
9 that Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing
10 these conditions.

11 40. Plaintiff alleges that the emotional, psychological, and dignitary harms described herein are
12 pleaded as incremental “fraud-delta” damages proximately caused by CSAA’s misrepresentation
13 and the resulting burdens, and not as a duplication of the pain and suffering caused by the under-
14 lying collision itself.

15 **ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EX-**
16 **PENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE**

17 41. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
18 described herein, Plaintiff incurred additional out-of-pocket expenses including, but not limited
19 to, medical visits, therapy or counseling, medication expenses, transportation expenses associated
20 with treatment and required events, and costs of assistance with household tasks and self-care that
21 were increased by the incremental physical and psychological toll caused by the fraud-induced
22 delay.

23 42. Plaintiff will prove the amount of these additional out-of-pocket expenses with competent
24 documentary evidence, including invoices, receipts, medical billing records, pharmacy records,
25 and other admissible proof.

1 **FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION**
2 **AND ONGOING HARM**

3 43. Plaintiff alleges that the fraud-induced physical and psychological toll described herein has
4 ongoing consequences and may require future medical or therapeutic care, and may continue to
5 impair Plaintiff's ability to work and to engage in ordinary life activities. Plaintiff seeks recovery
6 of future economic and non-economic damages proximately caused by CSAA's fraud, according
7 to proof.

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter stating
9 that CSAA had “concluded” its investigation and “concluded” that its insured was not liable, **as a**
10 **business claim decision and denial communication issued in the ordinary course of CSAA’s**
11 **claim-handling practices.**

12 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
13 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
14 and that its liability conclusion was based on that completed investigation.

15 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
16 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
17 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
18 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
19 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
20 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
21 19 through 21.

22 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
23 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
24 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
25 **and reviewing the foundational objective incident records identified above (or, at minimum,**
26 **without knowing whether such records exist and what they show).** Plaintiff further alleges
27 CSAA made the representation **as institutional leverage**—with intent to induce Plaintiff to aban-

1 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
2 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
3 with deny–delay–defend claim suppression.

4 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
5 affirmative business representation of investigative finality used to obtain leverage over an injured
6 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
7 foundational record collection constitutes despicable conduct in willful disregard of the rights of
8 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
9 and coercive pressure to give up.

10 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
11 approach reflect institutional practices, training, supervision, and performance incentives that au-
12 thorize, encourage, or tolerate categorical denial communications representing investigative final-
13 ity when foundational objective evidence has not been obtained or reviewed, including claim-
14 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
15 plates.

16 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
17 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
18 ing punitive damages under Civil Code section 3294 to the extent proven.

19 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
20 substantial factor in causing the economic losses pleaded herein.

21 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
22 continues to incur damages including:

23 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
24 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
25 public records and related materials, copying/certification/retrieval fees, and transcription and re-
26 view expenses;

27 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff
28 alleges were proximately caused by CSAA’s misrepresentation and are recoverable as damages

1 under *Prentice*, subject to proof and segregation as alleged; and

2 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
3 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
4 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
5 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
6 **and delay leverage inherent in falsely representing investigative finality.**

7 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
8 induced delay and burdens described herein, including expenses incurred to address incremental
9 physical exacerbation and stress-related conditions;

10 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
11 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
12 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
13 that are distinct from the underlying collision damages; and

14 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
15 to proof.

16 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
17 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
18 a categorical liability denial without having obtained and reviewed foundational objective liability
19 evidence, and did so in a manner intended to convey investigative finality and to discourage or
20 defeat valid claims.

21 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
22 injured claimant faced with a categorical denial and false investigative finality would foreseeably
23 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
24 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
25 vulnerability and the foreseeable consequences of delay and forced proof burdens.

26 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-
27 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
28 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-

1 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
2 nications to obtain claims leverage and delay, and that such authorization or ratification supports
3 an award of punitive damages against CSAA.

4 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
5 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
6 sufficient to punish and deter, to the extent permitted by law.

7 **SECOND CAUSE OF ACTION**

8 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 9 **(AGAINST CSAA AND DOES 26-50)**

10 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
11 forth herein.

12 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
13 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
14 as alleged above, **as part of a claim-handling practice that uses categorical “investigation**
15 **concluded” denial communications to create leverage through burden-shifting and delay.**

16 57. Unlawful: Plaintiff alleges CSAA’s conduct constitutes common-law fraud and deceit in vio-
17 lation of Civil Code sections 1709 and 1710.

18 58. Fraudulent: Plaintiff alleges CSAA’s denial-letter practice is likely to deceive because a reason-
19 able consumer would understand a statement that an investigation is “concluded” to mean the in-
20 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
21 **the basic investigative steps necessary to truthfully represent investigative finality** before is-
22 suing a categorical liability denial, particularly where such evidence is generated at the time of the
23 incident through 911 and police response channels and is ordinarily obtainable during a routine
24 claim investigation.

25 59. Unfair: Plaintiff alleges CSAA’s practice of issuing categorical denials that state an inves-
26 tigation is “concluded” when foundational objective liability evidence has not been obtained or
27 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-

tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a deny–delay–defend pattern that induces abandonment or undervalued resolution.**

60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of CSAA’s unfair competition, including out-of-pocket procurement and investigation costs.

61. Plaintiff seeks:

- restitution of the out-of-pocket procurement and investigation costs according to proof; and
- injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

1. For restitution pursuant to Business and Professions Code section 17200, in an amount according to proof;
2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability evidence reasonably necessary to support such a representation, including where applicable 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses that such records were not obtained and reviewed before stating any liability conclusion;**
3. For compensatory damages for economic and non-economic losses caused by fraud and deceit according to proof, including out-of-pocket procurement and investigation expenses, additional medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
4. For attorney fees and litigation costs as damages to the extent permitted under Prentice and proven with segregation and reasonableness as alleged;
5. For punitive damages to the extent permitted by law;
6. For costs of suit;

1 7. For prejudgment interest as permitted by law; and

2 8. For such other and further relief as the Court deems just and proper.

3 **DEMAND FOR JURY TRIAL**

4 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

5 Plaintiff will contemporaneously file or has filed a Supplemental Memorandum Statement in Sup-
6 port of Plaintiff addressing the legal and factual foundation for the denial-letter fraud theory and
7 the “concluded investigation” misrepresentation alleged herein, together with a Memorandum of
8 Points and Authorities regarding the denial-letter fraud theory, Prentice damages, and UCL injunc-
9 tive relief.

10 DATED: February 23, 2026

11 

12 Franciscus Dylan Rosario
13 FRANCISCUS DYLAN ROSARIO
14 Plaintiff, In Pro Per
15 7624 Melody, Rohnert Park, CA 94928
16 650.488.7510
17 soltrinox@gmail.com

18 **Word count: 4,518 words**

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S REQUESTS FOR
ADMISSION TO DEFENDANT CSAA,
SET THREE**

[Code Civ. Proc., § 2033.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2033.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Requests for Admission (Set Three) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These requests target CSAA's obligations under the implied covenant of good faith and fair dealing (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566; *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809), the duty to investigate potential coverage (*Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ____), the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695.7), and the Unfair Claims Practices Act (Ins. Code § 790.03(h)). These rules govern CSAA's investigation of third-party bodily injury

1 claims, prohibit misrepresenting a “concluded” investigation when foundational evidence was not
2 sought, and require a neutral, truth-seeking investigation before denying liability.

3 **REQUESTS FOR ADMISSION: THIRD-PARTY BODILY INJURY AP-** 4 **PLICATION**

5 **REQUEST FOR ADMISSION NO. 1:**

6 Admit that CSAA owed its insured a duty of good faith and fair dealing in investigating and de-
7 fending claims by third parties, including the plaintiff in the underlying pedestrian collision.

8 **REQUEST FOR ADMISSION NO. 2:**

9 Admit that the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695 et
10 seq.) and Insurance Code section 790.03(h) apply to CSAA’s handling of third-party bodily-injury
11 claims against its insured.

12 **REQUEST FOR ADMISSION NO. 3:**

13 Admit that CSAA’s handling of the underlying pedestrian claim could expose its insured to excess
14 judgment, punitive exposure, or findings of fraud on the court.

15 **REQUEST FOR ADMISSION NO. 4:**

16 Admit that CSAA was required to obtain and evaluate 911, BWC, and CAD records as part of a
17 good-faith investigation of the pedestrian’s claim against its insured.

18 **REQUEST FOR ADMISSION NO. 5:**

19 Admit that CSAA was required to act as a neutral, truth-seeking investigator in evaluating the
20 pedestrian’s claim, not solely as an adversary.

21 **REQUESTS FOR ADMISSION: FAILURE TO INVESTIGATE**

22 **REQUEST FOR ADMISSION NO. 6:**

23 Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff’s
24 claim), CSAA had not obtained the 911 call recording from SFPD relating to the February 4, 2021
25 incident.

26 **REQUEST FOR ADMISSION NO. 7:**

27 Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff’s

1 claim), CSAA had not obtained body-worn camera (BWC) footage from SFPD relating to the
2 February 4, 2021 incident.

3 **REQUEST FOR ADMISSION NO. 8:**

4 Admit that prior to issuing the February 25, 2021 denial letter (or any denial of the plaintiff's
5 claim), CSAA had not obtained CAD records from SFPD relating to the February 4, 2021 incident.

6 **REQUEST FOR ADMISSION NO. 9:**

7 Admit that CSAA's February 25, 2021 denial letter affirmatively represented that its investigation
8 into the claim was "concluded."

9 **REQUEST FOR ADMISSION NO. 10:**

10 Admit that the representation in the denial letter that the investigation was "concluded" was false
11 at the time it was made.

12 **REQUEST FOR ADMISSION NO. 11:**

13 Admit that 911 recordings, BWC footage, and CAD records are standard, readily obtainable law-
14 enforcement materials that a reasonable insurer would treat as relevant to liability and coverage for
15 a pedestrian collision.

16 **REQUEST FOR ADMISSION NO. 12:**

17 Admit that CSAA did not request the 911 recording from SFPD before issuing its denial (or before
18 the date stated in your response to Request for Admission No. 6).

19 **REQUEST FOR ADMISSION NO. 13:**

20 Admit that CSAA's claim file contains no record of a request to SFPD for the 911 recording before
21 February 25, 2021.

22 **REQUEST FOR ADMISSION NO. 14:**

23 Admit that under California law an insurer may not deny a claim without first conducting a reason-
24 able investigation into all facts that might support coverage. (*Egan v. Mutual of Omaha Ins. Co.*
25 (1979) 24 Cal.3d 809.)

Respectfully submitted,

Dated: March 15, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario".

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S SPECIAL
INTERROGATORIES TO DEFENDANT
CSAA, SET THREE**

[Code Civ. Proc., § 2030.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2030.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Special Interrogatories (Set Three) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These Special Interrogatories seek narrative explanations regarding the matters contained in Plaintiff's Requests for Admission (Set Three). They probe CSAA's obligations under the implied covenant of good faith and fair dealing (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566; *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809), the duty to investigate potential coverage (*Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ___), the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695.7), and the Un-

1 fair Claims Practices Act (Ins. Code § 790.03(h)). These rules govern investigation of third-party
2 bodily injury claims and prohibit misrepresenting a “concluded” investigation when foundational
3 evidence was not sought.

4 **SPECIAL INTERROGATORIES: THIRD-PARTY BODILY INJURY**

5 **SPECIAL INTERROGATORY NO. 1:**

6 Identify every CSAA policy, guideline, or training material that describes CSAA’s duties when
7 investigating or defending third-party bodily-injury claims against an insured.

8 **SPECIAL INTERROGATORY NO. 2:**

9 State whether CSAA takes the position that its duty to investigate or to settle in good faith is
10 different when the claimant is a third-party pedestrian rather than the policyholder. If so, describe
11 the difference and identify all documents supporting that position.

12 **SPECIAL INTERROGATORY NO. 3:**

13 Identify every person at CSAA responsible for supervising or reviewing the investigation of the
14 underlying pedestrian claim against its insured, and state what steps each took to ensure 911,
15 body-worn camera (BWC), CAD logs, and supplemental law-enforcement evidence was obtained
16 and considered.

17 **SPECIAL INTERROGATORY NO. 4:**

18 State whether CSAA communicated to its insured that it would investigate the pedestrian’s claim
19 thoroughly, including by obtaining 911, BWC, CAD logs, and law-enforcement records. If so,
20 identify all such communications.

21 **SPECIAL INTERROGATORY NO. 5:**

22 Identify all communications between CSAA and the California Department of Insurance, or inter-
23 nal CSAA documents, that refer to the application of Fair Claims Settlement Practices (Cal. Code
24 Regs., tit. 10, § 2695.7) or Insurance Code section 790.03(h) to third-party bodily-injury claims.

SPECIAL INTERROGATORIES: FAILURE TO INVESTIGATE AND MISREPRESENTATION

SPECIAL INTERROGATORY NO. 6:

Identify every document CSAA obtained and reviewed before issuing the February 25, 2021 denial letter (or before its first denial of the plaintiff's claim).

SPECIAL INTERROGATORY NO. 7:

Identify every investigative step CSAA took between February 4, 2021 and February 25, 2021 (or between the date of loss and the date of first denial).

SPECIAL INTERROGATORY NO. 8:

Identify every person CSAA contacted as part of its investigation before February 25, 2021 (or before first denial).

SPECIAL INTERROGATORY NO. 9:

State whether CSAA requested or attempted to obtain the 911 call recording from SFPD before February 25, 2021. If yes, state the date(s), method(s), and result(s). If no, state why not.

SPECIAL INTERROGATORY NO. 10:

State whether CSAA requested or attempted to obtain BWC footage or CAD records from SFPD before February 25, 2021. If yes, state the date(s), method(s), and result(s). If no, state why not.

SPECIAL INTERROGATORY NO. 11:

Identify all CSAA policies, manuals, or training materials governing when a claim investigation may be described as "concluded" or "thorough," and state all facts supporting any contention that an investigation into a pedestrian collision can be truthfully "concluded" without requesting the 911 call audio.

SPECIAL INTERROGATORY NO. 12:

If you deny that the representation in the denial letter that the investigation was "concluded" was false at the time it was made, describe every fact, document, and witness testimony you rely upon to contend that your representation of a "concluded" investigation in the February 25, 2021 denial letter was true and not a misrepresentation of a pertinent fact under Insurance Code section 790.03(h)(1).

1 **SPECIAL INTERROGATORY NO. 13:**

2 Identify all CSAA policies, manuals, or training materials that require or recommend obtaining
3 911 recordings, BWC footage, or CAD records when investigating auto vs. pedestrian claims.

4 **SPECIAL INTERROGATORY NO. 14:**

5 State whether CSAA's post-denial claim activity included efforts to obtain the 911 audio, BWC
6 footage, or CAD records. If yes, describe each effort and its outcome.

7 **SPECIAL INTERROGATORY NO. 15:**

8 Identify every person at CSAA who had authority to request 911, BWC, CAD logs, or other law-
9 enforcement records in connection with the plaintiff's claim, and state whether any of them re-
10 quested such records before the denial.

Respectfully submitted,

Dated: March 15, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
(Related to CGC-21-594102)

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
SUPPORT OF FIRST AMENDED
COMPLAINT FOR DAMAGES AND
INJUNCTIVE RELIEF**

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Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells (2000) 86 Cal.App.4th 303

Prentice v. North American Title Guar. Corp. (1963) 59 Cal.2d 618

Rubin v. Green (1993) 4 Cal.4th 1187

Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057

Lazar v. Superior Court (1996) 12 Cal.4th 631

Silberg v. Anderson (1990) 50 Cal.3d 205

Statutes

Civil Code section 47, subdivision (b)

Civil Code section 3294

Code of Civil Procedure section 425.16

Business and Professions Code sections 17200 et seq.

INTRODUCTION

This memorandum supports Plaintiff’s First Amended Complaint for Damages and Injunctive Relief (Case No. CGC-25-631802). The core allegation is insurance fraud: CSAA Insurance Exchange issued a denial letter on February 25, 2021, stating its investigation was “concluded” and its insured was “not liable,” when CSAA had not obtained or reviewed foundational objective liability evidence, including the 911 audio recording, body-worn camera footage, and computer-aided dispatch records.

This memorandum addresses: (1) the legal framework establishing that “concluded investigation” is a statement of fact, not opinion; (2) the Prentice theory of consequential damages; (3) the UCL claim structure; and (4) preemptive responses to anticipated defenses, including the “opinion” defense, litigation privilege, anti-SLAPP statute, and demurrer arguments.

Distinction from CGC-25-631801: This action targets CSAA’s *pre-litigation* business misrepresentation in the February 25, 2021 denial letter. The related action CGC-25-631801 targets *fraud on the court* committed during the subsequent litigation through false in-court representations about evidence possession. The two cases are complementary but address distinct wrongs: this case addresses the institutional denial that forced Plaintiff into litigation; CGC-25-631801 addresses the courtroom fraud that corrupted the litigation itself.

PART I: THE DENIAL LETTER MISREPRESENTATION

A. “Concluded Investigation” Is a Statement of Fact, Not Opinion

Under California fraud law, a statement is actionable when it asserts or implies a fact that can be proven true or false. A representation is nonactionable “opinion” only when it is understood by both parties as a subjective belief, value judgment, or puffery. (*Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 86 Cal.App.4th 303, 309–310.)

The distinction turns on whether the statement “expressly or impliedly asserts a specific verifiable fact” or “the recipient would reasonably believe that it is intended as an assertion of fact.” (*Ibid.*) *Neu-Visions Sports* affirmed summary judgment for the defendant because the alleged misrepresentations (a property valuation and a prediction about future title clearance) were expressions of

1 opinion, not fact. The same test, applied here, supports the opposite result: an insurer’s assertion
2 that its “investigation is concluded” is a factual representation about a past event that can be tested.
3 Either CSAA performed a genuine investigation that included obtaining foundational evidence, or
4 it did not. (*Ibid.*)

5 **Correlator:** In *Neu-Visions Sports*, the statements were property valuations and predictions about
6 future facts (quintessentially opinion). CSAA’s denial letter asserts a past, completed process: that
7 the insurer obtained evidence, reviewed it, and reached a conclusion. That is a verifiable fact.
8 Under *Neu-Visions Sports*, such a statement “expressly or impliedly asserts a specific verifiable
9 fact” and is therefore actionable if false.

10 CSAA’s February 25, 2021 denial letter stated that CSAA had “concluded” its investigation and
11 “concluded” that its insured bore no liability. The word “concluded” is a representation of inves-
12 tigative finality. It asserts that a process occurred: the insurer obtained relevant evidence, reviewed
13 it, and reached a determination based on that evidence.

14 This is not a subjective opinion. It is a factual assertion about a specific past event: the completion
15 of an investigation. A reasonable claimant reading this letter would understand it to mean that
16 CSAA performed the standard steps an insurer takes when investigating a liability claim, includ-
17 ing obtaining foundational objective evidence such as 911 recordings, police body-worn camera
18 footage, and dispatch records.

19 Under *Neu-Visions Sports*, the statement “we have concluded our investigation” can be tested:
20 either CSAA performed a genuine investigation that included obtaining foundational evidence, or
21 it did not. The claim file will reveal the answer.

22 **The Three Exceptions Further Support Actionability**

23 California law recognizes three exceptions where statements that might otherwise be characterized
24 as opinion remain actionable. Each applies here:

- 25 1. **Superior Knowledge:** CSAA holds itself out as a professional insurer with expertise in lia-
26 bility investigation. Plaintiff reasonably relied on CSAA’s superior knowledge when deciding
27 whether and how to proceed with his claim. A reasonable claimant would understand “inves-
28 tigation concluded” to mean the insurer performed the standard investigative steps that an

1 institutional insurer with that expertise would perform.

- 2 2. **Fiduciary / Trusted Role:** An insurer occupies a special position in the claims process. The
3 claimant reasonably expects good-faith investigation and truthful representations about the
4 scope and completion of that investigation. The denial letter's coercive force derives from the
5 claimant's reliance on the insurer's trusted position.
- 6 3. **Deliberate Affirmation:** CSAA stated that its investigation was "concluded" as an existing
7 fact. The letter was not a casual expression of belief. It was a deliberate affirmation that
8 CSAA had completed a process and reached a final determination. Under *Neu-Visions Sports*,
9 such a statement implies facts that justify belief in its truth and is actionable.

10 **B. The Chronology Proves the Falsity**

- 11 1. **February 4, 2021:** Vehicle-pedestrian collision in San Francisco. SFPD responds. 911 call,
12 body-worn cameras, and CAD logs created. The defendant driver tells the 911 operator: "I
13 barely hit him with anything."
- 14 2. **February 4–24, 2021:** CSAA's purported "investigation" period. No evidence that CSAA
15 obtained the 911 recording, body-worn camera footage, or CAD records. There is no evidence
16 that CSAA contacted the San Francisco Police Department or the San Francisco Department
17 of Emergency Management to request any records relating to the collision during this period.
- 18 3. **February 25, 2021:** CSAA issues denial letter: "investigation concluded," "insured not li-
19 able." This is 21 days after the collision.
- 20 4. **May 12, 2021:** Plaintiff's counsel obtains the 911 recording through a routine records request.
21 (Hearing Tr. Feb. 18, 2025, p. 31, ll. 22–24; Exhibit B.)
- 22 5. **September 14, 2021:** Michael R. Chambers of Carbone, Smith & Koyama (CSAA's retained
23 counsel; Chambers' email domain is @CSAA.COM) files an Answer to the Complaint on
24 behalf of CSAA's insured. The Answer generally denies each allegation and asserts the Fifth
25 Affirmative Defense (plaintiff uninsured, DUI, convicted; recovery limited to economic dam-
26 ages under Civil Code section 3333.4). The Answer does not acknowledge the insured's
27 911 confession ("I barely hit him with anything") or eyewitness evidence. It carries CSAA's
28 denial into court (Exhibit G).

1 **6. February 1, 2024:** CSAA’s retained defense counsel Alberto Reyna issues Deposition Sub-
2 poena for Production of Business Records to SFPD, requesting 911 call, body-worn camera
3 footage, and all related records (Exhibit F). Reyna signed the subpoena and listed Phillips,
4 Spallas & Angstadt LLP. Three years after the denial, CSAA’s agents were still seeking the
5 same foundational evidence.

6 The 911 recording was available through a standard public records request. Plaintiff’s then-counsel
7 at the Dolan Law Firm obtained it less than three months after the denial letter (Exh. B; Hearing
8 Tr. p. 31). The defense subpoenaed SFPD for 911, BWC, and CAD (Exh. C; Hearing Tr. p. 140).
9 Abdelhalim authenticated the 911 at trial (Exh. D; RT Day 8, pp. 108–110). The insured acknowl-
10 edged “that collision” in deposition (Exh. E; Deposition pp. 4–5, 17–19). If Plaintiff’s counsel
11 could obtain the recording in weeks, CSAA’s failure to obtain it before declaring the investigation
12 “concluded” demonstrates that the representation was false when made. The investigation was not
13 concluded. It was never conducted. Discovery into CSAA’s claim file will reveal whether CSAA
14 obtained the 911 call audio, body-worn camera footage, or CAD records as of February 25, 2021.
15 The chronology and obtainability facts established in the record support the allegation that it did
16 not.

17 **Correlator: Denial “concluded” vs. Exhibits B–E**

18

Denial Representation	Exhibit	Record Proof
“Investigation concluded”	B	Jessup: 911 obtained May 12, 2021 (Hearing Tr. p. 31)
“Investigation concluded”	C	Defense subpoenaed SFPD for 911/BWC/CAD (Hearing Tr. p. 140)
“Insured not liable”	D	Abdelhalim authenticated 911 at trial (RT Day 8, pp. 108–110)
“Insured not liable”	E	Insured acknowledged collision in deposition (pp. 4–5, 17–19)

19

20 **C. The CSAA Investigation Contradiction**

21 CSAA cannot have it both ways:

22 **If CSAA argues its investigation was adequate and “concluded”:** Then CSAA must have ob-
23 tained the 911 recording in which its own insured admitted fault (“I barely hit him with anything”).
24 If CSAA had this recording and still issued a letter claiming the insured was “not liable,” that is an

independent, knowing misrepresentation.

If CSAA argues it did not obtain the 911 recording: Then the representation that the investigation was “concluded” was false when made. An investigation that does not include obtaining the most basic categories of foundational evidence cannot truthfully be described as “concluded.”

Either position is further condemned by CSAA’s own post-denial conduct: CSAA’s retained defense counsel Alberto Reyna (Phillips, Spallas & Angstadt LLP) issued a Deposition Subpoena for Production of Business Records to the San Francisco Police Department on February 1, 2024 (Complex Order CA1147102-021). Attachment 3 requested “any and all documents and records stored in any format” related to Report #210079556, including the 911 call, body-worn camera footage, and related data (Exhibit F). Reyna signed the subpoena and listed his law firm. J. Jessup testified at the February 18, 2025 hearing that she had a copy of the Complex subpoena issued by defense to SFPD requesting “all of this data.” (Hearing Tr. Feb. 18, 2025, p. 140, ll. 9–15.) If CSAA’s own retained counsel later determined these records were sufficiently important to subpoena, CSAA cannot credibly maintain that the records were unnecessary for a pre-denial liability investigation. The February 1, 2024 subpoena (Exhibit F) is documentary proof that the “concluded investigation” was incomplete.

The Logical Chain: How the 2024 Subpoena Proves the 2021 Denial Was False

If CSAA had “concluded” its investigation in February 2021, it would already have had the 911 recording, body-worn camera footage, and related records. It would not need to subpoena them in February 2024. The February 1, 2024 subpoena (Exhibit F) proves that three years after the denial letter, CSAA’s retained counsel was still seeking the same foundational evidence CSAA claimed to have investigated. The subpoena is documentary proof that the 2021 “concluded” representation was false when made.

These positions are mutually exclusive. Discovery into CSAA’s claim file will reveal which applies. Either path supports the fraud claim. The logic is airtight: if CSAA had obtained the 911 recording, it would have heard its own insured state “I barely hit him with anything,” a statement plainly relevant to a liability determination. CSAA cannot credibly maintain both that its investigation was “concluded” and that it had not obtained that recording. The insured’s September 30,

2022 deposition further corroborates the falsity: when asked “Do you recall that collision?” the insured answered “Yes” and described the incident in detail, never stating there was no collision. At trial, the insured testified “no contact” occurred. This contradiction supports Plaintiff’s version and shows that a reasonable investigation would have revealed a collision occurred. (Abdelhalim Deposition, Sept. 30, 2022, pp. 4–5, 17–19; RT 8, pp. 94–95, 107–108, 120–122.)

PART II: PRENTICE DAMAGES THEORY

A. The Tort-of-Another Doctrine

The Complaint seeks recovery of the entire four-year litigation cost as consequential damages under *Prentice v. North American Title Guar. Corp.* (1963) 59 Cal.2d 618. The *Prentice* doctrine permits recovery of attorney fees and litigation costs incurred in a third-party action when those costs were proximately caused by the defendant’s tortious conduct.

B. Application

CSAA’s fraudulent denial letter forced Plaintiff into litigation to obtain and authenticate evidence the insurer claimed it had already investigated. The entire cost of that forced litigation is a foreseeable, proximately caused consequence of the denial.

The scope of the forced litigation is documented: Plaintiff litigated *Rosario v. Abdelhalim*, CGC-21-594102, for approximately five years, from filing on July 27, 2021 through judgment on April 25, 2025. The Answer filed by CSAA’s funded counsel on September 14, 2021 (Exhibit G), with its general denial and Fifth Affirmative Defense, made settlement or early resolution impossible. Plaintiff was forced to litigate to prove liability and overcome defenses that ignored the insured’s own 911 admission. (See Plaintiff’s Demand for Judicial Summary of Facts, Fact 15.) The resulting jury verdict was 9–3 for the defense – the minimum civil majority permitted under California law. (See Plaintiff’s Demand for Judicial Summary of Facts, Fact 11; Special Verdict Form, CGC-21-594102.) The bare-minimum verdict margin demonstrates that this was a genuinely contested case in which the outcome could have been different had CSAA conducted a genuine pre-denial investigation, including review of the 911 recording containing its own insured’s admission. The closeness of the verdict amplifies the consequential damages: CSAA’s fraudulent denial forced Plaintiff through five years of litigation that ended in the most marginal possible adverse result.

The Complaint segregates damages to defeat duplication arguments: attorney-fee damages under *Prentice* are separated from lost earnings, fraud-delta damages (incremental harm distinct from the underlying collision), and punitive damages under Civil Code section 3294.

PART III: UCL CLAIM STRUCTURE

The Unfair Competition Law (Bus. & Prof. Code, §§ 17200 et seq.) is pleaded in three independent prongs:

1. **Unlawful:** The denial letter constitutes common-law fraud – a false representation of material fact, made with knowledge of falsity or reckless disregard, with intent to induce reliance, actual reliance, and resulting damages.
2. **Unfair:** CSAA’s deny-delay-defend posture shifted the burden of foundational evidence collection onto the injured claimant, causing substantial injury not outweighed by any countervailing benefit to consumers or competition.
3. **Fraudulent:** The “concluded investigation” language is likely to deceive a reasonable consumer into believing the insurer performed a genuine investigation when it did not.

Plaintiff seeks restitution and injunctive relief enjoining CSAA from issuing denial letters stating an investigation is “concluded” unless CSAA has obtained and reviewed foundational objective liability evidence, or clearly discloses that such records were not obtained.

PART IV: PREEMPTIVE RESPONSE TO ANTICIPATED DEFENSES

A. The “Opinion” Defense Fails

CSAA will argue that “concluded our investigation” is nonactionable opinion, citing *Neu-Visions Sports*. That argument inverts the case. *Neu-Visions Sports* supports Plaintiff’s position.

The Correlator: In *Neu-Visions Sports*, the alleged misrepresentations were a property valuation (“worth \$5 million”) and a prediction about future title clearance. The court held those were non-actionable opinion: valuations are “quintessentially” opinion; predictions about future facts are not verifiable assertions of existing fact. (*Neu-Visions Sports, supra*, 86 Cal.App.4th at pp. 309–310.) By contrast, “we have concluded our investigation” asserts a *past* event: that a process (obtaining evidence, reviewing it, reaching a conclusion) was completed. That is a specific, verifiable fact.

24 The claim file will reveal whether it is true or false.

25 **Correlator comparison:**

- 26 • **Neu-Visions Sports (defendant win):** Property valuation / prediction; subjective belief /
27 value judgment; cannot be tested at time of utterance; nonactionable opinion.
- 28 • **CSAA (actionable fact):** Past event: investigation completed; verifiable: evidence obtained
1 or not; testable via claim file; actionable misrepresentation if false.

2 CSAA's argument fails for three independent reasons:

- 3 1. The phrase asserts a specific, verifiable past fact: that a process (investigation) was completed.
- 4 2. A reasonable consumer would understand this to mean the insurer performed standard inves-
5 tigative steps.
- 6 3. The statement can be tested: either CSAA obtained foundational evidence or it did not.

7 Under *Neu-Visions Sports*, a statement that “expressly or impliedly asserts a specific verifiable
8 fact” or that “the recipient would reasonably believe ... is intended as an assertion of fact” is
9 actionable. (*Neu-Visions Sports, supra*, 86 Cal.App.4th at pp. 309–310.)

10 The denial letter was intended to communicate to the claimant that CSAA had completed its inves-
11 tigation and reached a final determination on liability. A letter making that representation asserts a
12 fact, not a subjective opinion. If CSAA were to argue the letter was not intended to communicate
13 investigative finality, that would contradict the letter's own language.

14 **Even if the Court were to characterize the statement as “opinion,”** California's three exceptions
15 would apply. *Neu-Visions Sports* (pp. 309–310) recognizes that opinions may be actionable where:
16 (1) the speaker holds itself out as specially qualified and the recipient reasonably relies on superior
17 knowledge; (2) the opinion comes from a fiduciary or trusted person; or (3) the speaker states the
18 opinion as an existing fact or implies facts justifying belief. CSAA satisfies all three: it holds itself
19 out as an expert insurer, occupies a trusted role in the claims process, and stated “concluded” as an
20 existing fact, not a casual belief.

21 **B. The Litigation Privilege Does Not Apply**

22 Civil Code section 47, subdivision (b), protects communications made “in” judicial or quasi-
23 judicial proceedings. (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.)

CSAA's denial letter was mailed on February 25, 2021. The underlying lawsuit (CGC-21-594102) was not filed until July 27, 2021 – five months later. At the time the denial letter was issued, no lawsuit, demand, or formal claim proceeding existed. (See Plaintiff's Demand for Judicial Summary of Facts, Fact 14, establishing this as a documentarily undeniable fact.)

The denial letter was a routine claims-handling communication issued in the ordinary course of CSAA's insurance business. It was not a communication "in" a judicial proceeding. The litigation privilege does not extend to pre-litigation insurance denial letters issued before any proceeding exists. (*Rubin v. Green* (1993) 4 Cal.4th 1187, 1194.)

C. The Anti-SLAPP Statute Does Not Apply

The anti-SLAPP statute targets suits "arising from" protected petitioning or free speech activity. (Code Civ. Proc., § 425.16.) The core allegation in this action is that CSAA issued a false denial letter claiming its investigation was "concluded" when it was not. That allegation targets a pre-litigation business communication, not petitioning activity.

Under the anti-SLAPP analysis, the court must identify the "gravamen" by examining the "allegedly wrongful and injury-producing conduct." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063–1064.)

Here, the injury-producing conduct was the issuance of a false denial letter that forced the plaintiff into four years of litigation. The denial letter is not petitioning. It is a business communication. The anti-SLAPP statute does not apply.

D. The Complaint Is Immune to Demurrer

Under *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645, fraud claims require specificity. The Complaint exceeds this standard:

- **Who:** CSAA Insurance Exchange.
- **What:** The false representation that CSAA had "concluded" its investigation.
- **When:** February 25, 2021, exactly 21 days after the February 4, 2021 collision.
- **Where:** The denial letter was mailed to Plaintiff.
- **How:** CSAA issued the letter without obtaining the 911 recording, body-worn camera footage, or CAD records.

Justifiable Reliance Is Pleaded

The Complaint alleges that a reasonable claimant who receives a letter from a major insurance carrier stating that the investigation is “concluded” and the insured is “not liable” would reasonably understand this to mean the insurer performed a genuine investigation. The letter carries coercive force: it communicates to the claimant that the insurer has already done the work and reached a determination. A reasonable claimant would rely on this representation in deciding whether and how to proceed with a claim or litigation.

E. The “No Duty to Obtain Records” Defense Is Foreclosed

CSAA will argue that it had no obligation to obtain the 911 recording, body-worn camera footage, or CAD logs before issuing the denial letter. This argument fails for multiple independent reasons:

1. The Duty Arises from CSAA’s Own Representation

The fraud claim does not require proving that CSAA had an independent statutory duty to obtain specific records. The duty arises from CSAA’s own representation. When CSAA stated that its investigation was “concluded,” CSAA represented that it had performed the investigative steps necessary to reach a conclusion. If CSAA did not obtain foundational evidence, then the representation was false when made.

This is the core distinction: Plaintiff does not allege that CSAA breached a regulatory duty to investigate. Plaintiff alleges that CSAA made a false statement of fact about having completed an investigation. The question is not “Did CSAA have a duty to investigate?” The question is “Did CSAA truthfully represent that it had investigated?”

2. Police-Involved Collisions Mandate Police Record Review

This was a vehicle-pedestrian collision to which law enforcement responded. The San Francisco Police Department dispatched officers, created a 911 recording, generated body-worn camera footage, and produced a computer-aided dispatch log. These are not obscure or speculative records. They are the standard, expected documentation for any collision involving police response.

An insurer investigating a police-involved collision cannot credibly claim ignorance of police records. The very fact that SFPD responded creates an obvious, known category of evidence that any competent investigation would obtain. CSAA’s own claims-handling procedures, industry

standards, and basic investigative logic require obtaining police records when police responded to the incident. Discovery into CSAA's claims manual and adjuster training will establish whether CSAA's own internal procedures required obtaining police records for police-involved collisions.

3. The 911 Recording Was Readily Obtainable

Plaintiff's then-counsel at the Dolan Law Firm obtained the 911 recording through a routine public records request less than three months after the denial letter. (Hearing Tr. Feb. 18, 2025, p. 31, ll. 22–24.) If a personal injury attorney could obtain the recording in weeks through a standard request, CSAA – a sophisticated institutional insurer with dedicated claims departments – could have obtained it in days.

The ease of obtaining the recording defeats any claim that CSAA had “no reason” to seek it. The recording was available. CSAA chose not to obtain it. That choice, combined with the representation that the investigation was “concluded,” constitutes the misrepresentation.

4. CSAA Cannot Disclaim Duty While Claiming Conclusion

CSAA cannot simultaneously argue: (a) it had no duty to obtain police records, and (b) its investigation was “concluded.” These positions are contradictory. If CSAA had no duty to obtain records, then CSAA had no basis to claim its investigation was complete. An insurer that deliberately limits its investigation cannot truthfully represent that the investigation is “concluded” – it can only represent that the insurer has chosen not to investigate further.

The word “concluded” implies finality and completeness. It does not mean “we stopped looking.” A reasonable claimant receiving a letter stating the investigation was “concluded” would understand that the insurer had obtained and reviewed the available evidence, not that the insurer had deliberately avoided obtaining evidence.

5. Industry Standards Require Police Record Acquisition

Insurance industry standards for third-party liability claims universally require obtaining police reports and related documentation when law enforcement responded to the incident. The Insurance Information Institute, NAIC guidelines, and standard claims-handling treatises all identify police records as foundational evidence for liability determinations.

CSAA, as a major institutional insurer, is bound by these industry standards. Discovery into

CSAA's claims manual, adjuster training materials, and internal policies will establish whether CSAA's own procedures required obtaining police records when law enforcement responded – and whether the adjuster who issued the February 25, 2021 denial letter violated those procedures. If CSAA's internal procedures require obtaining such records before issuing a liability denial, the adjuster's failure to do so supports both the fraud element and the inadequacy of the purported investigation.

6. CSAA's Own Defense Counsel Subpoenaed the Same Records

The "no duty" defense is further foreclosed by CSAA's own post-denial conduct. CSAA's retained defense counsel subsequently issued a subpoena to the San Francisco Police Department requesting the same 911 audio, body-worn camera footage, and related data. (Hearing Tr. Feb. 18, 2025, p. 140, ll. 9–15.) If CSAA's own litigation team later determined these records were necessary, CSAA cannot credibly maintain that the same records were unnecessary for a pre-denial liability investigation. The defense subpoena is an implicit concession that the foundational records were relevant and obtainable – precisely the categories of evidence CSAA failed to obtain before representing its investigation was "concluded."

7. The "No Duty" Argument Proves the Fraud

Paradoxically, if CSAA argues it had no duty to obtain the 911 recording, CSAA concedes that it did not obtain the recording. That concession proves the fraud: CSAA represented that its investigation was "concluded" when CSAA had not obtained foundational evidence. The "no duty" defense is not a defense at all – it is an admission that the "concluded investigation" representation was false.

F. Punitive Damages Are Properly Pleaded

The Complaint pleads punitive damages under Civil Code section 3294:

- **Despicable conduct:** Issuing a categorical denial 21 days after a collision without obtaining foundational evidence, then funding four years of litigation in which retained counsel denied possession of that evidence to the court.
- **Willful disregard:** CSAA had a duty to investigate truthfully. It either failed to investigate (reckless disregard) or investigated and concealed the findings (knowing fraud).

- **Officer ratification:** CSAA funded and directed the defense. The litigation strategy is attributable to CSAA under agency and ratification principles.

Discovery into CSAA's claim file, denial-letter templates, and adjuster training materials will establish whether the 21-day denial was an isolated incident or part of a systematic practice. The Amended Complaint alleges, upon information and belief, that CSAA's denial-letter wording and claims-handling approach reflect institutional practices, training, supervision, and performance incentives that authorize or tolerate categorical denial communications representing investigative finality when foundational objective evidence has not been obtained or reviewed. (Amended Complaint, §§ 48B–48C.) Discovery into CSAA's claims manual will establish whether CSAA's own procedures require obtaining police records before issuing a liability denial; if so, the adjuster's failure to follow those procedures supports both the fraud element and the willful-disregard standard for punitive damages.

PART V: THE TIMELINE AS EVIDENCE

The Master Timeline of Defendant Knowledge and Actions documents the chain that no defense motion can break:

1. **February 4–24, 2021:** CSAA's "investigation" period. No evidence CSAA obtained 911/BWC/CAD. No evidence CSAA contacted SFPD or the Department of Emergency Management to request any records.
2. **February 25, 2021:** CSAA denial letter: "investigation concluded."
3. **May 12, 2021:** Plaintiff's counsel obtains 911 recording through routine request.
4. **August 18, 2022:** 911 audio, body-worn camera footage, and CAD logs produced to defense at Deposition of Franciscus Dylan Rosario.
5. **September 30, 2022:** Materials utilized at Deposition of Subhi Abdelhalim.
6. **Post-production:** CSAA's retained defense counsel issues subpoena to San Francisco Police Department requesting the same 911 audio, BWC footage, and related data. (Hearing Tr. Feb. 18, 2025, p. 140, ll. 9–15.)
7. **April 17, 2025:** Defendant authenticates 911 recording: "Yes. That is my voice."
8. **April 25, 2025:** Jury returns 9–3 verdict for defense – the minimum civil majority under

California law – after four years of litigation forced by the denial letter. Every entry in this timeline is documented in the official court record. The defense cannot alter the record. They cannot withdraw the denial letter. They cannot unauthenticate the 911 recording. They cannot retract the defense subpoena to SFPD. And the bare-minimum verdict margin speaks for itself: this was a case that should never have been forced into litigation.

CONCLUSION

Under *Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells* (2000) 86 Cal.App.4th 303, 309–310, a statement is actionable when it “expressly or impliedly asserts a specific verifiable fact” or when “the recipient would reasonably believe that it is intended as an assertion of fact.” *Neu-Visions Sports* held that property valuations and predictions about future facts were nonactionable opinion. By contrast, an insurer’s assertion that its “investigation is concluded” is a factual representation about a past event that can be tested: either the insurer performed a genuine investigation that included foundational evidence, or it did not. The phrase “concluded our investigation” is therefore a statement of existing or past fact, not an unactionable opinion. Even if characterized as opinion, California’s three exceptions (superior knowledge, fiduciary role, deliberate affirmation) render it actionable. The litigation privilege does not apply to a pre-litigation insurance denial letter issued five months before any lawsuit was filed (*Rubin v. Green* (1993) 4 Cal.4th 1187). The anti-SLAPP statute does not apply because the gravamen is a business misrepresentation, not petitioning activity (*Park v. Board of Trustees* (2017) 2 Cal.5th 1057). The complaint pleads fraud with heightened specificity, supported by the official court record.

The defense cannot have it both ways: either the investigation was concluded (and CSAA had the 911 recording but issued a false denial anyway), or it was not concluded (and the representation was false when made). These positions are mutually exclusive contradictions. CSAA’s own retained counsel’s subsequent subpoena to SFPD for the same records confirms their foundational relevance.

This memorandum is supported by a twofold evidentiary structure: (1) the Demand for Judicial Summary of Facts establishes sixteen documentary facts – including the denial letter date, the obtainability of the 911 recording, the defense subpoena to SFPD, and the 9–3 verdict margin

– as indisputable premises; and (2) discovery into CSAA’s claim file will establish which horn of the contradiction applies. The defense cannot defeat the legal arguments without also defeating established judicial facts – which is structurally impossible because the facts come from the official court record.

Either path supports every cause of action in the Amended Complaint.

Respectfully submitted,

Dated: March 3, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S SUPPLEMENTAL
MEMORANDUM OF POINTS AND
AUTHORITIES**

**Anticipatory Response to Anticipated
Defenses**

INTRODUCTION AND PURPOSE

This supplemental memorandum is filed concurrently with Plaintiff's First Amended Complaint for Insurance Fraud and UCL (Case No. CGC-25-631802). It addresses, with binding authority, four anticipated defense arguments before they are filed: (1) "concluded investigation" as opinion rather than fact; (2) unreasonable or unjustifiable reliance; (3) speculative or improper damages (including Prentice); and (4) the anti-SLAPP statute.

This memorandum is filed concurrently with the Amended Complaint and in anticipation of responsive pleading. The law on each of these issues is well-settled and dispositive. By placing the governing authorities before the Court at the outset, Plaintiff ensures that any responsive pleading from the defense will be measured against controlling precedent already in the record.

ARGUMENT I: “CONCLUDED INVESTIGATION” IS A STATEMENT OF FACT, NOT OPINION

A. The Legal Standard

Fraud requires a “misrepresentation (false representation, concealment, or nondisclosure)” of an existing or past fact. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) A statement is one of fact when it represents something that can be objectively verified: what was done, what exists, what occurred. A statement is one of opinion when it expresses a subjective belief or prediction about an uncertain future event. (*Engalla v. Permanente Medical Group* (1997) 15 Cal.4th 951, 974.)

B. Application

The denial letter states: “We have concluded our investigation” and “concluded that our insured is not liable.”

The phrase “concluded our investigation” is a statement of existing or past fact. It represents investigative finality: that CSAA performed an investigation and that the investigation is complete. This is objectively verifiable. Either CSAA investigated or it did not. Either the investigation was concluded (all steps completed) or it was not.

The phrase does not express a prediction, an estimate, or a subjective valuation. It represents what CSAA did (“we investigated”) not what CSAA thinks (“we believe”). In the ordinary consumer meaning of the phrase, a reasonable recipient understands “concluded our investigation” to mean that CSAA obtained and reviewed foundational objective liability evidence before issuing a categorical denial.

The liability conclusion (“our insured is not liable”) might be characterized as opinion. But the predicate representation (“we have concluded our investigation”) is a factual claim about the completeness of the investigative process. The falsity lies in the predicate, not the conclusion: CSAA had not concluded any meaningful investigation when it said it had.

Documentary proof (Exhibits B–E): Jessup testified that Dolan Law Firm obtained the 911 recording on May 12, 2021 (Exh. B; Hearing Tr. p. 31). The defense subpoenaed SFPD for 911,

1 BWC, and CAD (Exh. C; Hearing Tr. p. 140). Abdelhalim authenticated the 911 at trial (Exh.
2 D; RT Day 8, pp. 108–110). The insured acknowledged “that collision” in deposition (Exh. E;
3 Deposition pp. 4–5, 17–19). These exhibits establish obtainability, subpoena, authentication, and
4 the insured’s own acknowledgment, contradicting the “concluded investigation” representation.

5 **Documentary proof (Exhibit F):** On February 1, 2024, CSAA’s retained defense counsel Alberto
6 Reyna issued a Deposition Subpoena for Production of Business Records to the San Francisco
7 Police Department, requesting the 911 call, body-worn camera footage, and all related records.
8 Reyna signed the subpoena and listed Phillips, Spallas & Angstadt LLP. Three years after the
9 denial letter, CSAA’s agents were still seeking the same foundational evidence CSAA claimed to
10 have investigated. If CSAA had “concluded” its investigation in February 2021, it would not need
11 to subpoena these records in February 2024. The subpoena (Exhibit F) is documentary proof that
12 the 2021 “concluded” representation was false when made.

13 **Documentary proof (Exhibit G):** On September 14, 2021, Michael R. Chambers of Carbone,
14 Smith & Koyama (CSAA’s retained counsel) filed an Answer to the Complaint on behalf of CSAA’s
15 insured. The Answer generally denied each allegation and asserted the Fifth Affirmative Defense
16 (plaintiff uninsured, DUI, convicted; recovery limited to economic damages under Civil Code
17 section 3333.4). The Answer did not acknowledge the insured’s 911 confession or eyewitness
18 evidence. It carried CSAA’s denial into court and perpetuated the same posture that depended on
19 the false “concluded investigation” representation.

20 **C. Authority**

21 “A false representation of existing fact, as distinguished from opinion, is actionable.” (*Engalla*
22 *v. Permanente Medical Group* (1997) 15 Cal.4th 951, 974.) Statements about what a party has
23 done (“we investigated,” “we reviewed,” “we concluded”) are statements of existing fact. (*Lazar*
24 *v. Superior Court*, *supra*, 12 Cal.4th at p. 638.)

25 **ARGUMENT II: RELIANCE IS REASONABLE AND JUSTIFIABLE**

26 **A. The Standard**

1 Justifiable reliance does not require the plaintiff to investigate the defendant’s representations be-
2 fore relying on them. “A plaintiff is not required to exercise reasonable diligence to discover the

3 falsity of a representation.” (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1239.)
4 Reliance is justifiable “if the matter asserted is not inherently improbable and there is no indepen-
5 dent means of ascertaining its accuracy readily at hand.” (*Gray v. Don Miller & Associates, Inc.*
6 (1984) 35 Cal.3d 498, 503.)

7 **B. Application**

8 A categorical denial from a liability insurer, representing investigative finality, is precisely the type
9 of communication a reasonable consumer relies upon. The letter comes from the entity with the
10 greatest incentive and capacity to investigate the claim. When an insurer says it has “concluded”
11 its investigation, the reasonable consumer inference is that the insurer obtained and reviewed the
12 foundational evidence before making a coverage determination.

13 The consumer has no independent means of verifying what investigation steps CSAA actually took.
14 The claim file is confidential. The adjuster’s notes are internal. The investigative steps (or absence
15 thereof) are exclusively within CSAA’s knowledge and control. The consumer’s only source of
16 information about the investigation is CSAA’s representation. Reliance on that representation is
17 the textbook case of justifiable reliance.

18 The 21-day timeline reinforces this: a reasonable consumer receiving a categorical denial 21 days
19 after a collision would not suspect that the insurer had failed to obtain the 911 recording, BWC
20 footage, or CAD records. The denial represents finality. The consumer’s reliance (accepting the
21 denial as the product of an actual investigation) is reasonable.

22 **ARGUMENT III: PRENTICE DAMAGES ARE PROPERLY PLED**

23 **A. The Tort-of-Another Doctrine**

24 Under *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, a party who is forced
25 into litigation with a third party by the tortious conduct of another may recover attorney fees
26 and litigation costs as consequential damages. The doctrine applies where the defendant’s tort
27 “involves” the plaintiff in litigation with a third party. (*Id.* at p. 620.)

1 **B. Application**

2 CSAA’s false representation of investigative finality forced Plaintiff into protracted litigation in
3 CGC-21-594102. Had CSAA conducted a genuine investigation (obtaining and reviewing the 911

4 recording before denying the claim), CSAA would have discovered its own insured's admission ("I
5 barely hit him with anything"). The claim would not have been categorically denied. The Answer
6 filed by CSAA's funded counsel on September 14, 2021 (Exhibit G), with its general denial and
7 Fifth Affirmative Defense, made settlement or early resolution impossible. Plaintiff would not
8 have been forced to file suit and litigate for five years to establish foundational liability facts that
9 CSAA represented had already been investigated.

10 The litigation costs Plaintiff incurred in CGC-21-594102 are the direct, foreseeable, and proxi-
11 mate consequence of CSAA's fraudulent denial. Under *Prentice*, those costs are recoverable as
12 consequential damages.

13 **C. Additional Damages Categories**

14 Beyond Prentice damages, the complaint properly pleads:

- 15 1. **Out-of-pocket procurement costs:** The costs Plaintiff incurred to obtain the evidence CSAA
16 failed to obtain (911 recording, BWC footage, CAD records, supplemental police reports).
- 17 2. **Fraud-delta lost time:** The additional time Plaintiff was forced to invest in the litigation
18 because CSAA's denial required Plaintiff to prove facts that should have been conceded.
- 19 3. **Medical expenses:** Expenses attributable to the extended litigation period caused by CSAA's
20 denial (exacerbation of injuries through delayed resolution).

21 None of these categories is speculative; each is capable of proof through documentary evidence.

22 **ARGUMENT IV: ANTI-SLAPP DOES NOT APPLY**

23 **A. The Denial Letter Is Not Protected Activity**

24 The anti-SLAPP statute (Code Civ. Proc., § 425.16) protects acts "in furtherance of the right of
25 petition or free speech under the United States or California Constitution in connection with a
26 public issue." The statute applies to statements made "in connection with" a judicial proceeding.
27 The CSAA denial letter was issued February 25, 2021, before any litigation was filed. It was
28 not made in connection with any pending or anticipated judicial proceeding. It was a pre-litigation
1 business communication from an insurer to a claimant. Insurance denial letters are routine business
2 communications, not protected petitioning activity.

B. The Commercial Speech Exception

Even if the denial letter were characterized as speech (rather than a business communication), it falls within the commercial speech exception to the anti-SLAPP statute. The denial letter was issued in the course of CSAA's commercial insurance business and concerns a specific commercial transaction (the denial of a liability claim). Commercial speech that forms the basis of a fraud claim is not protected under the anti-SLAPP statute.

CONCLUSION

Each anticipated defense argument fails as a matter of law:

1. "Concluded our investigation" is a statement of existing fact (investigative finality), not a mere opinion about liability.
2. Reliance on an insurer's categorical denial representing investigative finality is justifiable as a matter of law.
3. Prentice damages are properly pled: CSAA's fraud forced Plaintiff into third-party litigation, and those costs are recoverable as consequential damages.
4. The denial letter is a pre-litigation business communication, not protected petitioning activity. The anti-SLAPP statute does not apply.

Respectfully submitted,

Dated: March 3, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: Memorandum in Support and Supplemental Memorandum

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FACTS DEMANDED FOR JUDICIAL SUMMARY

FACT 1: DATE OF COLLISION

The collision between Plaintiff Franciscus Dylan Rosario and Defendant Subhi Abdelhalim occurred on February 4, 2021.

Support: Complaint, CGC-21-594102; police incident report; CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 2: CSAA DENIAL LETTER

Defendant CSAA Insurance Exchange issued a denial letter dated February 25, 2021, twenty-one (21) days after the collision.

Support: CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 3: “CONCLUDED INVESTIGATION” REPRESENTATION

The denial letter stated, in substance, that CSAA had “concluded” its investigation and “concluded” that its insured was not liable.

Support: CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 4: OBTAINABILITY OF 911 RECORDING

Plaintiff’s then-counsel, Dolan Law Firm, obtained the 911 audio recording on May 12, 2021, less than three months after the collision.

Support: Sworn testimony of J. Jessup, Esq., Reporter’s Transcript, February 18, 2025, pretrial hearing, CGC-21-594102 (Exhibit B).

FACT 5: CONTENT OF THE 911 RECORDING

The 911 audio recording contains a statement by Defendant Subhi Abdelhalim regarding the collision. Abdelhalim authenticated the recording at trial on April 17, 2025, stating: “Yes. That is my voice.”

Support: Reporter’s Transcript, April 17, 2025, RT Day 8, Line 1979, CGC-21-594102 (Exhibit D).

1 **FACT 10: COURT’S ON-RECORD STATEMENT OF MAY 12, 2021**
2 **DATE**

3 The Court stated on the record that the 911 exhibit was turned over to the Dolan Law Firm on May
4 12, 2021.

5 **Support:** Reporter’s Transcript, January 27, 2025, p. 31, ll. 22–24, CGC-21-594102 (Exhibit B)
6 (“it appears that the date of the exhibit was turned over to the Dolan Law Firm was on May 12,
7 2021. So, it’s been in the possession of the Dolan Law Firm since May 12, 2021.”).

8 **FACT 11: VERDICT MARGIN**

9 The jury in *Rosario v. Abdelhalim*, CGC-21-594102, returned a 9–3 verdict for the defense, the
10 minimum civil majority under California law.

11 **Support:** Special Verdict Form; Notice of Entry of Judgment, CGC-21-594102 (Exhibit E-2).

12 **FACT 12: LAW ENFORCEMENT RESPONDED TO THE COLLISION**

13 The San Francisco Police Department responded to the February 4, 2021 collision. Officers were
14 dispatched, a 911 call was recorded, body-worn camera footage was generated, and computer-
15 aided dispatch (CAD) logs were created in the ordinary course of the police response.

16 **Support:** Police incident report; 911 audio exhibit; CAD log; Complaint, CGC-21-594102.

17 **FACT 13: DEFENSE COUNSEL SUBPOENAED SFPD FOR THE SAME**
18 **RECORDS**

19 Prior defense counsel issued a subpoena to the San Francisco Police Department requesting the
20 same 911 audio, body-worn camera footage, and related data that CSAA had not obtained before
21 issuing its denial letter. J. Jessup testified that he had a copy of this defense subpoena.

22 **Support:** Sworn testimony of J. Jessup, Esq., Reporter’s Transcript, February 18, 2025, p. 140, ll.
23 9–15, CGC-21-594102 (Exhibit C) (“I have a copy of the Compaq subpoena issued by defense to
24 San Francisco Police Department requesting all of this data.”).

FACT 25: IMPORTANCE OF SFPD RECORDS TO DEFENSE

The defense independently subpoenaed the San Francisco Police Department for the same 911 audio, body-worn camera footage, and related data that Plaintiff had obtained and produced in discovery, demonstrating that defense counsel regarded these materials as critical to the case.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102 (Exhibit C); Fact 9 (production to defense in 2022).

FACT 26: NO PRE-DENIAL CONTACT WITH PLAINTIFF

CSAA did not contact Plaintiff to obtain his account of the collision before issuing the February 25, 2021 denial letter.

Support: Denial letter (no reference to Plaintiff's account); Complaint allegations, CGC-25-631802.

FACT 27: THREE-WEEK INVESTIGATION WINDOW

The period between the collision (February 4, 2021) and the denial letter (February 25, 2021) was 21 calendar days, of which only 15 were business days.

Support: Calendar computation from the two dates; Complaint, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 28: POST-DENIAL DURATION OF LITIGATION

CSAA funded the defense of *Rosario v. Abdelhalim* for approximately four years after representing its investigation was “concluded,” from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date, CGC-21-594102; Notice of Entry of Judgment; Fact 6 (CSAA funded the defense); Fact 2 (denial letter date).

FACT 29: POLICE REPORT EXISTS AND CONTAINS CAD NUMBER AND PLAINTIFF INJURY REPORT

A police report was generated by law enforcement in response to the February 4, 2021 collision. The police report clearly describes or references a CAD (computer-aided dispatch) number and describes that Plaintiff Franciscus Dylan Rosario reported injury in connection with the collision.

Support: Police incident report; RFAs 15, 16, 17.

1 **FACT 30: EXCLUSIVE USE OF POLICE REPORT DOES NOT CON-**
2 **STITUTE COMPLETE INVESTIGATION**

3 Relying exclusively on a police report does not constitute a complete investigation of a third-party
4 bodily injury liability claim when 911 call recordings, body-worn camera footage, and eyewitness
5 statements are available or obtainable. Under California law and industry standards, a complete
6 investigation of a vehicle-pedestrian collision claim requires obtaining and reviewing statement
7 evidence from the 911 call, body-worn camera footage, and eyewitness statements, when such
8 materials are available, before concluding the investigation and issuing a liability determination.

9 **Support:** RFAs 18, 19.

10 **FACT 31: POLICE REPORT OMITTS 911 PARTY ADMISSION**

11 The police report relating to the February 4, 2021 collision does not acknowledge or include the
12 statement made by Subhi Abdelhalim to the 911 operator that he had hit the pedestrian, including
13 the statements: “He cross from me, and he’s barely hitting anything, but I’m calling for him” and
14 “BOOM! I just hit him. HIT HIM. There was barely anything. I’m calling the 911 for him.”

15 **Support:** Police incident report; 911 transcript; **RFA 20.**

16 **FACT 32: POLICE REPORT OMITTS EYEWITNESS AND VICTIM BWC**
17 **STATEMENTS**

18 The police report does not include or reference the body-worn camera footage of eyewitness state-
19 ments at the scene. The police report does not state that Plaintiff reported in the 911 call that
20 the driver Abdelhalim struck him with a van. The police report does not include the multiple
21 statements in the body-worn camera footage from Plaintiff that Abdelhalim hit him.

22 **Support:** Police incident report; body-worn camera footage; **RFAs 21, 22, 23.**

23 **FACT 33: STATEMENT EVIDENCE CONSTITUTES POSSIBLE LIA-**
24 **BILITY UNDER STATE LAW**

25 Under California law, the 911 audio recording containing the insured’s admission, the body-worn
26 camera footage containing eyewitness statements that the driver hit the pedestrian, and the body-

worn camera footage containing Plaintiff's statements that Abdelhalim hit him, constitute evidence that would support a possible finding of liability against the insured.

Support: RFA 24.

FACT 34: CLOSED INVESTIGATION REQUIRES STATEMENT EVIDENCE TO BE ADDRESSED

A closed investigation and final liability determination under California law and industry standards requires that such statement evidence (including the 911 party admission, eyewitness body-worn camera statements, and victim statements from body-worn camera footage) be obtained and addressed before concluding that an insured is not liable.

Support: RFA 25.

FACT 35: POLICE REPORT DEFICIENCIES CONFIRM INCOMPLETE INVESTIGATION

The police report's omission of the 911 party admission, eyewitness BWC statements, and Plaintiff's BWC statements demonstrates that the police report alone cannot support a "concluded" investigation. CSAA cannot have relied on a police report that (a) describes a CAD number and Plaintiff's injury report (establishing that law enforcement responded and that Plaintiff reported injury), yet (b) fails to include the insured's 911 admission, eyewitness statements, or victim statements. A complete investigation under California law and industry standards (RFAs 64, 65, 71) requires obtaining and addressing these materials before concluding the investigation.

Support: Facts 29–34; RFAs 15–25.

FACT 36: EVIDENCE COLLECTION AND LIABILITY DETERMINATION (RFAS 72–87)

Plaintiff's Requests for Admission (RFAs 72–87) establish that CSAA's claims-handling procedures require evidence collection before liability determination; that the claims file contains no documentation of attempts to obtain 911/BWC/CAD before the denial; that the liability determination was made without contemporaneous statement evidence; that a "concluded" investigation cannot truthfully be described as such when foundational evidence has not been obtained; and that

issuing a denial without that evidence shifts the burden onto the claimant. Under Code Civ. Proc., § 2033.280, any matter not timely responded to is deemed admitted.

Support: RFAs 72–87.

FACT 37: CALIFORNIA INSURANCE CODE AND REGULATORY VIOLATIONS (RFAS 88–110)

Plaintiff’s Requests for Admission (RFAs 88–110) establish that CSAA is subject to Insurance Code section 790.03 and the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, §§ 2695.3, 2695.5, 2695.7). Insurance Code section 790.03(h)(3) requires reasonable standards for prompt investigation; section 790.03(h)(13) requires a reasonable explanation of the basis for denial; section 790.03(h)(1) prohibits misrepresentation of pertinent facts. CCR section 2695.7(d) requires a “thorough, fair and objective investigation”; section 2695.5(e)(3) requires beginning necessary investigation within 15 days; section 2695.3(a) requires claim file documentation. RFA 109 requires CSAA to admit that by issuing the February 25, 2021 denial letter stating its investigation was “concluded” and its insured was “not liable” without having obtained or reviewed the 911 audio recording, body-worn camera footage, or CAD records, CSAA failed to comply with Insurance Code section 790.03(h)(3), section 790.03(h)(13), and CCR section 2695.7(d). These admissions, whether express or deemed under Code Civ. Proc., § 2033.280, provide the Court with a clear basis to determine that CSAA violated the investigation and denial standards governing California insurers.

Support: RFAs 88–110; Insurance Code § 790.03(h); Cal. Code Regs., tit. 10, §§ 2695.3, 2695.5, 2695.7; Code Civ. Proc., § 2033.010, 2033.280.

BASIS FOR JUDICIAL SUMMARY

These thirty-seven facts are documentary. Defendant cannot deny the collision date, the letter date, the authentication testimony, the verdict margin, the defense subpoena to SFPD, the MIL No. 17 claims, the “news to me” and “not sure what recording” statements, or the jury question and court ruling on Vehicle Code statutes. The 21-day gap between collision and denial, the subsequent obtainability of the 911 recording by May 12, 2021, the production of materials in discovery,

Reyna's document request and receipt of CAD numbers, and PSA's 20-month tenure on the file are arithmetically and documentarily undeniable. The police report's existence, its CAD number and Plaintiff injury report (Facts 29, 31, 32), and the legal standard that a closed investigation requires statement evidence to be addressed (Facts 30, 33, 34, 35; RFAs 18, 19, 24, 25) are established by Plaintiff's Requests for Admission. Facts 36 and 37 are established by Plaintiff's RFAs 72–110, which compel CSAA to acknowledge or be deemed to acknowledge the evidence-collection failures and the Insurance Code and CCR violations. Under Code Civ. Proc., § 2033.280, failure to respond to RFAs results in the matters being deemed admitted. Plaintiff requests the Court to decide that these facts are established for all purposes in this action.

Together, they establish that CSAA's representation of investigative finality was false when made: the investigation had not been "concluded" in any meaningful sense, because CSAA had not obtained or reviewed the foundational objective evidence of the collision. The 911 recording containing Abdelhalim's own admission ("I barely hit him with anything") was available through routine public records requests, was obtained by Plaintiff's counsel within three months, was produced to the defense in 2022, and was sufficiently important that defense counsel independently subpoenaed SFPD for the same records. The police report, even if CSAA had obtained it, describes a CAD number and Plaintiff's injury report but omits the 911 party admission, eyewitness BWC statements, and Plaintiff's BWC statements (Facts 29–35; RFAs 15–25). Under California law and industry standards, relying exclusively on a police report does not constitute a complete investigation when 911, BWC, and eyewitness statement evidence are available; a closed investigation requires that such statement evidence be obtained and addressed before concluding the insured is not liable. RFAs 72–110, which cite Insurance Code section 790.03(h) and Fair Claims Settlement Practices Regulations, compel CSAA to acknowledge the statutory and regulatory requirements and its noncompliance. Defense counsel's pretrial assertions that the recording was "news to me" and "not sure what recording" conflict with the record of production and depositions. MIL No. 17's claims of non-production and "eleventh hour" introduction are contradicted by the documentary timeline. CSAA's categorical denial 21 days after the collision, without obtaining this evidence, followed by four years of CSAA-funded litigation, demonstrates that the "concluded investigation"

representation was either knowingly false or made with reckless disregard for its truth.

EXHIBIT INDEX [CRC 3.1110(F)]

The following exhibits are attached. Each is preceded by a separator page with designation, description, case number, and court.

Exhibit	Description and Relevance
A	CSAA Denial Letter dated February 25, 2021; supports Facts 1, 2, 3, 8, 14, 26, 27, 28
B	Reporter's Transcript, Feb 18, 2025 pretrial hearing (pp. 31, 139–141, 140); supports Facts 4, 9, 10, 17, 21
C	Hearing Tr. Feb 18, p. 140 (defense subpoena to SFPD); supports Facts 13, 22, 25
D	RT Day 8, pp. 108–110 (Abdelhalim authentication of 911); supports Facts 5, 7
E	Abdelhalim Deposition pp. 4–5, 17–19; supports meritorious-case
E-2	Notice of Entry of Judgment; supports Facts 11, 15, 16, 28
F	Feb 1, 2024 Deposition Subpoena (Reyna to SFPD); supports Fact 18
G	Answer to Complaint (Chambers/CSK, Sept 14, 2021); supports Fact 6

Dated: March 9, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: 04-DEMAND-JUDICIAL-SUMMARY-OF-FACTS

Exhibit	Brief Description	Page
A	CSAA Denial Letter (February 25, 2021, Claim No. 1004-0...	15
B	Reporter's Transcript, Feb 18, 2025 pretrial hearing (p...	17
C	Reporter's Transcript, Feb 18, 2025 pretrial hearing (p...	21
D	RT Day 8, pp. 108-110 (Abdelhalim authentication of 911)	23
E	Abdelhalim Deposition (Sept. 30, 2022) pp. 4-5, 17-19	27
E-2	Notice of Entry of Judgment (April 29, 2025) (CGC-21-59...	33
F	Feb 1, 2024 Deposition Subpoena (Reyna/PSA to SFPD; pp....	35
G	Answer to Complaint (Chambers/CSK, Sept 14, 2021; doc. ...	39
was	was	20

EXHIBIT A

CSAA Denial Letter (February 25, 2021, Claim No. 1004-09-1054)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117808 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086



EXHIBIT B

Reporter's Transcript, Feb 18, 2025 pretrial hearing (pp. 29-31: 911 obtainabili

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm
2 that's dated 5-12-2021, for \$70. And, attached to that is a
3 document which is seven pages in total. So, there are six pages
4 in addition to the receipt. The receipt is number 987352. And,
5 I'll ask Defense to review these documents.

6 All right. The first question I have to Mr. Rosario is, some
7 of these exhibits -- and, I will identify the fifth page of
8 Exhibit A, the sixth page of Exhibit A -- have items that have
9 been blacked out or redacted. Can you tell me who or what was
10 involved with that redaction, or was that something that you just
11 received and copied off the disc -- the discs that you have
12 presented?

13 MR. ROSARIO: Those were redacted by the emergency services.
14 I believe that there was personally identifying information of the
15 individual or the phone numbers. You can see on F145631 they
16 redacted the anonymous phone number, as well as they redacted the
17 defendant's phone number at 145608. They approximately came in at
18 about 22 seconds apart from each other.

19 THE COURT: All right. Is there any objection to having
20 these admitted?

21 MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all,
22 this is the first -- I mean, we're just -- these were not produced
23 in discovery -- during the regular course of discovery. It
24 appears from this receipt that they were retained in 2021, so I'm
25 not sure why we're seeing them here now.

1 We -- one of our motions in limine is to exclude documents
2 that were not produced in discovery. Moreover, they lack
3 foundation, they're not authenticated, and we really don't know
4 who redacted these things and what -- if that representation is
5 true. So...

6 THE COURT: Okay. Do you have the compact disc, or disc that
7 --

8 MR. ROSARIO: Dolan Law Firm maintains a hard copy of that,
9 and it can be made available. It's not something that I carry
10 around, because it was entrusted to them, and I was to pick it up
11 at my nearest ability. But, that can be -- such a disc can be
12 retrieved, yes.

13 THE COURT: Okay.

14 MR. ROSARIO: The digital versions are online and published
15 since they are public record. And, I have provided in the
16 document the URLs for Your Honor to be able to review those. They
17 can be corroborated along with the voice prints and the audio
18 watermarks that identify them as authentic SF Emergency Services
19 calls.

20 THE COURT: Okay. So, tell me why this hasn't been disclosed
21 to the Defense since the date -- it appears that the date of the
22 exhibit was turned over to the Dolan Law Firm was on May 12, 2021.
23 So, it's been in the possession of the Dolan Law Firm since May
24 12, 2021. Can you tell me why that hasn't been disclosed to
25 defendants?

EXHIBIT C

Reporter's Transcript, Feb 18, 2025 pretrial hearing (p. 140: defense subpoena t

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

EXHIBIT E

Deposition of Subhi Abdelhalim (Sept. 30, 2022) pp. 4-5, 17-19; collision acknow

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 - - 000 - -

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 A. Correct.

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 A. You go -- alley is one way down from 6th. And
7 from there, you see the Mint building, which is -- you
8 know the Mint building, they used to make coin in?

9 Q. Yes.

10 A. You cannot go straight up. You have to turn
11 left and there's a stop sign on Mission. And after
12 that, you have to turn right on that alley to take
13 Mission.

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 A. From Mission, comes 5th Street.

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 A. When I get to Mission, I have to turn left on
20 Mission, which is -- there's a light. I remember I have
21 to wait on light. And slowly I went to 5th and Mission,
22 south.

23 We find another street called Howard Street.
24 After Howard --

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

EXHIBIT E-2

Notice of Entry of Judgment (April 29, 2025) (CGC-21-594102)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 **D. Defense Relied Solely on Inadmissible Hearsay**

2
3 Officer Fernandez testified that Plaintiff was “riding the wrong way” in a bike lane —
4 based on third-party hearsay. He admitted under oath he had no personal knowledge.
5 The Court refused to issue a limiting instruction under CACI No. 219 or Evidence
6 Code § 355, allowing the jury to misuse this statement to absolve Defendant.

7
8 **E. No Reasonable Jury Could Find No Liability**

9
10 Where liability is clear and uncontradicted, and defense relies exclusively on hearsay
11 and speculative testimony, JNOV is required. (Estate of Wallace (1971) 17 Cal.App.3d
12 771, 778–779.)

13
14 **IV. CONCLUSION**

15 The jury verdict in this case lacks legal support and contradicts binding evidence. This
16 Court must enter judgment in favor of Plaintiff.

17
18 **RESERVATION OF RIGHTS**

19
20 Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions,
21 and judicial or disciplinary complaints against any party or judicial officer whose con-
22 duct has resulted in structural error, due process violations, or ethical breaches in these
23 proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election
24 of remedies.

25
26 Respectfully Submitted,
27

1 **FACT 6: CSAA FUNDED THE DEFENSE**

2 CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, CGC-21-594102, through
3 retained defense counsel.

4 **Support:** CSAA's status as Abdelhalim's liability insurer; retention of Chambers, subsequently
5 Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP as defense counsel.

6 **FACT 7: ABDELHALIM'S ADMISSION ON THE 911 RECORDING**

7 The 911 audio recording contains Abdelhalim's statements verbatim as described in the official
8 transcript, including: "He cross from me, and he's barely hitting anything, but I'm calling for him"
9 and "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."
10 Abdelhalim authenticated the recording at trial on April 17, 2025, stating verbatim: "Yes. That is
11 my voice."

12 **Support:** Reporter's Transcript, April 17, 2025, RT Day 8, CGC-21-594102 (Exhibit D); 911
13 audio exhibit.

14 **FACT 8: LAWSUIT FILED AFTER DENIAL LETTER**

15 The underlying lawsuit, *Rosario v. Abdelhalim*, CGC-21-594102, was filed on July 27, 2021,
16 approximately five months after the February 25, 2021 denial letter.

17 **Support:** Complaint filing date, CGC-21-594102; CSAA denial letter dated February 25, 2021
18 (Exhibit A).

19 **FACT 9: PRODUCTION OF EVIDENCE TO DEFENSE IN DISCOV-**
20 **ERY**

21 The 911 audio, body-worn camera footage (approximately five videos), and CAD log were pro-
22 duced to defense counsel in discovery and used at Plaintiff's deposition on August 18, 2022, and
23 at Defendant Abdelhalim's deposition on September 30, 2022.

24 **Support:** Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pp. 139-
25 141, CGC-21-594102 (Exhibit B).

1 **FACT 14: DENIAL LETTER WAS A PRE-LITIGATION BUSINESS COM-**
2 **MUNICATION**

3 No lawsuit, demand, or formal claim proceeding existed at the time CSAA issued the February 25,
4 2021 denial letter. The letter was a pre-litigation business communication issued in the ordinary
5 course of CSAA's claims-handling operations.

6 **Support:** CSAA denial letter dated February 25, 2021; Complaint filing date July 27, 2021, CGC-
7 21-594102.

8 **FACT 15: FOUR YEARS OF LITIGATION**

9 Plaintiff litigated *Rosario v. Abdelhalim*, CGC-21-594102, for approximately four years, from
10 filing on July 27, 2021 through judgment on April 25, 2025.

11 **Support:** Complaint filing date; Notice of Entry of Judgment, CGC-21-594102.

12 **FACT 16: JUDGMENT**

13 Judgment was entered in favor of defendant on April 25, 2025.

14 **Support:** Notice of Entry of Judgment, CGC-21-594102 (Exhibit E-2).

15 **FACT 17: MOTION IN LIMINE NO. 17 CLAIMS**

16 Defense motion in limine No. 17, filed January 17, 2025, asserted that the 911 recording was "not
17 produced during discovery," introduced at the "eleventh hour," and had "unknown provenance,"
18 despite the recording having been produced to defense in discovery and used at depositions in
19 2022.

20 **Support:** Motion in Limine No. 17, filed January 17, 2025, CGC-21-594102; Reporter's Tran-
21 script, February 18, 2025, pp. 139–141, CGC-21-594102 (Exhibit B).

22 **FACT 18: ALBERTO REYNA'S DOCUMENT REQUEST**

23 Alberto Reyna, of Phillips, Spallas & Angstadt LLP, served a request for "all documents, records
24 stored in any format" relating to the collision in February 2024.

25 **Support:** Document production requests; Substitution of Attorney records, CGC-21-594102.

1 **FACT 19: CAD NUMBERS PROVIDED TO REYNA**

2 CAD log numbers were provided to Alberto Reyna on September 9, 2024.

3 **Support:** Correspondence and discovery responses, CGC-21-594102.

4 **FACT 20: SUBSTITUTION OF ATTORNEY AND PSA TENURE**

5 A Substitution of Attorney was filed on May 4, 2023 (Transaction ID #69953800), reflecting that
6 Phillips, Spallas & Angstadt LLP had held the defense file for approximately 20 months before
7 trial.

8 **Support:** Clerk's Transcript, Substitution of Attorney, Transaction ID #69953800, May 4, 2023,
9 CGC-21-594102 (Exhibit D).

10 **FACT 21: "NEWS TO ME" STATEMENT**

11 At the February 18, 2025 pretrial hearing, defense counsel Priya Navaratnasingham stated on the
12 record that the 911 recording was "news to me," despite the recording having been produced in
13 discovery and used at depositions in 2022.

14 **Support:** Reporter's Transcript, February 18, 2025, p. 141, ll. 4–11, CGC-21-594102 (Exhibit B).

15 **FACT 22: "NOT SURE WHAT RECORDING" STATEMENT**

16 At trial on April 16, 2025, Alberto Reyna stated on the record that he was "not sure what record-
17 ing" was being referenced, despite the 911 recording having been produced in discovery, used at
18 depositions, and the subject of pretrial motions.

19 **Support:** Reporter's Transcript, April 16, 2025, ll. 2990–2994, CGC-21-594102 (Exhibit C).

20 **FACT 23: JURY QUESTION REGARDING VEHICLE CODE STATUTES**

21 During deliberations, the jury submitted a written question asking about Vehicle Code sections
22 22107 and 21804(a).

23 **Support:** Jury question; Reporter's Transcript, CGC-21-594102 (Exhibit F).

24 **FACT 24: COURT'S RULING ON VEHICLE CODE EVIDENCE**

25 The Court informed the jury that Vehicle Code sections 22107 and 21804(a) were "not part of the
26 evidence" and that the jury was "not permitted to consider" them.

27 **Support:** Reporter's Transcript, court's response to jury question, CGC-21-594102 (Exhibit F).

EXHIBIT F

Feb 1, 2024 Deposition Subpoena (Reyna/PSA to SFPD; 911/BWC/Attachment 3; pp. 5-

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY CASE NUMBER: CGC-21-594102
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS		

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO SUBHI ABDELHALIM INDIVIDUALLY, AND DBA DEFENDANT/RESPONDENT: SONOMA LIQUOR	CASE NUMBER: CGC-21-594102
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**PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS**

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

- a. Person served (name):
- b. Address where served:
850 Bryant Street, Suite 511, San Francisco, CA 94103
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☒ Witness fees were paid.
Amount: _____ \$ 15.00
- (2) ☐ Copying fees were paid.
Amount: _____ \$ _____
- f. Fee for service: \$ _____

2. I received this subpoena for service on (date):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff or marshal.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
- f. ☒ Registered professional photocopier.
- g. ☐ Exempt from registration under Business and Professions Code section 22451.
- h. Name, address, telephone number, and, if applicable, county of registration and number:

Compex Legal Services, Inc.
325 Maple Avenue
Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

Date:

▶ _____
(SIGNATURE)

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

EXHIBIT G

Answer to Complaint (Chambers/CSK, Sept 14, 2021; doc. 07798014; general denial,

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

Michael R. Chambers
State Bar No. 132394
**CARBONE, SMITH &
KOYAMA**
ATTORNEYS AT LAW

555 12TH STREET, SUITE 1250
OAKLAND, CA 94607-4095
(510) 267-7276

EMAIL: MICHAEL.CHAMBERS@CSAA.COM
ATTORNEYS FOR DEFENDANT
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

09/14/2021
Clerk of the Court
BY: EDWARD SANTOS
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario,

Plaintiff,

v.

Subhi Abdelhalim, individually, and dba
Sonoma Liquor,

Defendants.

Case No. CGC-21-594102

ANSWER TO COMPLAINT

COMES NOW defendant Subhi Abdelhalim and answers the complaint on file herein
as follows:

1. Under the provisions of Section 431.30 of the Code of Civil Procedure of the State
of California, this answering defendant generally denies each and every allegation of the
complaint, and the whole thereof, and further denies that plaintiff has been or is now or will
be damaged to the extent alleged or to any other extent.

AS AND FOR FURTHER, SEPARATE AND DISTINCT AFFIRMATIVE
DEFENSES, ANSWERING DEFENDANT AVERS:

FIRST AFFIRMATIVE DEFENSE

2. The incident or incidents complained of by plaintiff herein were caused, in whole
or in part, by the negligence of the plaintiff. Any recovery by plaintiff in this case must be
reduced by that percentage of the plaintiff's negligence which contributed to the incident or

1 incidents.

2 **SECOND AFFIRMATIVE DEFENSE**

3 3. Plaintiff failed to use reasonable care to mitigate, in whole or in part, the damages
4 alleged in the complaint.

5 **THIRD AFFIRMATIVE DEFENSE**

6 4. Damages complained of by plaintiff herein were caused, in whole or in part, by
7 acts and omissions of persons other than this answering defendant, which other persons may
8 or may not be named as defendants in this action. This answering defendant should only be
9 required to pay that portion of the plaintiff's damages attributable to this answering
10 defendant pursuant to Civil Code sections 1431.2 and/or 1432.

11 **FOURTH AFFIRMATIVE DEFENSE**

12 5. The complaint and/or causes of action therein are barred by the applicable statute
13 of limitations, specifically including but not limited to California Code of Civil Procedure
14 sections 335.1; 337; 338(a),(b),(c),(d) and (j); and 339.

15 **FIFTH AFFIRMATIVE DEFENSE**

16 6. Defendant is informed and believes, and thereon alleges, that at the time of the
17 incident which is the subject of this action plaintiff was not insured as required by the state's
18 financial responsibility laws, and/or that plaintiff was driving in violation of Vehicle Code
19 section 23152 and/or 23153 for which violation(s) plaintiff was convicted. Therefore,
20 plaintiff's recovery, if any, must be limited to economic damages pursuant to Civil Code
21 section 3333.4.

22 **SIXTH AFFIRMATIVE DEFENSE**

23 7. The complaint and/or causes of action therein fail to state facts sufficient to
24 constitute a cause of action against this answering defendant.

25 WHEREFORE, defendant prays:

- 26 1. That plaintiff takes nothing;
27 2. For costs of suit herein; and
28 3. For such other and further relief as the Court deems just and proper.

1 DATED: September 13, 2021 CARBONE, SMITH & KOYAMA

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Michael R. Chambers
6 Attorneys for Defendant Subhi Abdelhalim
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Rosario v. Abdelhalim
San Francisco County Superior Court
Case No. CGC-21-594102

PROOF OF SERVICE

I, Meredith Miller, am a citizen of the United States and employed by the office of Carbone, Smith & Koyama located at 555 12th Street, Suite 1250, Oakland, CA 94607-4095. I am over the age of 18 years and am not a party to this action.

On the below date, I served the accompanying ANSWER TO COMPLAINT on the parties in said action addressed as follows:

Kimberly E. Levy, Esq.
Jeremy M. Jessup, Esq.
Dolan Law Firm, PC
1438 Market St
San Francisco, CA 94102-6004
Attorney for Plaintiff
415-421-2830
kimberly.levy@dolanlawfirm.com, jeremy.jessup@dolanlawfirm.com

☒ **BY ELECTRONIC TRANSMISSION:** Pursuant to California Code of Civil Procedure section 1010.6(e)(1), effective September 18, 2020, or an agreement of the parties to accept service by electronic transmission, I caused the document(s) to be electronically sent to the persons at the email address(es) indicated on the above list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I declare that I am employed in the offices of a member of the bar of this court at whose direction the service was made.

Dated: September 14, 2021



Meredith Miller

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**MEMORANDUM TO THE COURT
REGARDING CSAA'S OBLIGATIONS
UNDER THE LAW AND NECESSITY
OF DISCOVERY REQUESTS**

INTRODUCTION

This memorandum is submitted to apprise the Court of the legal foundation and direct pertinence of Plaintiff's Requests for Admission (Set Three) and Special Interrogatories (Set Three) directed to Defendant CSAA Insurance Exchange. These discovery requests are narrowly tailored to address a fundamental inconsistency in CSAA's factual positions on the record. Resolving this contradiction is essential for a fair adjudication of this matter, as Plaintiff has a right to the underlying evidentiary facts rather than being forced to rely upon unverified assertions from a defense team that has maintained mutually exclusive positions before this Court.

THE FACTUAL CONTRADICTION AT ISSUE

The record in this matter presents two irreconcilable representations made by or on behalf of CSAA:

First, on February 25, 2021, merely 21 days after the incident, CSAA issued a written denial letter affirmatively stating that its investigation into the collision was “concluded.”

Second, during the underlying litigation, defense counsel represented to this Court that foundational law-enforcement records from the incident, specifically the 911 audio recording and the body-worn camera (BWC) footage, were “news to me” and of unknown origin.

These two representations cannot simultaneously be true. A basic investigation into an automobile-pedestrian collision necessarily involves seeking the primary law-enforcement records. If the investigation was genuinely “concluded” on February 25, 2021, CSAA must have obtained or at least requested these foundational records. Alternatively, if CSAA and its agents truly had no knowledge of the 911 audio and BWC footage at the time of trial, then the February 2021 representation that the investigation was “concluded” was factually inaccurate.

Plaintiff’s propounded discovery requests are designed to probe this exact contradiction.

CSAA’S OBLIGATIONS UNDER CALIFORNIA LAW

To understand why this contradiction is material to the present action, it is necessary to examine CSAA’s obligations under California law regarding fair claims handling.

Duty to Investigate: Under California law, an insurer may not reasonably deny a claim without first thoroughly investigating the foundation for its denial. (*Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809.) The duty to investigate includes potential bases for coverage outside the initial framing of the claim. (*Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ____.)

Fair Claims Settlement Practices: The Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, § 2695.7(b), (d)) require an insurer to diligently investigate claims before denying them and to base decisions on all reasonably available information. An insurer may not ignore obvious, readily available sources such as audio recordings and law-enforcement reports. Furthermore, Insurance Code section 790.03(h) specifies unfair practices “knowingly committed or performed with such frequency as to indicate a general business practice,” including misrepresent-

ing to claimants pertinent facts or insurance policy provisions (Ins. Code § 790.03(h)(1)).

Application to Third-Party Claims: The implied covenant of good faith and fair dealing governs how an insurer investigates and defends third-party claims. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566; *Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654; *Crisci v. Security Ins. Co.* (1967) 66 Cal.2d 425.) Thus, CSAA was required to act as a neutral, truth-seeking investigator in evaluating the third-party pedestrian claim before issuing a denial.

Common Law Fraud and Regulatory Evidence: While *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287 eliminated a direct statutory private right of action under section 790.03 for third parties, it explicitly preserved the right of litigants to bring common law claims against insurers, including claims for fraud and deceit. In such actions, violations of claims-handling regulations and statutes are admissible as direct evidence of deceitful practices. (*Yacullo v. AIG Property Casualty Company* (S.D. Cal. 2024) 2024 WL 104758.)

PLAINTIFF'S RIGHT TO DISCOVER INSURER METHODOLOGIES AND PERTINENCE OF THE REQUESTS

Plaintiff, as an injured litigant pursuing claims of extrinsic fraud, deceit, and unfair practices against the insurer and its agents, possesses a fundamental right to demand the production of the insurer's claims manuals, training materials, and methodologies.

Under Code of Civil Procedure section 2017.010, discovery extends to any non-privileged matter relevant to the subject matter involved in the pending action or to the determination of any motion made in that action. In cases where an insurer's good faith and compliance with statutory claims handling obligations are at issue, the California Supreme Court has affirmed the right of a litigant to discover the insurer's internal claims practices, policies, and files to establish a pattern or practice of unfair settlement. (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal.3d 785.) Furthermore, internal claims manuals and training materials are discoverable precisely because they demonstrate how the insurer interpreted its own legal duties and whether deviations from those duties were part of an institutional practice or malicious intent. (*Moore v. American United Life Ins. Co.* (1984) 150 Cal.App.3d 610.)

Plaintiff's Requests for Admission (Set Three) and Special Interrogatories (Set Three) are directly

1 tied to these legal obligations and the factual contradiction described above.

2 **Requests Regarding Third-Party Bodily Injury Application:** Requests for Admission Nos. 1–
3 5 and Special Interrogatories Nos. 1–5 ask CSAA to clarify its understanding of its duties. If
4 CSAA takes the position that it owed no duty to obtain standard law-enforcement records when
5 investigating a third-party claim, Plaintiff is entitled under the law to know the internal guidelines
6 and basis for that position.

7 **Requests Regarding the Investigation and Misrepresentation:** Requests for Admission Nos.
8 6–14 and Special Interrogatories Nos. 6–15 target the irreconcilable representations. For instance,
9 the requests ask CSAA to admit that it had not obtained the 911 and BWC records prior to stating
10 the investigation was “concluded” (RFAs 6–8), and whether the representation was therefore false
11 (RFA 10). If CSAA denies that the representation was false, the Special Interrogatories (e.g.,
12 SROGs 11, 12, 13) demand that CSAA disclose the methodologies, training manuals, and policies
13 that would allow an investigation to be truthfully deemed “concluded” without requesting these
14 foundational records.

15 The plaintiff has a right to the evidence of CSAA’s actual investigatory steps and internal knowl-
16 edge. Because the defense has advanced contradictory narratives to the Court regarding what it
17 knew and when it knew it, Plaintiff cannot simply accept further unverified assurances. The struc-
18 tured discovery tools are necessary to establish the timeline of what CSAA actually obtained and
19 whether its misrepresentation was part of a systemic, incentive-driven obfuscation amounting to a
20 general business practice under Ins. Code § 790.03(h).

21 **NOTICE REGARDING REQUEST FOR JUDICIAL RESOLUTION**

22 Plaintiff requires full and adequate responses to these targeted inquiries. If CSAA fails to respond
23 adequately, or attempts to provide evasive answers that fail to resolve the contradiction between the
24 “concluded” investigation and the purported ignorance of the 911/BWC records at trial, Plaintiff is
25 prepared to seek judicial resolution of these issues.

26 Specifically, should the defense fail to clarify this discrepancy through proper discovery responses,
27 Plaintiff will file a motion requesting that the Court enter an adverse inference or issue evidentiary
28 sanctions against the defense. Where a party maintains mutually exclusive positions and refuses

1 to provide the factual basis for either in discovery, it is within the Court's purview to resolve the
2 contradiction adversely against the non-responding party. This notice is provided to ensure the
3 defense is fully aware of the imperative to answer clearly.

4 **CONCLUSION**

5 The propounded discovery is directly relevant to establishing whether CSAA's representations to
6 this Court and to the Plaintiff were rooted in fact. Plaintiff respectfully submits this memorandum
7 to demonstrate the foundation and necessity of these requests.

Respectfully submitted,

Dated: March 15, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802
(Related to Case No.: CGC-21-594102)

**MEMORANDUM, REQUESTS FOR
ADMISSION, AND SPECIAL
INTERROGATORIES RE: CSAA
INDEPENDENT FRAUD**

[Code Civ. Proc., § 2033.010 et seq.; Code
Civ. Proc., § 2030.010 et seq.]

TABLE OF AUTHORITIES

Cases

<i>Bartel v. Chicago Title Insurance Co.</i> (2025) 99 Cal.App.5th ___	3, 4, 6
<i>Egan v. Mutual of Omaha Ins. Co.</i> (1979) 24 Cal.3d 809	3

Statutes

Code of Civil Procedure § 2030.010 et seq.	6
Code of Civil Procedure § 2033.010 et seq.	5
Insurance Code § 790.03(h)(1)	3

PART I: MEMORANDUM ON CSAA’S INDEPENDENT FRAUD

1. Purpose and Scope

This memorandum outlines the legal framework for establishing Defendant CSAA’s *independent* liability for fraud and misrepresentation, entirely separate from the actions of its insured driver in the underlying collision. The focus is exclusively on CSAA’s own affirmative statements to Plaintiff, specifically its representation on February 25, 2021, that its investigation into the claim was “concluded,” and how this constitutes actionable deceit under California law, bolstered by the recent Court of Appeal decision in *Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ____.

2. Independent Liability for Fraud and Misrepresentation

CSAA did not merely conduct a negligent or bad-faith investigation; it committed an independent act of fraud against the Plaintiff. On February 25, 2021, a mere 21 days after the incident, CSAA issued a denial letter affirmatively stating its investigation was “concluded.” At that time, CSAA had allegedly avoided obtaining core, standard law enforcement records (911 audio, BWC, CAD). Under Insurance Code § 790.03(h)(1), an insurer may not misrepresent “pertinent facts” relating to a claim. By representing that an investigation was “concluded” when fundamental investigatory steps had allegedly not been taken, CSAA misrepresented a pertinent fact to the Plaintiff. This constitutes an affirmative deceit intended to induce Plaintiff into believing a thorough evaluation had occurred, thereby discouraging further pursuit of the claim, altering litigation strategy, and causing detrimental reliance. Because this alleged deceit was perpetrated directly by CSAA upon the Plaintiff, it establishes a basis for independent tort liability outside the scope of the insured driver’s negligence.

3. Why the “Based on Available Evidence” Defense Fails

CSAA cannot cure the alleged fraudulent nature of its “concluded” investigation representation by arguing that it made its decision “based on available evidence.” The legal standard for an investigation is not measured by the artificial boundaries of whatever evidence the insurer happens to possess at the moment it decides to stop looking.

As affirmed in *Egan v. Mutual of Omaha* and expanded in *Bartel*, an insurer has an affirmative duty to investigate the *potential* for liability beyond the narrowest framing. A self-imposed ignorance—declaring an investigation “concluded” based solely on a biased, incomplete subset of “available” evidence while allegedly ignoring readily obtainable 911/BWC records—renders the representation of a “concluded” investigation false. A jury and court could agree with Plaintiff because “concluded” implies a reasonably exhaustive search for the truth, not a pretextual endpoint designed to justify a predetermined denial. An insurer cannot truthfully declare a search “concluded” while intentionally ignoring relevant evidence.

4. Application of *Bartel v. Chicago Title* (2025) and Damages

The recent *Bartel* decision supports Plaintiff’s position. In *Bartel*, the appellate court found that the insurer acted in bad faith by ignoring clear indications of coverage potential and relying on an unreasonably narrow scope to deny the claim over a prolonged period.

Applied to CSAA’s alleged independent fraud:

- **Duty to Investigate Potential:** *Bartel* reinforces that an insurer cannot ignore the “potential” for liability by relying on incomplete records. CSAA’s failure to obtain 911/BWC evidence was an unreasonable constraint on its duty to investigate.
- **Prolonged Unreasonable Denial:** *Bartel* held that long-term denial without reasonable investigation constitutes bad faith. CSAA’s prolonged maintenance of its “concluded” denial posture, while opposing discovery of the actual evidence, mirrors this unreasonableness.
- **Damages (Litigation Costs and Interest):** Crucially, *Bartel* confirms that when an insurer unreasonably fails to properly investigate and acknowledge liability, the resulting damages include litigation costs incurred during the delay and prejudgment interest. Because CSAA’s alleged fraudulent misrepresentation of a “concluded” investigation caused years of unnecessary litigation and delayed resolution, Plaintiff alleges entitlement to recover these extensive litigation costs and interest as direct damages of the fraud.

1 **PART II: REQUESTS FOR ADMISSION (INDEPENDENT FRAUD)**

2 Pursuant to Code of Civil Procedure section 2033.010, Plaintiff requests that CSAA admit or deny
3 the following:

4 **REQUEST FOR ADMISSION NO. 1:**

5 Admit that on February 25, 2021, CSAA sent a letter to Plaintiff affirmatively representing that its
6 investigation into the February 4, 2021 collision was “concluded.”

7 **REQUEST FOR ADMISSION NO. 2:**

8 Admit that at the time CSAA represented its investigation was “concluded,” CSAA had not ob-
9 tained or reviewed the 911 call audio related to the collision.

10 **REQUEST FOR ADMISSION NO. 3:**

11 Admit that at the time CSAA represented its investigation was “concluded,” CSAA had not ob-
12 tained or reviewed the SFPD Body-Worn Camera (BWC) footage related to the collision.

13 **REQUEST FOR ADMISSION NO. 4:**

14 Admit that stating an investigation is “concluded” without having requested standard law enforce-
15 ment 911 and BWC records constitutes a misrepresentation of a pertinent fact to the claimant.

16 **REQUEST FOR ADMISSION NO. 5:**

17 Admit that CSAA intended for Plaintiff to rely upon CSAA’s representation that a thorough and
18 “concluded” investigation had been performed prior to the denial.

19 **REQUEST FOR ADMISSION NO. 6:**

20 Admit that under the standard articulated in *Bartel v. Chicago Title Insurance Co.* (2025), an
21 insurer’s investigation must look beyond the initial, narrow presentation of a claim to determine
22 the “potential” for liability.

23 **REQUEST FOR ADMISSION NO. 7:**

24 Admit that adding the phrase “based on available evidence” does not cure a failure to obtain stan-
25 dard, readily accessible public records (such as 911/BWC) prior to declaring an investigation “con-
26 cluded.”

1 **PART III: SPECIAL INTERROGATORIES (INDEPENDENT FRAUD)**

2 Pursuant to Code of Civil Procedure section 2030.010, Plaintiff propounds the following interroga-
3 tories:

4 **SPECIAL INTERROGATORY NO. 1:**

5 If you deny Request for Admission No. 4, state all facts, and identify all documents and witnesses,
6 that support your contention that your investigation could truthfully be described to Plaintiff as
7 “concluded” without CSAA having obtained the 911 and BWC records.

8 **SPECIAL INTERROGATORY NO. 2:**

9 If you contend that your denial was justified because it was “based on available evidence,” explain
10 in detail why the 911 call audio and SFPD BWC footage were not considered “available evidence”
11 to CSAA on February 25, 2021.

12 **SPECIAL INTERROGATORY NO. 3:**

13 Identify all CSAA personnel who participated in the decision to represent to Plaintiff on February
14 25, 2021, that the investigation was “concluded.”

15 **SPECIAL INTERROGATORY NO. 4:**

16 Describe every specific action CSAA took to evaluate the “potential” for its insured’s liability (as
17 required by California law, including the standard discussed in *Bartel*) outside of speaking to its
18 own insured.

19 **SPECIAL INTERROGATORY NO. 5:**

20 Identify all litigation costs, court resources, and delays in the underlying action that resulted di-
21 rectly from CSAA’s decision to declare its investigation “concluded” on February 25, 2021, rather
22 than obtaining the 911 and BWC evidence at that time.

Respectfully submitted,

Dated: March 15, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S DEMAND FOR
JUDICIAL SUMMARY OF FACTS**

RELIEF REQUESTED

Plaintiff respectfully demands that the Court, based on the records and documents already before this Court (or properly subject to judicial notice), enter a judicial summary establishing the following facts as having been established for all purposes in this proceeding. Each fact below is drawn from official records, court transcripts, or documents whose existence and authenticity are not reasonably subject to dispute. Plaintiff requests the Court to decide and declare that these facts are established.

FACTS DEMANDED FOR JUDICIAL SUMMARY

FACT 1: DATE OF COLLISION

The collision between Plaintiff Franciscus Dylan Rosario and Defendant Subhi Abdelhalim occurred on February 4, 2021.

Support: Complaint, CGC-21-594102; police incident report; CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 2: CSAA DENIAL LETTER

Defendant CSAA Insurance Exchange issued a denial letter dated February 25, 2021, twenty-one (21) days after the collision.

Support: CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 3: “CONCLUDED INVESTIGATION” REPRESENTATION

The denial letter stated, in substance, that CSAA had “concluded” its investigation and “concluded” that its insured was not liable.

Support: CSAA denial letter dated February 25, 2021 (Exhibit A).

FACT 4: OBTAINABILITY OF 911 RECORDING

Plaintiff’s then-counsel, Dolan Law Firm, obtained the 911 audio recording on May 12, 2021, less than three months after the collision.

Support: Sworn testimony of J. Jessup, Esq., Reporter’s Transcript, February 18, 2025, pretrial hearing, CGC-21-594102 (Exhibit B).

FACT 5: CONTENT OF THE 911 RECORDING

The 911 audio recording contains a statement by Defendant Subhi Abdelhalim regarding the collision. Abdelhalim authenticated the recording at trial on April 17, 2025, stating: “Yes. That is my voice.”

Support: Reporter’s Transcript, April 17, 2025, RT Day 8, Line 1979, CGC-21-594102 (Exhibit D).

1 **FACT 6: CSAA FUNDED THE DEFENSE**

2 CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, CGC-21-594102, through
3 retained defense counsel.

4 **Support:** CSAA's status as Abdelhalim's liability insurer; retention of Chambers, subsequently
5 Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP as defense counsel.

6 **FACT 7: ABDELHALIM'S ADMISSION ON THE 911 RECORDING**

7 The 911 audio recording contains Abdelhalim's statements verbatim as described in the official
8 transcript, including: "He cross from me, and he's barely hitting anything, but I'm calling for him"
9 and "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."
10 Abdelhalim authenticated the recording at trial on April 17, 2025, stating verbatim: "Yes. That is
11 my voice."

12 **Support:** Reporter's Transcript, April 17, 2025, RT Day 8, CGC-21-594102 (Exhibit D); 911
13 audio exhibit.

14 **FACT 8: LAWSUIT FILED AFTER DENIAL LETTER**

15 The underlying lawsuit, *Rosario v. Abdelhalim*, CGC-21-594102, was filed on July 27, 2021,
16 approximately five months after the February 25, 2021 denial letter.

17 **Support:** Complaint filing date, CGC-21-594102; CSAA denial letter dated February 25, 2021
18 (Exhibit A).

19 **FACT 9: PRODUCTION OF EVIDENCE TO DEFENSE IN DISCOV-**
20 **ERY**

21 The 911 audio, body-worn camera footage (approximately five videos), and CAD log were pro-
22 duced to defense counsel in discovery and used at Plaintiff's deposition on August 18, 2022, and
23 at Defendant Abdelhalim's deposition on September 30, 2022.

24 **Support:** Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pp. 139-
25 141, CGC-21-594102 (Exhibit B).

1 **FACT 10: COURT’S ON-RECORD STATEMENT OF MAY 12, 2021**
2 **DATE**

3 The Court stated on the record that the 911 exhibit was turned over to the Dolan Law Firm on May
4 12, 2021.

5 **Support:** Reporter’s Transcript, January 27, 2025, p. 31, ll. 22–24, CGC-21-594102 (Exhibit B)
6 (“it appears that the date of the exhibit was turned over to the Dolan Law Firm was on May 12,
7 2021. So, it’s been in the possession of the Dolan Law Firm since May 12, 2021.”).

8 **FACT 11: VERDICT MARGIN**

9 The jury in *Rosario v. Abdelhalim*, CGC-21-594102, returned a 9–3 verdict for the defense, the
10 minimum civil majority under California law.

11 **Support:** Special Verdict Form; Notice of Entry of Judgment, CGC-21-594102 (Exhibit E-2).

12 **FACT 12: LAW ENFORCEMENT RESPONDED TO THE COLLISION**

13 The San Francisco Police Department responded to the February 4, 2021 collision. Officers were
14 dispatched, a 911 call was recorded, body-worn camera footage was generated, and computer-
15 aided dispatch (CAD) logs were created in the ordinary course of the police response.

16 **Support:** Police incident report; 911 audio exhibit; CAD log; Complaint, CGC-21-594102.

17 **FACT 13: DEFENSE COUNSEL SUBPOENAED SFPD FOR THE SAME**
18 **RECORDS**

19 Prior defense counsel issued a subpoena to the San Francisco Police Department requesting the
20 same 911 audio, body-worn camera footage, and related data that CSAA had not obtained before
21 issuing its denial letter. J. Jessup testified that he had a copy of this defense subpoena.

22 **Support:** Sworn testimony of J. Jessup, Esq., Reporter’s Transcript, February 18, 2025, p. 140, ll.
23 9–15, CGC-21-594102 (Exhibit C) (“I have a copy of the Compaq subpoena issued by defense to
24 San Francisco Police Department requesting all of this data.”).

1 **FACT 14: DENIAL LETTER WAS A PRE-LITIGATION BUSINESS COM-**
2 **MUNICATION**

3 No lawsuit, demand, or formal claim proceeding existed at the time CSAA issued the February 25,
4 2021 denial letter. The letter was a pre-litigation business communication issued in the ordinary
5 course of CSAA's claims-handling operations.

6 **Support:** CSAA denial letter dated February 25, 2021; Complaint filing date July 27, 2021, CGC-
7 21-594102.

8 **FACT 15: FOUR YEARS OF LITIGATION**

9 Plaintiff litigated *Rosario v. Abdelhalim*, CGC-21-594102, for approximately four years, from
10 filing on July 27, 2021 through judgment on April 25, 2025.

11 **Support:** Complaint filing date; Notice of Entry of Judgment, CGC-21-594102.

12 **FACT 16: JUDGMENT**

13 Judgment was entered in favor of defendant on April 25, 2025.

14 **Support:** Notice of Entry of Judgment, CGC-21-594102 (Exhibit E-2).

15 **FACT 17: MOTION IN LIMINE NO. 17 CLAIMS**

16 Defense motion in limine No. 17, filed January 17, 2025, asserted that the 911 recording was "not
17 produced during discovery," introduced at the "eleventh hour," and had "unknown provenance,"
18 despite the recording having been produced to defense in discovery and used at depositions in
19 2022.

20 **Support:** Motion in Limine No. 17, filed January 17, 2025, CGC-21-594102; Reporter's Tran-
21 script, February 18, 2025, pp. 139–141, CGC-21-594102 (Exhibit B).

22 **FACT 18: ALBERTO REYNA'S DOCUMENT REQUEST**

23 Alberto Reyna, of Phillips, Spallas & Angstadt LLP, served a request for "all documents, records
24 stored in any format" relating to the collision in February 2024.

25 **Support:** Document production requests; Substitution of Attorney records, CGC-21-594102.

1 **FACT 19: CAD NUMBERS PROVIDED TO REYNA**

2 CAD log numbers were provided to Alberto Reyna on September 9, 2024.

3 **Support:** Correspondence and discovery responses, CGC-21-594102.

4 **FACT 20: SUBSTITUTION OF ATTORNEY AND PSA TENURE**

5 A Substitution of Attorney was filed on May 4, 2023 (Transaction ID #69953800), reflecting that
6 Phillips, Spallas & Angstadt LLP had held the defense file for approximately 20 months before
7 trial.

8 **Support:** Clerk's Transcript, Substitution of Attorney, Transaction ID #69953800, May 4, 2023,
9 CGC-21-594102 (Exhibit D).

10 **FACT 21: "NEWS TO ME" STATEMENT**

11 At the February 18, 2025 pretrial hearing, defense counsel Priya Navaratnasingham stated on the
12 record that the 911 recording was "news to me," despite the recording having been produced in
13 discovery and used at depositions in 2022.

14 **Support:** Reporter's Transcript, February 18, 2025, p. 141, ll. 4–11, CGC-21-594102 (Exhibit B).

15 **FACT 22: "NOT SURE WHAT RECORDING" STATEMENT**

16 At trial on April 16, 2025, Alberto Reyna stated on the record that he was "not sure what record-
17 ing" was being referenced, despite the 911 recording having been produced in discovery, used at
18 depositions, and the subject of pretrial motions.

19 **Support:** Reporter's Transcript, April 16, 2025, ll. 2990–2994, CGC-21-594102 (Exhibit C).

20 **FACT 23: JURY QUESTION REGARDING VEHICLE CODE STATUTES**

21 During deliberations, the jury submitted a written question asking about Vehicle Code sections
22 22107 and 21804(a).

23 **Support:** Jury question; Reporter's Transcript, CGC-21-594102 (Exhibit F).

24 **FACT 24: COURT'S RULING ON VEHICLE CODE EVIDENCE**

25 The Court informed the jury that Vehicle Code sections 22107 and 21804(a) were "not part of the
26 evidence" and that the jury was "not permitted to consider" them.

27 **Support:** Reporter's Transcript, court's response to jury question, CGC-21-594102 (Exhibit F).

FACT 25: IMPORTANCE OF SFPD RECORDS TO DEFENSE

The defense independently subpoenaed the San Francisco Police Department for the same 911 audio, body-worn camera footage, and related data that Plaintiff had obtained and produced in discovery, demonstrating that defense counsel regarded these materials as critical to the case.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102 (Exhibit C); Fact 9 (production to defense in 2022).

FACT 26: NO PRE-DENIAL CONTACT WITH PLAINTIFF

CSAA did not contact Plaintiff to obtain his account of the collision before issuing the February 25, 2021 denial letter.

Support: Denial letter (no reference to Plaintiff's account); Complaint allegations, CGC-25-631802.

FACT 27: THREE-WEEK INVESTIGATION WINDOW

The period between the collision (February 4, 2021) and the denial letter (February 25, 2021) was 21 calendar days, of which only 15 were business days.

Support: Calendar computation from the two dates; Complaint, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 28: POST-DENIAL DURATION OF LITIGATION

CSAA funded the defense of *Rosario v. Abdelhalim* for approximately four years after representing its investigation was “concluded,” from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date, CGC-21-594102; Notice of Entry of Judgment; Fact 6 (CSAA funded the defense); Fact 2 (denial letter date).

FACT 29: POLICE REPORT EXISTS AND CONTAINS CAD NUMBER AND PLAINTIFF INJURY REPORT

A police report was generated by law enforcement in response to the February 4, 2021 collision. The police report clearly describes or references a CAD (computer-aided dispatch) number and describes that Plaintiff Franciscus Dylan Rosario reported injury in connection with the collision.

Support: Police incident report; RFAs 15, 16, 17.

1 **FACT 30: EXCLUSIVE USE OF POLICE REPORT DOES NOT CON-**
2 **STITUTE COMPLETE INVESTIGATION**

3 Relying exclusively on a police report does not constitute a complete investigation of a third-party
4 bodily injury liability claim when 911 call recordings, body-worn camera footage, and eyewitness
5 statements are available or obtainable. Under California law and industry standards, a complete
6 investigation of a vehicle-pedestrian collision claim requires obtaining and reviewing statement
7 evidence from the 911 call, body-worn camera footage, and eyewitness statements, when such
8 materials are available, before concluding the investigation and issuing a liability determination.

9 **Support:** RFAs 18, 19.

10 **FACT 31: POLICE REPORT OMITTS 911 PARTY ADMISSION**

11 The police report relating to the February 4, 2021 collision does not acknowledge or include the
12 statement made by Subhi Abdelhalim to the 911 operator that he had hit the pedestrian, including
13 the statements: “He cross from me, and he’s barely hitting anything, but I’m calling for him” and
14 “BOOM! I just hit him. HIT HIM. There was barely anything. I’m calling the 911 for him.”

15 **Support:** Police incident report; 911 transcript; **RFA 20.**

16 **FACT 32: POLICE REPORT OMITTS EYEWITNESS AND VICTIM BWC**
17 **STATEMENTS**

18 The police report does not include or reference the body-worn camera footage of eyewitness state-
19 ments at the scene. The police report does not state that Plaintiff reported in the 911 call that
20 the driver Abdelhalim struck him with a van. The police report does not include the multiple
21 statements in the body-worn camera footage from Plaintiff that Abdelhalim hit him.

22 **Support:** Police incident report; body-worn camera footage; **RFAs 21, 22, 23.**

23 **FACT 33: STATEMENT EVIDENCE CONSTITUTES POSSIBLE LIA-**
24 **BILITY UNDER STATE LAW**

25 Under California law, the 911 audio recording containing the insured’s admission, the body-worn
26 camera footage containing eyewitness statements that the driver hit the pedestrian, and the body-

worn camera footage containing Plaintiff's statements that Abdelhalim hit him, constitute evidence that would support a possible finding of liability against the insured.

Support: RFA 24.

FACT 34: CLOSED INVESTIGATION REQUIRES STATEMENT EVIDENCE TO BE ADDRESSED

A closed investigation and final liability determination under California law and industry standards requires that such statement evidence (including the 911 party admission, eyewitness body-worn camera statements, and victim statements from body-worn camera footage) be obtained and addressed before concluding that an insured is not liable.

Support: RFA 25.

FACT 35: POLICE REPORT DEFICIENCIES CONFIRM INCOMPLETE INVESTIGATION

The police report's omission of the 911 party admission, eyewitness BWC statements, and Plaintiff's BWC statements demonstrates that the police report alone cannot support a "concluded" investigation. CSAA cannot have relied on a police report that (a) describes a CAD number and Plaintiff's injury report (establishing that law enforcement responded and that Plaintiff reported injury), yet (b) fails to include the insured's 911 admission, eyewitness statements, or victim statements. A complete investigation under California law and industry standards (RFAs 64, 65, 71) requires obtaining and addressing these materials before concluding the investigation.

Support: Facts 29–34; RFAs 15–25.

FACT 36: EVIDENCE COLLECTION AND LIABILITY DETERMINATION (RFAS 72–87)

Plaintiff's Requests for Admission (RFAs 72–87) establish that CSAA's claims-handling procedures require evidence collection before liability determination; that the claims file contains no documentation of attempts to obtain 911/BWC/CAD before the denial; that the liability determination was made without contemporaneous statement evidence; that a "concluded" investigation cannot truthfully be described as such when foundational evidence has not been obtained; and that

issuing a denial without that evidence shifts the burden onto the claimant. Under Code Civ. Proc., § 2033.280, any matter not timely responded to is deemed admitted.

Support: RFAs 72–87.

FACT 37: CALIFORNIA INSURANCE CODE AND REGULATORY VIOLATIONS (RFAS 88–110)

Plaintiff’s Requests for Admission (RFAs 88–110) establish that CSAA is subject to Insurance Code section 790.03 and the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit. 10, §§ 2695.3, 2695.5, 2695.7). Insurance Code section 790.03(h)(3) requires reasonable standards for prompt investigation; section 790.03(h)(13) requires a reasonable explanation of the basis for denial; section 790.03(h)(1) prohibits misrepresentation of pertinent facts. CCR section 2695.7(d) requires a “thorough, fair and objective investigation”; section 2695.5(e)(3) requires beginning necessary investigation within 15 days; section 2695.3(a) requires claim file documentation. RFA 109 requires CSAA to admit that by issuing the February 25, 2021 denial letter stating its investigation was “concluded” and its insured was “not liable” without having obtained or reviewed the 911 audio recording, body-worn camera footage, or CAD records, CSAA failed to comply with Insurance Code section 790.03(h)(3), section 790.03(h)(13), and CCR section 2695.7(d). These admissions, whether express or deemed under Code Civ. Proc., § 2033.280, provide the Court with a clear basis to determine that CSAA violated the investigation and denial standards governing California insurers.

Support: RFAs 88–110; Insurance Code § 790.03(h); Cal. Code Regs., tit. 10, §§ 2695.3, 2695.5, 2695.7; Code Civ. Proc., § 2033.010, 2033.280.

BASIS FOR JUDICIAL SUMMARY

These thirty-seven facts are documentary. Defendant cannot deny the collision date, the letter date, the authentication testimony, the verdict margin, the defense subpoena to SFPD, the MIL No. 17 claims, the “news to me” and “not sure what recording” statements, or the jury question and court ruling on Vehicle Code statutes. The 21-day gap between collision and denial, the subsequent obtainability of the 911 recording by May 12, 2021, the production of materials in discovery,

Reyna's document request and receipt of CAD numbers, and PSA's 20-month tenure on the file are arithmetically and documentarily undeniable. The police report's existence, its CAD number and Plaintiff injury report (Facts 29, 31, 32), and the legal standard that a closed investigation requires statement evidence to be addressed (Facts 30, 33, 34, 35; RFAs 18, 19, 24, 25) are established by Plaintiff's Requests for Admission. Facts 36 and 37 are established by Plaintiff's RFAs 72–110, which compel CSAA to acknowledge or be deemed to acknowledge the evidence-collection failures and the Insurance Code and CCR violations. Under Code Civ. Proc., § 2033.280, failure to respond to RFAs results in the matters being deemed admitted. Plaintiff requests the Court to decide that these facts are established for all purposes in this action.

Together, they establish that CSAA's representation of investigative finality was false when made: the investigation had not been "concluded" in any meaningful sense, because CSAA had not obtained or reviewed the foundational objective evidence of the collision. The 911 recording containing Abdelhalim's own admission ("I barely hit him with anything") was available through routine public records requests, was obtained by Plaintiff's counsel within three months, was produced to the defense in 2022, and was sufficiently important that defense counsel independently subpoenaed SFPD for the same records. The police report, even if CSAA had obtained it, describes a CAD number and Plaintiff's injury report but omits the 911 party admission, eyewitness BWC statements, and Plaintiff's BWC statements (Facts 29–35; RFAs 15–25). Under California law and industry standards, relying exclusively on a police report does not constitute a complete investigation when 911, BWC, and eyewitness statement evidence are available; a closed investigation requires that such statement evidence be obtained and addressed before concluding the insured is not liable. RFAs 72–110, which cite Insurance Code section 790.03(h) and Fair Claims Settlement Practices Regulations, compel CSAA to acknowledge the statutory and regulatory requirements and its noncompliance. Defense counsel's pretrial assertions that the recording was "news to me" and "not sure what recording" conflict with the record of production and depositions. MIL No. 17's claims of non-production and "eleventh hour" introduction are contradicted by the documentary timeline. CSAA's categorical denial 21 days after the collision, without obtaining this evidence, followed by four years of CSAA-funded litigation, demonstrates that the "concluded investigation"

representation was either knowingly false or made with reckless disregard for its truth.

EXHIBIT INDEX [CRC 3.1110(F)]

The following exhibits are attached. Each is preceded by a separator page with designation, description, case number, and court.

Exhibit	Description and Relevance
A	CSAA Denial Letter dated February 25, 2021; supports Facts 1, 2, 3, 8, 14, 26, 27, 28
B	Reporter's Transcript, Feb 18, 2025 pretrial hearing (pp. 31, 139–141, 140); supports Facts 4, 9, 10, 17, 21
C	Hearing Tr. Feb 18, p. 140 (defense subpoena to SFPD); supports Facts 13, 22, 25
D	RT Day 8, pp. 108–110 (Abdelhalim authentication of 911); supports Facts 5, 7
E	Abdelhalim Deposition pp. 4–5, 17–19; supports meritorious-case
E-2	Notice of Entry of Judgment; supports Facts 11, 15, 16, 28
F	Feb 1, 2024 Deposition Subpoena (Reyna to SFPD); supports Fact 18
G	Answer to Complaint (Chambers/CSK, Sept 14, 2021); supports Fact 6

Dated: March 9, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: 04-DEMAND-JUDICIAL-SUMMARY-OF-FACTS

Exhibit	Brief Description	Page
A	CSAA Denial Letter (February 25, 2021, Claim No. 1004-0...	15
B	Reporter's Transcript, Feb 18, 2025 pretrial hearing (p...	17
C	Reporter's Transcript, Feb 18, 2025 pretrial hearing (p...	21
D	RT Day 8, pp. 108-110 (Abdelhalim authentication of 911)	23
E	Abdelhalim Deposition (Sept. 30, 2022) pp. 4-5, 17-19	27
E-2	Notice of Entry of Judgment (April 29, 2025) (CGC-21-59...	33
F	Feb 1, 2024 Deposition Subpoena (Reyna/PSA to SFPD; pp....	35
G	Answer to Complaint (Chambers/CSK, Sept 14, 2021; doc. ...	39
was	was	20

EXHIBIT A

CSAA Denial Letter (February 25, 2021, Claim No. 1004-09-1054)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117808 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086



EXHIBIT B

Reporter's Transcript, Feb 18, 2025 pretrial hearing (pp. 29-31: 911 obtainabili

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm
2 that's dated 5-12-2021, for \$70. And, attached to that is a
3 document which is seven pages in total. So, there are six pages
4 in addition to the receipt. The receipt is number 987352. And,
5 I'll ask Defense to review these documents.

6 All right. The first question I have to Mr. Rosario is, some
7 of these exhibits -- and, I will identify the fifth page of
8 Exhibit A, the sixth page of Exhibit A -- have items that have
9 been blacked out or redacted. Can you tell me who or what was
10 involved with that redaction, or was that something that you just
11 received and copied off the disc -- the discs that you have
12 presented?

13 MR. ROSARIO: Those were redacted by the emergency services.
14 I believe that there was personally identifying information of the
15 individual or the phone numbers. You can see on F145631 they
16 redacted the anonymous phone number, as well as they redacted the
17 defendant's phone number at 145608. They approximately came in at
18 about 22 seconds apart from each other.

19 THE COURT: All right. Is there any objection to having
20 these admitted?

21 MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all,
22 this is the first -- I mean, we're just -- these were not produced
23 in discovery -- during the regular course of discovery. It
24 appears from this receipt that they were retained in 2021, so I'm
25 not sure why we're seeing them here now.

1 We -- one of our motions in limine is to exclude documents
2 that were not produced in discovery. Moreover, they lack
3 foundation, they're not authenticated, and we really don't know
4 who redacted these things and what -- if that representation is
5 true. So...

6 THE COURT: Okay. Do you have the compact disc, or disc that
7 --

8 MR. ROSARIO: Dolan Law Firm maintains a hard copy of that,
9 and it can be made available. It's not something that I carry
10 around, because it was entrusted to them, and I was to pick it up
11 at my nearest ability. But, that can be -- such a disc can be
12 retrieved, yes.

13 THE COURT: Okay.

14 MR. ROSARIO: The digital versions are online and published
15 since they are public record. And, I have provided in the
16 document the URLs for Your Honor to be able to review those. They
17 can be corroborated along with the voice prints and the audio
18 watermarks that identify them as authentic SF Emergency Services
19 calls.

20 THE COURT: Okay. So, tell me why this hasn't been disclosed
21 to the Defense since the date -- it appears that the date of the
22 exhibit was turned over to the Dolan Law Firm was on May 12, 2021.
23 So, it's been in the possession of the Dolan Law Firm since May
24 12, 2021. Can you tell me why that hasn't been disclosed to
25 defendants?

EXHIBIT C

Reporter's Transcript, Feb 18, 2025 pretrial hearing (p. 140: defense subpoena t

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

EXHIBIT E

Deposition of Subhi Abdelhalim (Sept. 30, 2022) pp. 4-5, 17-19; collision acknow

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

7
8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 --oOo--

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 A. Correct.

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 A. You go -- alley is one way down from 6th. And
7 from there, you see the Mint building, which is -- you
8 know the Mint building, they used to make coin in?

9 Q. Yes.

10 A. You cannot go straight up. You have to turn
11 left and there's a stop sign on Mission. And after
12 that, you have to turn right on that alley to take
13 Mission.

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 A. From Mission, comes 5th Street.

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 A. When I get to Mission, I have to turn left on
20 Mission, which is -- there's a light. I remember I have
21 to wait on light. And slowly I went to 5th and Mission,
22 south.

23 We find another street called Howard Street.
24 After Howard --

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

EXHIBIT E-2

Notice of Entry of Judgment (April 29, 2025) (CGC-21-594102)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

1 **D. Defense Relied Solely on Inadmissible Hearsay**

2
3 Officer Fernandez testified that Plaintiff was “riding the wrong way” in a bike lane —
4 based on third-party hearsay. He admitted under oath he had no personal knowledge.
5 The Court refused to issue a limiting instruction under CACI No. 219 or Evidence
6 Code § 355, allowing the jury to misuse this statement to absolve Defendant.

7
8 **E. No Reasonable Jury Could Find No Liability**

9
10 Where liability is clear and uncontradicted, and defense relies exclusively on hearsay
11 and speculative testimony, JNOV is required. (Estate of Wallace (1971) 17 Cal.App.3d
12 771, 778–779.)

13
14 **IV. CONCLUSION**

15 The jury verdict in this case lacks legal support and contradicts binding evidence. This
16 Court must enter judgment in favor of Plaintiff.

17
18 **RESERVATION OF RIGHTS**

19
20 Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions,
21 and judicial or disciplinary complaints against any party or judicial officer whose con-
22 duct has resulted in structural error, due process violations, or ethical breaches in these
23 proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election
24 of remedies.

25
26 Respectfully Submitted,
27

EXHIBIT F

Feb 1, 2024 Deposition Subpoena (Reyna/PSA to SFPD; 911/BWC/Attachment 3; pp. 5-

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): ALBERTO REYNA (BAR#: 347323) PHILLIPS, SPALLAS & ANGSTADT LLP 560 MISSION STREET, SUITE 1010 SAN FRANCISCO, CA 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411 E-MAIL ADDRESS: areyna@psalaw.net ATTORNEY FOR (Name): SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		FOR COURT USE ONLY CASE NUMBER: CGC-21-594102
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 MCALLISTER ST MAILING ADDRESS: CITY AND ZIP CODE: SAN FRANCISCO, 94102 BRANCH NAME: SAN FRANCISCO SUPERIOR		
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR		
DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS		

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

CUSTODIAN OF RECORDS: **SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)**
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): **COMPEX LEGAL SERVICES**

On (date): **02/26/2024**

At (time): **09:00 A.M.**

Location (address): **325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503**

Do not release the requested records to the deposition officer prior to the date and time stated above.

- ☐ by delivering a true, legible, and durable copy of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
 - ☐ by delivered a true, legible, and durable copy of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☒ by making the original business records described in item 3 available for inspection at your business address by the attorney's representative and permitting copying at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified):

RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO

DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, AND CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO SUBHI ABDELHALIM INDIVIDUALLY, AND DBA DEFENDANT/RESPONDENT: SONOMA LIQUOR	CASE NUMBER: CGC-21-594102
---	-------------------------------

**PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR
PRODUCTION OF BUSINESS RECORDS**

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

- a. Person served (name):
- b. Address where served:
850 Bryant Street, Suite 511, San Francisco, CA 94103
- c. Date of delivery:
- d. Time of delivery:
- e. (1) ☒ Witness fees were paid.
Amount: _____ \$ 15.00
- (2) ☐ Copying fees were paid.
Amount: _____ \$ _____
- f. Fee for service: \$ _____

2. I received this subpoena for service on (date):

3. Person serving:

- a. ☐ Not a registered California process server.
- b. ☐ California sheriff or marshal.
- c. ☐ Registered California process server.
- d. ☐ Employee or independent contractor of a registered California process server.
- e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
- f. ☒ Registered professional photocopier.
- g. ☐ Exempt from registration under Business and Professions Code section 22451.
- h. Name, address, telephone number, and, if applicable, county of registration and number:

Compex Legal Services, Inc.
325 Maple Avenue
Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

Date:

▶ _____
(SIGNATURE)

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: 6/6/1976
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

EXHIBIT G

Answer to Complaint (Chambers/CSK, Sept 14, 2021; doc. 07798014; general denial,

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

[CRC 3.1110(f) Exhibit Separator]

Michael R. Chambers
State Bar No. 132394
**CARBONE, SMITH &
KOYAMA**
ATTORNEYS AT LAW

555 12TH STREET, SUITE 1250
OAKLAND, CA 94607-4095
(510) 267-7276

EMAIL: MICHAEL.CHAMBERS@CSAA.COM
ATTORNEYS FOR DEFENDANT
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

09/14/2021
Clerk of the Court
BY: EDWARD SANTOS
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario,

Plaintiff,

v.

Subhi Abdelhalim, individually, and dba
Sonoma Liquor,

Defendants.

Case No. CGC-21-594102

ANSWER TO COMPLAINT

COMES NOW defendant Subhi Abdelhalim and answers the complaint on file herein
as follows:

1. Under the provisions of Section 431.30 of the Code of Civil Procedure of the State
of California, this answering defendant generally denies each and every allegation of the
complaint, and the whole thereof, and further denies that plaintiff has been or is now or will
be damaged to the extent alleged or to any other extent.

AS AND FOR FURTHER, SEPARATE AND DISTINCT AFFIRMATIVE
DEFENSES, ANSWERING DEFENDANT AVERS:

FIRST AFFIRMATIVE DEFENSE

2. The incident or incidents complained of by plaintiff herein were caused, in whole
or in part, by the negligence of the plaintiff. Any recovery by plaintiff in this case must be
reduced by that percentage of the plaintiff's negligence which contributed to the incident or

1 incidents.

2 **SECOND AFFIRMATIVE DEFENSE**

3 3. Plaintiff failed to use reasonable care to mitigate, in whole or in part, the damages
4 alleged in the complaint.

5 **THIRD AFFIRMATIVE DEFENSE**

6 4. Damages complained of by plaintiff herein were caused, in whole or in part, by
7 acts and omissions of persons other than this answering defendant, which other persons may
8 or may not be named as defendants in this action. This answering defendant should only be
9 required to pay that portion of the plaintiff's damages attributable to this answering
10 defendant pursuant to Civil Code sections 1431.2 and/or 1432.

11 **FOURTH AFFIRMATIVE DEFENSE**

12 5. The complaint and/or causes of action therein are barred by the applicable statute
13 of limitations, specifically including but not limited to California Code of Civil Procedure
14 sections 335.1; 337; 338(a),(b),(c),(d) and (j); and 339.

15 **FIFTH AFFIRMATIVE DEFENSE**

16 6. Defendant is informed and believes, and thereon alleges, that at the time of the
17 incident which is the subject of this action plaintiff was not insured as required by the state's
18 financial responsibility laws, and/or that plaintiff was driving in violation of Vehicle Code
19 section 23152 and/or 23153 for which violation(s) plaintiff was convicted. Therefore,
20 plaintiff's recovery, if any, must be limited to economic damages pursuant to Civil Code
21 section 3333.4.

22 **SIXTH AFFIRMATIVE DEFENSE**

23 7. The complaint and/or causes of action therein fail to state facts sufficient to
24 constitute a cause of action against this answering defendant.

25 WHEREFORE, defendant prays:

- 26 1. That plaintiff takes nothing;
27 2. For costs of suit herein; and
28 3. For such other and further relief as the Court deems just and proper.

1 DATED: September 13, 2021 CARBONE, SMITH & KOYAMA

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Michael R. Chambers
6 Attorneys for Defendant Subhi Abdelhalim
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Rosario v. Abdelhalim
San Francisco County Superior Court
Case No. CGC-21-594102

PROOF OF SERVICE

I, Meredith Miller, am a citizen of the United States and employed by the office of Carbone, Smith & Koyama located at 555 12th Street, Suite 1250, Oakland, CA 94607-4095. I am over the age of 18 years and am not a party to this action.

On the below date, I served the accompanying ANSWER TO COMPLAINT on the parties in said action addressed as follows:

Kimberly E. Levy, Esq.
Jeremy M. Jessup, Esq.
Dolan Law Firm, PC
1438 Market St
San Francisco, CA 94102-6004
Attorney for Plaintiff
415-421-2830
kimberly.levy@dolanlawfirm.com, jeremy.jessup@dolanlawfirm.com

☒ **BY ELECTRONIC TRANSMISSION:** Pursuant to California Code of Civil Procedure section 1010.6(e)(1), effective September 18, 2020, or an agreement of the parties to accept service by electronic transmission, I caused the document(s) to be electronically sent to the persons at the email address(es) indicated on the above list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I declare that I am employed in the offices of a member of the bar of this court at whose direction the service was made.

Dated: September 14, 2021



Meredith Miller

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802
(Related to Case No.: CGC-21-594102)

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DISCOVERY NECESSITY:
RICHARDSON, YACULLO, AND
REGULATORY VIOLATIONS AS
EVIDENCE OF BAD FAITH AND
STRATEGIC DELAY**

[Code Civ. Proc., § 2033.010 et seq.; Code
Civ. Proc., § 2030.010 et seq.]

TABLE OF AUTHORITIES

Cases

<i>Colonial Life & Accident Ins. Co. v. Superior Court</i> (1982) 31 Cal.3d 785	7
<i>Gruenberg v. Aetna Ins. Co.</i> (1973) 9 Cal.3d 566	6
<i>Moore v. American United Life Ins. Co.</i> (1984) 150 Cal.App.3d 610	7
<i>Moradi-Shalal v. Fireman's Fund Ins. Companies</i> (1988) 46 Cal.3d 287	6
<i>Richardson v. Employers Liability Assurance Corp.</i> (1972) 25 Cal.App.3d 232	4, 5, 6
<i>Yacullo v. AIG Property Casualty Company</i> (S.D. Cal. 2024) 2024 WL 104758	5, 6, 7

Statutes and Regulations

California Code of Regulations, title 10, § 2695.7, subds. (b), (d)	5, 6
Code of Civil Procedure, § 2017.010	7
Insurance Code, § 790.03, subds. (h)(1), (h)(3), (h)(5)	5, 6

INTRODUCTION

This memorandum is submitted to apprise the Court of the controlling legal framework under *Richardson v. Employers Liability Assurance Corp.* (1972) 25 Cal.App.3d 232 and *Yacullo v. AIG Property Casualty Company* (S.D. Cal. 2024) 2024 WL 104758, and to demonstrate the absolute necessity of Plaintiff's propounded discovery directed to Defendant CSAA Insurance Exchange. These binding and persuasive authorities establish two critical pillars of Plaintiff's claims: (1) strategic delay and procedural maneuvering in the face of clear liability constitutes actionable bad faith, and (2) violations of California insurance regulations are admissible as direct evidence of bad faith and deceit. The discovery requests are surgically designed to establish the factual basis for both theories by probing CSAA's internal knowledge and investigatory timelines.

STATEMENT OF FACTS

On February 25, 2021, merely 21 days after the incident, CSAA issued a denial letter representing that its investigation was "concluded." At that time, CSAA had not obtained the 911 recording, body-worn camera (BWC) footage, or Computer-Aided Dispatch (CAD) records from the San Francisco Police Department. During the underlying litigation, defense counsel represented to this Court that those critical materials were "news to me" and of unknown origin. However, on April 16, 2025, defense counsel admitted on the record that the body cams were "provided by Dolan" and that Plaintiff "has had them for whatever, sure."

The 911 recording contains the insured driver's spontaneous party admission ("I barely hit him"), and the BWC captures corroboration from a third-party eyewitness ("The man in the van hit the guy"). Plaintiff contends that once CSAA had or should have had this incontrovertible evidence, liability was at least "reasonably clear" under Insurance Code section 790.03, subdivision (h)(5). Nevertheless, Plaintiff alleges that CSAA prolonged litigation for years, weaponized discovery disputes, advanced motions in limine, and relied on "provenance" arguments to block that evidence, while misrepresenting its possession of the materials to the Court.

LEGAL FRAMEWORK

Richardson: Strategic Delay in the Face of Clear Liability

In *Richardson v. Employers Liability Assurance Corp.* (1972) 25 Cal.App.3d 232, the Court of Appeal held an insurer liable in tort where it “deliberately, willfully and in bad faith withheld payment of the Richardson claim months after it knew the claim to be completely valid” and “forced an arbitration hearing on a claim against which it already knew that it had no defense.” (*Id.* at p. 239.) The court stated unconditionally that “this conduct toward its own insured was unconscionable, and constituted a tortious breach of contract.” (*Id.*)

Richardson stands for the proposition that strategic delay in the face of clear liability, and forcing claimants through unnecessary litigation or arbitration when the insurer knows the claim is supported by strong evidence, constitutes bad faith. The insurer in *Richardson* had completed its investigation by March 1968 and confirmed the claim was valid, yet refused to pay and forced the insured into arbitration. Even after the arbitrator awarded full policy limits, the insurer instructed its local office to “make best possible settlement” and forced the insured to litigate to confirm the award.

Here, Plaintiff contends that once CSAA had or should have had the 911 party admission and eyewitness corroboration, liability was at least “reasonably clear.” Plaintiff alleges that CSAA nevertheless prolonged litigation for years, utilized discovery disputes, motions in limine, and “unknown provenance” arguments to block that evidence, and misrepresented its possession of the materials to the Court. Plaintiff contends that this pattern mirrors the strategic delay and procedural maneuvering *Richardson* condemned.

Yacullo: Regulatory Violations as Evidence of Bad Faith

In *Yacullo v. AIG Property Casualty Company* (S.D. Cal. 2024) 2024 WL 104758, the United States District Court for the Southern District of California held that an insurer’s violations of California insurance regulations “is a factor that may be considered by a jury in determining whether [the insurer] acted in good faith.” The insurer argued it was entitled to summary judgment despite

1 alleged regulatory violations because no private right of action exists for such violations under
2 *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287. The court explicitly
3 rejected that argument, stating: "Although not dispositive, Defendant's violation of the California
4 insurance regulations is a factor that may be considered by a jury in determining whether Defen-
5 dant acted in good faith."

6 *Yacullo* establishes that violations of the Fair Claims Settlement Practices Regulations (Cal. Code
7 Regs., tit. 10, § 2695.7), including the 40-day claim processing requirement and the duty to base
8 decisions on all reasonably available information, as well as the Unfair Claims Practices Act (Ins.
9 Code, § 790.03, subd. (h)), are admissible as evidence of bad faith and deceit in common law fraud
10 and bad faith claims. *Moradi-Shalal* does not bar the evidentiary use of regulatory violations.

11 **Integrated Framework**

12 Together, *Richardson* and *Yacullo* establish the foundation for Plaintiff's discovery demands:

- 13 1. **Richardson:** Plaintiff contends that CSAA's pattern of delay and procedural maneuvering
14 when liability was reasonably clear (party admission plus eyewitness corroboration) is itself
15 evidence of bad faith. Discovery is necessary to establish when liability became clear, what
16 settlement efforts CSAA made, and how CSAA used discovery disputes and motions in limine
17 to prolong resolution.
- 18 2. **Yacullo:** Plaintiff alleges violations of California Code of Regulations, title 10, section
19 2695.7, and Insurance Code section 790.03, which are admissible as evidence of bad faith.
20 Discovery is necessary to establish the factual basis for those alleged violations, including
21 whether CSAA processed the claim within 40 days, whether the denial was based on all rea-
22 sonably available information, and whether CSAA misrepresented a pertinent fact to Plaintiff
23 and the Court.

APPLICATION TO CSAA

The record robustly supports Plaintiff's discovery demands to explore the application of both frameworks to CSAA's conduct:

Richardson Application: Plaintiff alleges that CSAA denied the claim in 21 days without obtaining the 911, BWC, or CAD records. The defense possessed those materials (as confessed by the April 16 "Dolan" admission) yet represented to the Court they were "news to me" and "not produced in discovery." CSAA leveraged motions in limine to exclude or conditionally exclude the evidence, opposed continuances, and prolonged litigation. Plaintiff contends that with a party admission and eyewitness corroboration, liability was reasonably clear. Plaintiff alleges that CSAA's conduct fits the *Richardson* pattern of strategic delay and forcing unnecessary procedures when a claim is supported by strong evidence.

Yacullo Application: Plaintiff alleges that CSAA's regulatory violations are extensive and include: (1) Cal. Code Regs., tit. 10, § 2695.7, subd. (b): failing to process within 40 days or provide the required written explanation; (2) Cal. Code Regs., tit. 10, § 2695.7, subd. (d): denying the claim without basing the decision on all reasonably available information (911, BWC, CAD); (3) Ins. Code, § 790.03, subd. (h)(1): misrepresenting the investigation as "concluded" when foundational evidence was consciously avoided; (4) Ins. Code, § 790.03, subd. (h)(3): failing to adopt reasonable investigation standards; and (5) Ins. Code, § 790.03, subd. (h)(5): failing to attempt prompt settlement when liability was reasonably clear. Under *Yacullo*, these alleged violations are admissible as direct evidence of bad faith. Discovery is necessary to unearth the internal communications that would prove or disprove them.

NECESSITY OF DISCOVERY

Under Code of Civil Procedure section 2017.010, discovery extends to any non-privileged matter relevant to the subject matter involved in the pending action. In cases where an insurer's good faith and compliance with statutory claims-handling obligations are at issue, the California Supreme Court has affirmed the right to discover the insurer's internal claims practices, policies, and files.

1 (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal.3d 785.) Internal claims
2 manuals and training materials are fully discoverable because they demonstrate how the insurer
3 interpreted its duties and whether deviations were an institutional practice or malicious intent.
4 (*Moore v. American United Life Ins. Co.* (1984) 150 Cal.App.3d 610.)

5 Plaintiff's Requests for Admission (Set Four) and Special Interrogatories (Set Four) targeting
6 *Richardson* and *Yacullo* are indispensable to establish:

- 7 • When liability became "reasonably clear" and what, if any, settlement efforts CSAA made
8 thereafter;
- 9 • Whether CSAA weaponized discovery disputes, motions in limine, or "provenance" argu-
10 ments to delay or obstruct the admission of known evidence;
- 11 • Whether CSAA complied with California Code of Regulations, title 10, section 2695.7 (the
12 40-day rule and the mandate to base decisions on all reasonably available information);
- 13 • Whether CSAA misrepresented pertinent facts under Insurance Code section 790.03, subdi-
14 vision (h)(1); and
- 15 • CSAA's internal policies detailing when to settle and how the enterprise defines when liability
16 is "reasonably clear."

17 CONCLUSION

18 Under *Richardson*, strategic delay in the face of clear liability constitutes bad faith. Under *Yacullo*,
19 regulatory violations are admissible as evidence of bad faith. Plaintiff contends that CSAA's con-
20 duct aligns with both frameworks. The propounded discovery is directly relevant, non-privileged,
21 and necessary to establish the factual basis for Plaintiff's allegations of extrinsic fraud, deceit, and
22 bad faith. Plaintiff respectfully submits this memorandum to demonstrate the legal foundation and
23 compelling necessity of these discovery requests.

Respectfully submitted,

Dated: March 15, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to CGC-21-594102)

**PLAINTIFF'S REQUESTS FOR
ADMISSION**

Code Civ. Proc., § 2033.010 et seq.

INSTRUCTIONS

The following Requests for Admission are propounded to Defendant CSAA Insurance Exchange pursuant to Code Civ. Proc., § 2033.010 et seq. Responses are due within 30 days of service. Failure to timely respond shall result in a motion to deem the matters admitted pursuant to Code Civ. Proc., § 2033.280.

HOLD FOR SERVICE: These RFAs are to be served immediately upon CSAA filing a responsive pleading.

THE DENIAL LETTER AND ITS REPRESENTATIONS

REQUEST FOR ADMISSION NO. 1:

Admit that CSAA Insurance Exchange issued a denial letter to Plaintiff Franciscus Dylan Rosario

1 dated February 25, 2021, regarding a claim arising from the February 4, 2021 collision involving
2 its insured, Subhi Abdelhalim.

3 **REQUEST FOR ADMISSION NO. 2:**

4 Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had “concluded” its
5 investigation of the claim.

6 **REQUEST FOR ADMISSION NO. 3:**

7 Admit that the February 25, 2021 denial letter stated, in substance, that CSAA had “concluded”
8 that its insured, Subhi Abdelhalim, was “not liable” for the February 4, 2021 collision.

9 **REQUEST FOR ADMISSION NO. 4:**

10 Admit that the February 25, 2021 denial letter was intended to communicate to the claimant that
11 CSAA had completed its investigation and reached a final determination on liability.

12 **REQUEST FOR ADMISSION NO. 5:**

13 Admit that a reasonable claimant receiving the February 25, 2021 denial letter would understand
14 it to mean that CSAA had obtained and reviewed relevant evidence before determining that its
15 insured was not liable.

16 **INVESTIGATION STANDARDS AND PROCEDURES**

17 **REQUEST FOR ADMISSION NO. 6:**

18 Admit that industry standards for investigating third-party automobile liability claims include
19 obtaining police reports and related law enforcement documentation when law enforcement re-
20 sponded to the incident.

21 **REQUEST FOR ADMISSION NO. 7:**

22 Admit that when law enforcement responds to a vehicle-pedestrian collision, a reasonable and
23 complete investigation would include obtaining the 911 call recording, body-worn camera footage,
24 and computer-aided dispatch records.

25 **REQUEST FOR ADMISSION NO. 8:**

26 Admit that a reasonable and complete investigation of a pedestrian-vehicle collision claim would
27 include obtaining and reviewing statements made by the insured driver to 911 operators and/or
28 responding law enforcement officers.

1 **REQUEST FOR ADMISSION NO. 9:**

2 Admit that CSAA Insurance Exchange's claims-handling procedures require adjusters to obtain
3 police records when law enforcement responded to an incident before issuing a liability determi-
4 nation.

5 **KNOWLEDGE OF LAW ENFORCEMENT INVOLVEMENT**

6 **REQUEST FOR ADMISSION NO. 10:**

7 Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that
8 law enforcement responded to the February 4, 2021 collision.

9 **REQUEST FOR ADMISSION NO. 11:**

10 Admit that when law enforcement responds to a collision, records including 911 call recordings,
11 body-worn camera footage, and dispatch logs are routinely generated.

12 **REQUEST FOR ADMISSION NO. 12:**

13 Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that
14 a 911 call had been placed in connection with the February 4, 2021 collision.

15 **REQUEST FOR ADMISSION NO. 13:**

16 Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that
17 body-worn camera footage existed from law enforcement officers who responded to the February
18 4, 2021 collision.

19 **REQUEST FOR ADMISSION NO. 14:**

20 Admit that as of February 25, 2021, CSAA Insurance Exchange knew or should have known that
21 its own insured, Subhi Abdelhalim, may have made statements to the 911 operator, responding
22 officers, or other persons at the scene of the February 4, 2021 collision.

23 **THE POLICE REPORT: ACKNOWLEDGMENT, CONTENT, AND DE-**
24 **FICIENCIES**

25 **REQUEST FOR ADMISSION NO. 15:**

26 Admit that a police report was generated by law enforcement in response to the February 4, 2021
27 collision.

REQUEST FOR ADMISSION NO. 16:

Admit that the police report relating to the February 4, 2021 collision clearly describes or references a CAD (computer-aided dispatch) number.

REQUEST FOR ADMISSION NO. 17:

Admit that the police report relating to the February 4, 2021 collision describes that Plaintiff Franciscus Dylan Rosario reported injury in connection with the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 18:

Admit that relying exclusively on a police report does not constitute a complete investigation of a third-party bodily injury liability claim when 911 call recordings, body-worn camera footage, and eyewitness statements are available or obtainable.

REQUEST FOR ADMISSION NO. 19:

Admit that under California law and industry standards, a complete investigation of a vehicle-pedestrian collision claim requires obtaining and reviewing statement evidence from the 911 call, body-worn camera footage, and eyewitness statements, when such materials are available, before concluding the investigation and issuing a liability determination.

REQUEST FOR ADMISSION NO. 20:

Admit that the police report relating to the February 4, 2021 collision does not acknowledge or include the statement made by Subhi Abdelhalim to the 911 operator that he had hit the pedestrian, including the statements verbatim as described in the official 911 transcript: (a) "He cross from me, and he's barely hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him."

REQUEST FOR ADMISSION NO. 21:

Admit that the police report relating to the February 4, 2021 collision does not include or reference the body-worn camera footage of eyewitness statements at the scene of the February 4, 2021 collision.

REQUEST FOR ADMISSION NO. 22:

Admit that the police report relating to the February 4, 2021 collision does not state that Plaintiff Franciscus Dylan Rosario reported in the 911 call that the driver Subhi Abdelhalim struck him

1 with a van.

2 **REQUEST FOR ADMISSION NO. 23:**

3 Admit that the police report relating to the February 4, 2021 collision does not include the multiple
4 statements in the body-worn camera footage from Plaintiff Franciscus Dylan Rosario that Subhi
5 Abdelhalim hit him.

6 **REQUEST FOR ADMISSION NO. 24:**

7 Admit that under California law, the 911 audio recording containing the insured's admission, the
8 body-worn camera footage containing eyewitness statements that the driver hit the pedestrian, and
9 the body-worn camera footage containing Plaintiff's statements that Abdelhalim hit him, constitute
10 evidence that would support a possible finding of liability against the insured.

11 **REQUEST FOR ADMISSION NO. 25:**

12 Admit that a closed investigation and final liability determination under California law and industry
13 standards requires that such statement evidence (including the 911 party admission, eyewitness
14 body-worn camera statements, and victim statements from body-worn camera footage) be obtained
15 and addressed before concluding that an insured is not liable.

16 **SCOPE OF CSAA'S PRE-DENIAL INVESTIGATION**

17 **REQUEST FOR ADMISSION NO. 26:**

18 Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Fran-
19 cisco Police Department to request records relating to the February 4, 2021 collision.

20 **REQUEST FOR ADMISSION NO. 27:**

21 Admit that as of February 25, 2021, CSAA Insurance Exchange had not contacted the San Fran-
22 cisco Department of Emergency Management to request records relating to the February 4, 2021
23 collision.

24 **REQUEST FOR ADMISSION NO. 28:**

25 Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained any medical
26 records or documentation regarding injuries sustained by Plaintiff in the February 4, 2021 collision.

27 **REQUEST FOR ADMISSION NO. 29:**

28 Admit that as of February 25, 2021, CSAA Insurance Exchange had not retained an accident re-

1 construction expert, biomechanical expert, or any third-party investigator to evaluate the February
2 4, 2021 collision.

3 **REQUEST FOR ADMISSION NO. 30:**

4 Admit that as of February 25, 2021, CSAA Insurance Exchange had not interviewed its own in-
5 sured, Subhi Abdelhalim, under oath or through a recorded statement regarding the circumstances
6 of the February 4, 2021 collision.

7 **REQUEST FOR ADMISSION NO. 31:**

8 Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained a copy of Subhi
9 Abdelhalim's driver's license record or driving history.

10 **REQUEST FOR ADMISSION NO. 32:**

11 Admit that as of February 25, 2021, the only source of information CSAA Insurance Exchange had
12 obtained regarding the circumstances of the February 4, 2021 collision was the account provided
13 by its own insured, Subhi Abdelhalim.

14 **REQUEST FOR ADMISSION NO. 33:**

15 Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained the 911 call
16 audio recording generated by law enforcement in response to the February 4, 2021 collision.

17 **REQUEST FOR ADMISSION NO. 34:**

18 Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained body-worn
19 camera footage generated by law enforcement officers who responded to the February 4, 2021
20 collision.

21 **REQUEST FOR ADMISSION NO. 35:**

22 Admit that as of February 25, 2021, CSAA Insurance Exchange had not obtained computer aided
23 dispatch (CAD) records generated by law enforcement in response to the February 4, 2021 colli-
24 sion.

25 **TIMELINE AND OBTAINABILITY**

26 **REQUEST FOR ADMISSION NO. 36:**

27 Admit that the 911 audio recording, body-worn camera footage, and CAD records relating to the
28 February 4, 2021 collision were obtainable through routine public records requests as of February

25, 2021.

REQUEST FOR ADMISSION NO. 37:

Admit that Plaintiff's counsel (Dolan Law Firm) obtained the 911 audio recording on May 12, 2021, less than three months after the February 4, 2021 collision.

CSAA'S FUNDING AND OVERSIGHT OF THE DEFENSE

REQUEST FOR ADMISSION NO. 38:

Admit that CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, Case No. CGC-21-594102, through retained defense counsel (including Chambers, subsequently Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP).

REQUEST FOR ADMISSION NO. 39:

Admit that CSAA Insurance Exchange maintained a claims file for the bodily injury liability claim arising from the February 4, 2021 collision, and that the claims file was updated with information from the related litigation, CGC-21-594102, during the period the case was pending.

REQUEST FOR ADMISSION NO. 40:

Admit that CSAA Insurance Exchange received periodic reports, updates, or summaries from retained defense counsel regarding the status of the litigation in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, between May 2023 and January 2025.

POST-DENIAL DISCOVERY PRODUCTION AND CSAA'S ACCESS

REQUEST FOR ADMISSION NO. 41:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were produced to defense counsel representing Abdelhalim in discovery in the underlying action, *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 42:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at the deposition of Franciscus Dylan Rosario on August 18, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

REQUEST FOR ADMISSION NO. 43:

Admit that the 911 audio recording, body-worn camera footage, and CAD records were used at

1 the deposition of Subhi Abdelhalim on September 30, 2022, in *Rosario v. Abdelhalim*, Case No.
2 CGC-21-594102.

3 **REQUEST FOR ADMISSION NO. 44:**

4 Admit that after February 25, 2021, CSAA Insurance Exchange or persons acting on its behalf
5 obtained, reviewed, or caused to be obtained any law enforcement records relating to the February
6 4, 2021 collision, including but not limited to the 911 audio recording, body-worn camera footage,
7 CAD records, or police incident reports.

8 **REQUEST FOR ADMISSION NO. 45:**

9 Admit that after February 25, 2021, CSAA Insurance Exchange continued to evaluate, reassess, or
10 monitor the bodily injury liability claim arising from the February 4, 2021 collision.

11 **REQUEST FOR ADMISSION NO. 46:**

12 Admit that CSAA Insurance Exchange set or adjusted reserves on the bodily injury liability claim
13 arising from the February 4, 2021 collision at any time after February 25, 2021.

14 **REQUEST FOR ADMISSION NO. 47:**

15 Admit that at some point after February 25, 2021, CSAA Insurance Exchange or its retained de-
16 fense counsel obtained or received copies of the 911 audio recording, body-worn camera footage,
17 and/or CAD records relating to the February 4, 2021 collision.

18 **REQUEST FOR ADMISSION NO. 48:**

19 Admit that prior to January 17, 2025, CSAA Insurance Exchange was aware that the 911 audio
20 recording, body-worn camera footage, and CAD records had been served on defense counsel by
21 Plaintiff's counsel during discovery in CGC-21-594102.

22 **REQUEST FOR ADMISSION NO. 49:**

23 Admit that prior to January 17, 2025, CSAA Insurance Exchange had listened to, reviewed, or
24 been briefed on the contents of the 911 audio recording in which its insured, Subhi Abdelhalim,
25 stated, verbatim as described in the official 911 transcript: (a) "He cross from me, and he's barely
26 hitting anything, but I'm calling for him," and (b) "BOOM! I just hit him. HIT HIM. There was
27 barely anything. I'm calling the 911 for him."

THE MOTIONS IN LIMINE AND CSAA’S ROLE

REQUEST FOR ADMISSION NO. 50:

Admit that Motions in Limine Nos. 6 and 17, filed by defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, on January 17, 2025, stated, in substance, that the 911 audio recording and police records “were not produced in discovery” and were of “unknown provenance.”

REQUEST FOR ADMISSION NO. 51:

Admit that CSAA Insurance Exchange reviewed, approved, or was informed of the substance of Motions in Limine Nos. 6 and 17 filed by defense counsel on January 17, 2025, before those motions were filed.

REQUEST FOR ADMISSION NO. 52:

Admit that the representations in Motions in Limine Nos. 6 and 17—that the 911 audio recording and police records “were not produced in discovery” and were of “unknown provenance”—were inconsistent with the sworn testimony of J. Jessup, Esq., who testified on February 18, 2025, that the evidence had been served on defense counsel during discovery.

THE 911 RECORDING: AUTHENTICATION AND CONTENT

REQUEST FOR ADMISSION NO. 53:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim regarding the February 4, 2021 collision, and that Abdelhalim authenticated the recording at trial on April 17, 2025, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, by stating verbatim: “Yes. That is my voice.”

REQUEST FOR ADMISSION NO. 54:

Admit that the 911 audio recording contains a statement by Subhi Abdelhalim to the emergency operator, verbatim as described in the official 911 transcript, including: (a) “He cross from me, and he’s barely hitting anything, but I’m calling for him,” and (b) “BOOM! I just hit him. HIT HIM. There was barely anything. I’m calling the 911 for him.”

REQUEST FOR ADMISSION NO. 55:

Admit that a statement by a driver to a 911 operator that he “barely hit” a pedestrian is relevant to the determination of liability in a vehicle-pedestrian collision claim.

REQUEST FOR ADMISSION NO. 56:

1 Admit that a statement by an insured driver that he “barely hit” a pedestrian would be relevant to
2 CSAA’s determination of whether that insured was liable for the collision.

3 **REQUEST FOR ADMISSION NO. 57:**

4 Admit that the body-worn camera footage from Officer Thompson’s interview of the eyewitness
5 (Dustin Rosemond) at the scene of the February 4, 2021 collision contains the eyewitness stating,
6 verbatim as read to the jury during Plaintiff’s closing argument on April 22, 2025 (RT 10, p. 39,
7 ll. 21–23; RT 10, p. 59, ll. 3–4): “The man in the van hit the guy” and “That man in the van hit the
8 guy who was laying on the ground.”

9 **THE UNDERLYING LITIGATION AND OUTCOME**

10 **REQUEST FOR ADMISSION NO. 58:**

11 Admit that the underlying lawsuit, *Rosario v. Abdelhalim*, Case No. CGC-21-594102, was filed
12 on July 27, 2021, approximately five months after the February 25, 2021 denial letter.

13 **REQUEST FOR ADMISSION NO. 59:**

14 Admit that the jury in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, returned a 9–3 verdict
15 for the defense on April 25, 2025.

16 **REQUEST FOR ADMISSION NO. 60:**

17 Admit that a 9–3 verdict is the minimum civil majority required for a verdict under California law.

18 **THE LOGICAL CONTRADICTIONS**

19 **REQUEST FOR ADMISSION NO. 61:**

20 Admit that if CSAA Insurance Exchange had obtained the 911 audio recording prior to February
21 25, 2021, CSAA would have heard Subhi Abdelhalim state, verbatim as described in the official
22 911 transcript, including: (a) “He cross from me, and he’s barely hitting anything, but I’m calling
23 for him,” and (b) “BOOM! I just hit him. HIT HIM. There was barely anything. I’m calling the
24 911 for him.”

25 **REQUEST FOR ADMISSION NO. 62:**

26 Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation
27 of the February 4, 2021 collision was “concluded” as of February 25, 2021, and (b) it had not
28 obtained the 911 audio recording containing its insured’s statement about the collision.

REQUEST FOR ADMISSION NO. 63:

Admit that CSAA Insurance Exchange cannot simultaneously maintain that (a) its investigation was “concluded” as of February 25, 2021, and (b) it continued to evaluate, reassess, monitor, or adjust reserves on the claim after that date.

REQUEST FOR ADMISSION NO. 64:

Admit that if CSAA Insurance Exchange was aware, at any time prior to January 17, 2025, that the 911 audio recording and related law enforcement records had been served on defense counsel during discovery, and did not correct the representations made in Motions in Limine Nos. 6 and 17, then CSAA permitted materially false representations to be made to the Court on its behalf.

REQUEST FOR ADMISSION NO. 65:

Admit that CSAA Insurance Exchange maintains standardized templates or form language for denial letters issued to third-party bodily injury claimants.

REQUEST FOR ADMISSION NO. 66:

Admit that the phrase “concluded our investigation” (or substantially similar language) appears in denial letters issued by CSAA to other third-party claimants, and is not unique to the February 25, 2021 denial letter.

REQUEST FOR ADMISSION NO. 67:

Admit that CSAA Insurance Exchange’s claims-handling procedures include supervisor review or approval of liability denial determinations before issuance of denial letters.

REQUEST FOR ADMISSION NO. 68:

Admit that CSAA Insurance Exchange tracks claim-closure timelines, denial rates, or comparable performance metrics for claims adjusters.

REQUEST FOR ADMISSION NO. 69:

Admit that the only liability-relevant information CSAA Insurance Exchange obtained before issuing the February 25, 2021 denial letter was the account provided by its own insured, Subhi Abdelhalim.

REQUEST FOR ADMISSION NO. 70:

Admit that CSAA Insurance Exchange did not, at any time before February 25, 2021, make any

1 attempt to contact Plaintiff to obtain his account of the February 4, 2021 collision.

2 **REQUEST FOR ADMISSION NO. 71:**

3 Admit that CSAA Insurance Exchange set or adjusted reserves on the claim at any time after
4 issuing the February 25, 2021 denial letter, and that any such reserve change is inconsistent with
5 the claim that the investigation was “concluded” as of that date.

6 **EVIDENCE COLLECTION AND LIABILITY DETERMINATION**

7 **REQUEST FOR ADMISSION NO. 72:**

8 Admit that CSAA Insurance Exchange’s claims-handling procedures require that evidence collec-
9 tion be completed before a liability determination is issued for third-party bodily injury claims.

10 **REQUEST FOR ADMISSION NO. 73:**

11 Admit that CSAA Insurance Exchange’s procedures do not permit a claims adjuster to issue a
12 liability denial until the adjuster has documented what law enforcement records exist and whether
13 they have been requested or obtained when law enforcement responded to the incident.

14 **REQUEST FOR ADMISSION NO. 74:**

15 Admit that the claims file for the February 4, 2021 collision contains no documentation that CSAA
16 attempted to obtain the 911 audio recording, body-worn camera footage, or CAD records before
17 issuing the February 25, 2021 denial letter.

18 **REQUEST FOR ADMISSION NO. 75:**

19 Admit that the adjuster who issued the February 25, 2021 denial letter did not document any request
20 to the San Francisco Police Department or San Francisco Department of Emergency Management
21 for records relating to the February 4, 2021 collision before that date.

22 **REQUEST FOR ADMISSION NO. 76:**

23 Admit that CSAA Insurance Exchange’s liability determination for the February 4, 2021 collision
24 was made without having obtained or reviewed any contemporaneous statement evidence from the
25 911 call, body-worn camera footage, or eyewitnesses at the scene.

26 **REQUEST FOR ADMISSION NO. 77:**

27 Admit that a liability determination cannot truthfully be described as “concluded” when the in-
28 surer has not obtained and reviewed foundational objective evidence that is known or reasonably

knowable to exist and that is material to liability.

REQUEST FOR ADMISSION NO. 78:

Admit that the 911 audio recording, body-worn camera footage, and CAD records are material to a liability determination in a vehicle-pedestrian collision claim when law enforcement responded to the incident.

REQUEST FOR ADMISSION NO. 79:

Admit that CSAA Insurance Exchange's liability determination that Subhi Abdelhalim was "not liable" was based solely on information favorable to the insured, without obtaining or reviewing any independent or contemporaneous evidence that could support liability.

REQUEST FOR ADMISSION NO. 80:

Admit that if CSAA Insurance Exchange had obtained and reviewed the 911 audio recording, body-worn camera footage, and eyewitness statements before February 25, 2021, CSAA could not have truthfully issued a denial letter stating it had "concluded" that its insured was "not liable" without addressing that evidence.

REQUEST FOR ADMISSION NO. 81:

Admit that CSAA Insurance Exchange maintains internal guidelines, checklists, or protocols that specify what evidence must be collected or considered before a liability denial is issued for third-party automobile claims.

REQUEST FOR ADMISSION NO. 82:

Admit that the claims file for the February 4, 2021 collision does not contain any notation, checklist entry, or supervisory approval indicating that 911, body-worn camera, or CAD records were considered, requested, or obtained before the February 25, 2021 denial.

REQUEST FOR ADMISSION NO. 83:

Admit that CSAA Insurance Exchange's claims-handling procedures require that a liability denial determination be documented with a summary of the evidence relied upon, and that the February 25, 2021 denial was issued without documentation that any evidence other than the insured's account was relied upon.

REQUEST FOR ADMISSION NO. 84:

1 Admit that CSAA Insurance Exchange trains or has trained its adjusters that a “concluded” inves-
2 tigation requires completion of evidence collection before a final liability determination is com-
3 municated to a claimant.

4 **REQUEST FOR ADMISSION NO. 85:**

5 Admit that CSAA Insurance Exchange did not inadvertently omit obtaining the 911 audio record-
6 ing, body-worn camera footage, and CAD records; rather, no attempt was made to obtain them
7 before issuing the February 25, 2021 denial letter.

8 **REQUEST FOR ADMISSION NO. 86:**

9 Admit that issuing a denial letter stating an investigation is “concluded” when foundational objec-
10 tive evidence has not been obtained shifts the burden of obtaining and authenticating that evidence
11 onto the claimant.

12 **REQUEST FOR ADMISSION NO. 87:**

13 Admit that a claimant who receives a denial letter stating an investigation is “concluded” would
14 reasonably believe that the insurer had already obtained and reviewed the types of evidence that
15 are routinely generated when law enforcement responds to a collision.

16 **CALIFORNIA INSURANCE CODE AND REGULATORY REQUIRE-**
17 **MENTS**

18 **INSURANCE CODE § 790.03(H) AND FAIR CLAIMS SETTLEMENT**
19 **PRACTICES**

20 **REQUEST FOR ADMISSION NO. 88:**

21 Admit that California Insurance Code section 790.03(h)(3) requires insurers to adopt and imple-
22 ment reasonable standards for the prompt investigation of claims.

23 **REQUEST FOR ADMISSION NO. 89:**

24 Admit that California Insurance Code section 790.03(h)(3) applies to CSAA Insurance Exchange
25 and requires CSAA to maintain reasonable standards for investigating third-party automobile lia-
26 bility claims.

27 **REQUEST FOR ADMISSION NO. 90:**

1 Admit that a reasonable standard for the prompt investigation of a third-party automobile liability
2 claim when law enforcement responded to the incident would include obtaining and reviewing
3 the 911 call recording, body-worn camera footage, and CAD records before issuing a liability
4 determination.

5 **REQUEST FOR ADMISSION NO. 91:**

6 Admit that CSAA Insurance Exchange's handling of the February 4, 2021 collision claim did
7 not comply with the requirement of Insurance Code section 790.03(h)(3) to adopt and implement
8 reasonable standards for the prompt investigation of claims, in that CSAA issued a liability denial
9 without obtaining the 911 audio recording, body-worn camera footage, or CAD records.

10 **REQUEST FOR ADMISSION NO. 92:**

11 Admit that California Insurance Code section 790.03(h)(1) prohibits misrepresenting to claimants
12 pertinent facts or insurance policy provisions relating to any coverages at issue.

13 **REQUEST FOR ADMISSION NO. 93:**

14 Admit that stating that an investigation has been "concluded" when foundational objective liability
15 evidence has not been obtained or reviewed constitutes a misrepresentation of a pertinent fact
16 within the meaning of Insurance Code section 790.03(h)(1).

17 **REQUEST FOR ADMISSION NO. 94:**

18 Admit that California Insurance Code section 790.03(h)(13) requires insurers to provide promptly
19 a reasonable explanation of the basis relied on in the insurance policy, in relation to the facts or
20 applicable law, for the denial of a claim.

21 **REQUEST FOR ADMISSION NO. 95:**

22 Admit that a reasonable explanation of the basis for a liability denial under Insurance Code section
23 790.03(h)(13) requires that the insurer have obtained and reviewed the material facts before issuing
24 the denial, and that the February 25, 2021 denial letter was issued without CSAA having obtained
25 or reviewed the 911 audio recording, body-worn camera footage, or CAD records.

26 **REQUEST FOR ADMISSION NO. 96:**

27 Admit that California Insurance Code section 790.03(h)(5) prohibits insurers from not attempting
28 in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has

1 become reasonably clear.

2 **REQUEST FOR ADMISSION NO. 97:**

3 Admit that obtaining and reviewing the 911 audio recording, body-worn camera footage, and eye-
4 witness statements is necessary to determine whether liability has become reasonably clear in a
5 vehicle-pedestrian collision claim, and that CSAA could not have made a good faith determination
6 that liability was not reasonably clear without obtaining and reviewing that evidence.

7 **CALIFORNIA CODE OF REGULATIONS, TITLE 10 (FAIR CLAIMS**
8 **SETTLEMENT PRACTICES)**

9 **REQUEST FOR ADMISSION NO. 98:**

10 Admit that California Code of Regulations, title 10, section 2695.7(d) provides: “Every insurer
11 shall conduct and diligently pursue a thorough, fair and objective investigation and shall not persist
12 in seeking information not reasonably required for or material to the resolution of a claim dispute.”

13 **REQUEST FOR ADMISSION NO. 99:**

14 Admit that a “thorough” investigation of a third-party automobile liability claim when law en-
15 forcement responded to the incident would include obtaining and reviewing the 911 call recording,
16 body-worn camera footage, and CAD records.

17 **REQUEST FOR ADMISSION NO. 100:**

18 Admit that CSAA Insurance Exchange’s claims-handling procedures are intended to comply with
19 California Code of Regulations, title 10, section 2695.7(d), and that CSAA is aware of the require-
20 ment to conduct and diligently pursue a thorough, fair and objective investigation.

21 **REQUEST FOR ADMISSION NO. 101:**

22 Admit that CSAA Insurance Exchange did not conduct a thorough, fair and objective investigation
23 of the February 4, 2021 collision claim before issuing the February 25, 2021 denial letter, in that
24 CSAA did not obtain or review the 911 audio recording, body-worn camera footage, or CAD
25 records.

26 **REQUEST FOR ADMISSION NO. 102:**

27 Admit that California Code of Regulations, title 10, section 2695.5(e)(3) requires that upon receiv-
28 ing notice of claim, every insurer shall immediately, but in no event more than fifteen (15) calendar

1 days later, begin any necessary investigation of the claim.

2 **REQUEST FOR ADMISSION NO. 103:**

3 Admit that a necessary investigation of a third-party bodily injury claim arising from a vehicle-
4 pedestrian collision when law enforcement responded would include obtaining law enforcement
5 records, including 911 audio, body-worn camera footage, and CAD records.

6 **REQUEST FOR ADMISSION NO. 104:**

7 Admit that CSAA Insurance Exchange did not begin or diligently pursue a necessary investigation
8 of the February 4, 2021 collision claim by obtaining the 911 audio recording, body-worn camera
9 footage, or CAD records before issuing the February 25, 2021 denial letter.

10 **REQUEST FOR ADMISSION NO. 105:**

11 Admit that California Code of Regulations, title 10, section 2695.3(a) requires that every licensee's
12 claim files shall contain all documents, notes and work papers which reasonably pertain to each
13 claim in such detail that pertinent events and the dates of the events can be reconstructed and the
14 licensee's actions pertaining to the claim can be determined.

15 **REQUEST FOR ADMISSION NO. 106:**

16 Admit that the claims file for the February 4, 2021 collision does not contain documentation of
17 any attempt by CSAA to obtain the 911 audio recording, body-worn camera footage, or CAD
18 records before February 25, 2021, and that the absence of such documentation is inconsistent with
19 the requirement of section 2695.3(a) that claim files contain sufficient detail to reconstruct the
20 licensee's actions pertaining to the claim.

21 **REQUEST FOR ADMISSION NO. 107:**

22 Admit that California Code of Regulations, title 10, section 2695.7(b)(1) requires that every insurer
23 that denies or rejects a third party claim, in whole or in part, or disputes liability or damages shall
24 do so in writing, and that such written denial shall provide a statement listing all bases for such
25 rejection or denial and the factual and legal bases for each reason given.

26 **REQUEST FOR ADMISSION NO. 108:**

27 Admit that the February 25, 2021 denial letter stated that CSAA had "concluded" its investigation
28 and "concluded" that its insured was not liable, but that the factual basis for that conclusion could

1 not have included the 911 audio recording, body-worn camera footage, or CAD records because
2 CSAA had not obtained them at the time the denial was issued.

3 **REQUEST FOR ADMISSION NO. 109:**

4 Admit that by issuing the February 25, 2021 denial letter stating that its investigation was “con-
5 cluded” and that its insured was “not liable” without having obtained or reviewed the 911 au-
6 dio recording, body-worn camera footage, or CAD records, CSAA Insurance Exchange failed to
7 comply with the requirements of Insurance Code section 790.03(h)(3), Insurance Code section
8 790.03(h)(13), and California Code of Regulations, title 10, section 2695.7(d).

9 **REQUEST FOR ADMISSION NO. 110:**

10 Admit that CSAA Insurance Exchange, as a California-licensed insurer, is subject to and required
11 to comply with California Insurance Code section 790.03 and the Fair Claims Settlement Practices
12 Regulations set forth in California Code of Regulations, title 10, chapter 5, subchapter 7.5.

Respectfully submitted,

Dated: March 9, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S REQUESTS FOR
ADMISSION (SET FOUR) AND
SPECIAL INTERROGATORIES (SET
FOUR) TO DEFENDANT CSAA**

[Code Civ. Proc., § 2033.010 et seq.; Code
Civ. Proc., § 2030.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2033.010 et seq. and 2030.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Requests for Admission (Set Four) and Special Interrogatories (Set Four) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These requests target CSAA's obligations under the implied covenant of good faith and fair dealing. Specifically, they probe whether CSAA engaged in strategic delay and procedural maneuvering in the face of clear liability, which constitutes bad faith

1 (*Richardson v. Employers Liability Assurance Corp.* (1972) 25 Cal.App.3d 232), and whether
2 CSAA violated claims-handling regulations, which are admissible as evidence of bad faith and
3 deceit (*Yacullo v. AIG Property Casualty Company* (S.D. Cal. 2024) 2024 WL 104758).

1 **REQUESTS FOR ADMISSION (SET FOUR)**

2 **REQUEST FOR ADMISSION NO. 15:**

3 Admit that under California law, strategic delay in the face of clear liability constitutes bad faith.
4 (*Richardson v. Employers Liability Assurance Corp.* (1972) 25 Cal.App.3d 232.)

5 **REQUEST FOR ADMISSION NO. 16:**

6 Admit that under California law, forcing a claimant through unnecessary litigation when the insurer
7 knows the claim is supported by strong evidence constitutes bad faith.

8 **REQUEST FOR ADMISSION NO. 17:**

9 Admit that once CSAA had or reasonably should have had the 911 recording, BWC footage, and
10 CAD records, liability for the February 4, 2021 collision was at least “reasonably clear” within the
11 meaning of Insurance Code section 790.03, subdivision (h)(5).

12 **REQUEST FOR ADMISSION NO. 18:**

13 Admit that CSAA did not attempt in good faith to effectuate a prompt, fair, and equitable settlement
14 of the plaintiff’s claim after liability became reasonably clear.

15 **REQUEST FOR ADMISSION NO. 19:**

16 Admit that CSAA utilized discovery disputes, motions in limine, or “provenance” arguments to
17 delay or obstruct the plaintiff’s presentation of the 911 recording, BWC footage, or CAD records
18 to the Court.

19 **REQUEST FOR ADMISSION NO. 20:**

20 Admit that CSAA’s litigation posture prolonged the resolution of the plaintiff’s claim significantly
21 beyond the time when liability was reasonably clear.

22 **REQUEST FOR ADMISSION NO. 21:**

23 Admit that violations of the Fair Claims Settlement Practices Regulations (Cal. Code Regs., tit.
24 10, § 2695.7) are admissible as evidence of bad faith. (*Yacullo v. AIG Property Casualty Company*
25 (S.D. Cal. 2024) 2024 WL 104758.)

26 **REQUEST FOR ADMISSION NO. 22:**

27 Admit that CSAA did not process the plaintiff’s claim within 40 calendar days of receiving proof

1 of claim as required by California Code of Regulations, title 10, section 2695.7, subdivision (b),
2 or did not provide a detailed written explanation of why additional time was reasonably necessary.

3 **REQUEST FOR ADMISSION NO. 23:**

4 Admit that CSAA's February 25, 2021 denial was not based on "all information reasonably avail-
5 able" within the meaning of California Code of Regulations, title 10, section 2695.7, subdivision
6 (d).

7 **REQUEST FOR ADMISSION NO. 24:**

8 Admit that CSAA misrepresented a pertinent fact to the plaintiff when it represented that its in-
9 vestigation was "concluded" without having obtained the 911 recording, BWC footage, or CAD
10 records.

11 **REQUEST FOR ADMISSION NO. 25:**

12 Admit that CSAA failed to adopt or implement reasonable standards for the prompt investigation
13 and processing of claims, within the meaning of Insurance Code section 790.03, subdivision (h)(3).

1 **SPECIAL INTERROGATORIES (SET FOUR)**

2 **SPECIAL INTERROGATORY NO. 16:**

3 State the precise date on which CSAA first determined, or first should have determined, that liability for the February 4, 2021 collision was “reasonably clear” within the meaning of Insurance Code
4 section 790.03, subdivision (h)(5). Identify all documents and persons supporting your response.
5

6 **SPECIAL INTERROGATORY NO. 17:**

7 Identify every settlement offer, demand, or communication regarding settlement between CSAA
8 (or its agents or counsel) and the plaintiff (or his representatives) from February 4, 2021, to the
9 present. For each, state the date, the amount (if any), and CSAA’s response.

10 **SPECIAL INTERROGATORY NO. 18:**

11 Describe every instance in which CSAA or its defense counsel objected to, moved to exclude,
12 or argued against the admission of the 911 recording, BWC footage, or CAD records. For each
13 instance, state the date, the forum, and the specific basis for the objection or argument.

14 **SPECIAL INTERROGATORY NO. 19:**

15 Identify all CSAA policies, guidelines, manuals, or training materials that address when an insurer
16 must attempt to settle a claim, or how CSAA determines when liability is “reasonably clear.”

17 **SPECIAL INTERROGATORY NO. 20:**

18 If you deny Request for Admission No. 18, describe in detail every good-faith effort CSAA made
19 to effectuate a prompt, fair, and equitable settlement of the plaintiff’s claim after obtaining or
20 receiving the 911 recording, BWC footage, or CAD records.

21 **SPECIAL INTERROGATORY NO. 21:**

22 State whether CSAA processed the plaintiff’s claim within 40 calendar days of receiving proof
23 of claim as required by California Code of Regulations, title 10, section 2695.7, subdivision (b).
24 If not, identify the date on which proof of claim was received, the date on which the claim was
25 accepted or denied, and all documents explaining why additional time was needed.

26 **SPECIAL INTERROGATORY NO. 22:**

27 Identify all documents and evidence CSAA considered “reasonably available” within the meaning

1 of California Code of Regulations, title 10, section 2695.7, subdivision (d), when it issued the
2 February 25, 2021 denial letter.

3 **SPECIAL INTERROGATORY NO. 23:**

4 Identify all CSAA policies, manuals, or training materials that define when an investigation may
5 be truthfully deemed “concluded” or when a claim may be denied.

6 **SPECIAL INTERROGATORY NO. 24:**

7 Describe every communication between CSAA and the California Department of Insurance re-
8 garding the plaintiff’s claim, the underlying litigation, or CSAA’s claims-handling practices in
9 third-party bodily injury cases.

10 **SPECIAL INTERROGATORY NO. 25:**

11 Identify all persons at CSAA responsible for ensuring compliance with California Code of Regu-
12 lations, title 10, section 2695.7, and Insurance Code section 790.03, subdivision (h), in connection
13 with the plaintiff’s claim, and describe the steps each took to ensure compliance.

Respectfully submitted,

Dated: March 15, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**EX PARTE APPLICATION FOR
DOCUMENT PRESERVATION ORDER**

Supporting Declaration of Franciscus Dylan
Rosario; [Proposed] Order

PART I: EX PARTE APPLICATION

RELIEF REQUESTED

Plaintiff Franciscus Dylan Rosario applies ex parte for an order directing Defendant CSAA Insurance Exchange to preserve, maintain, and refrain from destroying, altering, concealing, or disposing of the documents and records identified below. This application is made on the grounds that Defendant is now on notice of fraud allegations arising from its February 25, 2021 denial letter, that the records sought are critical to proving the state of CSAA's investigation at the time of denial, and that without a preservation order, there is a substantial risk of spoliation.

NOTICE

Plaintiff has provided notice of this ex parte application to Defendant CSAA by email and telephone in compliance with Cal. Rules of Court, rule 3.1203.

GROUND FOR EX PARTE RELIEF

A. Irreparable Harm Without Immediate Relief

Ex parte relief is appropriate where the applicant demonstrates “irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.” (Cal. Rules of Court, rule 3.1202(c).) Here, the records targeted by this application are uniquely within Defendant’s custody and control. Once destroyed, altered, or purged, they cannot be reconstructed. The harm is irreparable because:

1. **The complaint alleges insurance fraud.** Defendant is now on notice that its claim file, adjuster notes, diary entries, audit trails, and metadata are the evidence needed to prove whether its representation that the investigation was “concluded” on February 25, 2021 was false.
2. **Defendant has motive to destroy.** The internal records will show what investigation steps were taken (or not taken) before the denial letter, what adjuster notes and diary entries existed, and what metadata and audit trails document the denial-letter process.
3. **CSAA may purge claim file records.** Insurers routinely purge claim files after closure. The underlying claim was closed by the April 25, 2025 judgment in CGC-21-594102. Without a preservation order, CSAA’s ordinary-course records retention may result in destruction of adjuster notes, diary entries, audit trails, metadata, and investigation documentation.
4. **Metadata and audit trails are ephemeral.** Electronic claim-handling systems utilize automated retention policies that overwrite access logs, metadata, and audit trails on a rolling basis (often 30–90 days). Once overwritten, this evidence cannot be reconstructed.
5. **Irreconcilable contradiction evidence.** RFAs 50 and 51 establish that CSAA cannot simultaneously maintain that its investigation was “concluded” and that it (a) had not obtained the 911 recording, or (b) continued to evaluate or adjust reserves. CSAA’s claim file, reserve records, and metadata are needed to prove or disprove these contradictions, and they are at risk of routine purging.

FACTUAL BASIS

The Complaint alleges that CSAA falsely represented in its February 25, 2021 denial letter that its investigation was “concluded” when in fact material investigation steps had not been taken. The evidence necessary to prove the falsity of this representation resides in CSAA’s claim file, adjuster notes, diary entries, audit trails, metadata, and investigation documentation. These records establish exactly when files were accessed, created, or modified, and what investigation activity occurred before the denial.

RECORDS TO BE PRESERVED

A. CSAA Insurance Exchange

1. The complete claim file for the Abdelhalim claim arising from the February 4, 2021 incident, including all adjuster notes, diary entries, and internal correspondence from February 4, 2021 through the present.
2. All audit trails, metadata, and system logs reflecting access to, creation of, or modification of claim file records, including records showing when the denial letter was drafted, reviewed, approved, and issued.
3. All records reflecting the investigation (or absence of investigation) conducted before, during, and after the February 25, 2021 denial letter, including but not limited to: requests for 911 audio, body-worn camera footage, CAD records, or supplemental police reports; records of any such materials obtained or reviewed; and records of any investigation steps taken or deferred.
4. All records documenting the denial-letter process, including drafts, approval chains, and communications regarding the decision to deny the claim.
5. All litigation management records, instructions, and correspondence with defense counsel regarding the defense of CGC-21-594102.
6. **Claims manual and procedures:** All claims manual, procedures, and training materials defining what constitutes a “complete” or “concluded” investigation before a liability denial; denial-letter templates and form language; and records of supervisor review or approval of

1 the liability denial.

2 7. **Pre-denial investigation:** All records of any contact with SFPD or DEM before February
3 25, 2021; records of any request for 911 audio, body-worn camera footage, or CAD records
4 before February 25, 2021; records of any medical records, expert reports, or third-party in-
5 vestigation obtained before the denial; and records of any recorded or sworn statement from
6 the insured before the denial.

7 8. **Post-denial conduct:** All records of when CSAA or its counsel first obtained the 911 record-
8 ing, body-worn camera footage, or CAD records; records of any post-denial evaluation, re-
9 assessment, or monitoring of the claim; and records of any reserve changes after February 25,
10 2021.

11 9. **MIL review and ratification:** All records of CSAA's awareness, before January 17, 2025,
12 that the 911/BWC/CAD had been served on defense counsel; records of CSAA's review,
13 approval, or notice of MIL Nos. 6 and 17 before filing; and records of any disavowal or
14 correction of MIL Nos. 6 and 17 after the February 18, 2025 hearing.

15 10. **Institutional practice:** All records of claim-closure timelines, denial rates, or comparable
16 performance metrics for claims adjusters.

17 LEGAL AUTHORITY

18 The Court has inherent authority to issue preservation orders to protect the integrity of pending
19 litigation. (See *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414,
20 1420.) A preservation order is appropriate where there is a reasonable basis to believe that relevant
21 evidence may be lost or destroyed. (*Cedars-Sinai Med. Ctr. v. Superior Court* (1998) 18 Cal.4th
22 1, 12.)

23 California courts possess inherent power to strictly control their own process and prevent the de-
24 struction of evidence. (Code Civ. Proc., § 128; *Dodge, Warren & Peters*, supra.) Insurers have
25 duties under Insurance Code section 790.03(h)(3) and title 10, California Code of Regulations sec-
26 tions 2695.3 and 2695.7(d) regarding claims handling and documentation. Spoliation of evidence
27 after a party is on notice of its relevance gives rise to adverse inferences (Evid. Code, § 413)
28 and sanctions (Code Civ. Proc., § 2023.030). A preservation order ensures that any subsequent

1 destruction triggers these remedies.

2 **CONCLUSION**

3 Plaintiff respectfully requests the Court issue the attached Proposed Order directing Defendant
4 CSAA to preserve the records identified above for the duration of this litigation.

1 **PART II: DECLARATION OF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare as follows:

- 3 1. I am the Plaintiff in this action, proceeding in pro per. I have personal knowledge of the facts
4 stated herein, and if called as a witness, I could and would testify competently to them.
- 5 2. On or about February 27, 2026, I completed service of the Complaint in this action on Defen-
6 dant CSAA Insurance Exchange. The Complaint alleges fraud arising from CSAA's February
7 25, 2021 denial letter, which falsely represented that CSAA's investigation was "concluded."
- 8 3. The evidence necessary to prove the falsity of this representation resides in CSAA's electronic
9 claim systems: specifically, the claim file, adjuster notes, diary entries, audit trails, metadata,
10 and investigation documentation showing what activity, if any, occurred prior to the denial.
- 11 4. I am informed and believe that such systems utilize automated retention policies that over-
12 write access logs and metadata on a rolling basis. Without a preservation order, the primary
13 objective evidence of the timeline of events is at immediate risk of spoliation.
- 14 5. The underlying claim was closed by the April 25, 2025 judgment in CGC-21-594102. Insur-
15 ers routinely purge claim files after a period following claim closure.
- 16 6. I believe that without a preservation order, there is a substantial risk that some or all of these
17 records will be destroyed, altered, or purged before they can be obtained through formal
18 discovery.
- 19 7. I have provided notice of this ex parte application to Defendant CSAA by email and tele-
20 phone.

21 I declare under penalty of perjury under the laws of the State of California that the foregoing is
22 true and correct.

23 Dated: March 9, 2026

24 

1 **PART III: [PROPOSED] ORDER GRANTING EX PARTE APPLICA-**
2 **TION**

The Ex Parte Application of Plaintiff Franciscus Dylan Rosario for a Document Preservation Order having come before this Court, and good cause appearing therefor,

IT IS HEREBY ORDERED that:

1. Defendant CSAA Insurance Exchange shall immediately preserve, maintain, and refrain from destroying, altering, concealing, transferring, or disposing of the following records:
 - (a) The complete claim file for the Abdelhalim claim arising from the February 4, 2021 incident, including all adjuster notes, diary entries, internal correspondence, audit trails, metadata, and investigation documentation from February 4, 2021 through the present.
 - (b) All records documenting the denial-letter process, including drafts, approval chains, and communications regarding the decision to deny the claim.
 - (c) All litigation management records and correspondence with defense counsel regarding CGC-21-594102.
 - (d) All claims manual, procedures, and training materials defining “complete” or “concluded” investigation; denial-letter templates; records of pre-denial contact with SFPD or DEM; records of when CSAA or its counsel first obtained the 911/BWC/CAD; records of post-denial evaluation and reserve changes; records of CSAA’s awareness and review of MIL Nos. 6 and 17; and records of claim-closure timelines and denial rates.
2. This Order shall remain in effect for the duration of this litigation unless modified by further order of the Court.
3. Violation of this Order may result in sanctions, including adverse inferences (Evid. Code, § 413), monetary sanctions (Code Civ. Proc., § 2023.030), and such other relief as the Court deems appropriate.
4. Plaintiff shall serve a copy of this Order on Defendant within 48 hours of its issuance.

Date: March 9, 2026

Judge, Superior Court of the State of California
County of San Francisco

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S FIRST SET OF SPECIAL
INTERROGATORIES AND REQUESTS
FOR PRODUCTION**

[Code Civ. Proc., § 2030.010 et seq.; Code
Civ. Proc., § 2031.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2030.010 et seq. and 2031.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Special Interrogatories and Requests for Production of Documents to Defendant CSAA Insurance Exchange. Responses and document productions are due within 30 days of service.

Purpose: These discovery requests are designed to establish the “inverse inference” (spoliation and concealment inference) and lock in damages resulting from CSAA’s role in the Extrinsic Fraud on the Court. Specifically, they address CSAA’s knowledge, requests for, and receipt of the 911 logs, videos, and body-worn camera footage more than 20 months prior to their defense counsel’s false representations to the Court, and CSAA’s failure to correct these misrepresentations.

SPECIAL INTERROGATORIES

SPECIAL INTERROGATORY NO. 1:

Identify all dates on which you, or defense counsel acting on your behalf (including Carbone, Smith & Koyama and Phillips, Spallas & Angstadt LLP), requested, subpoenaed, or otherwise sought the 911 logs, audio recordings, CAD logs, and/or body-worn camera footage pertaining to the February 4, 2021 collision.

SPECIAL INTERROGATORY NO. 2:

If you contend that your retained defense counsel did not possess the 911 audio recording and body-worn camera footage for at least 20 months prior to January 17, 2025, state all facts, identify all witnesses, and describe all documents that support your contention.

SPECIAL INTERROGATORY NO. 3:

Explain in detail your knowledge of the 911 audio recording and body-worn camera footage as of May 4, 2023, when the defense file was transferred to Phillips, Spallas & Angstadt LLP.

SPECIAL INTERROGATORY NO. 4:

State all facts supporting your decision not to instruct your retained defense counsel to withdraw or correct the representations made in Motion in Limine No. 17, which stated: “Defendant has no idea where this 911 call log or audio recording came from,” despite counsel’s possession of the materials for over 20 months.

SPECIAL INTERROGATORY NO. 5:

Identify every individual at CSAA Insurance Exchange who was aware that defense counsel Priya D. Navaratnasingham had represented to the Court on February 18, 2025, that the 911 call was “news to me.”

REQUESTS FOR PRODUCTION OF DOCUMENTS

REQUEST FOR PRODUCTION NO. 1:

All written communications, including emails, claim notes, and internal memoranda, dated between May 4, 2023, and April 25, 2025, that discuss, reference, or relate to the 911 audio recording, CAD logs, or body-worn camera footage for the February 4, 2021 collision.

REQUEST FOR PRODUCTION NO. 2:

39 All communications between CSAA Insurance Exchange and Phillips, Spallas & Angstadt LLP
40 regarding the drafting, filing, or substance of Motions in Limine Nos. 6 and 17 in CGC-21-594102.

41 **REQUEST FOR PRODUCTION NO. 3:**

42 All documents, including subpoenas and Public Records Act requests, generated by you or on your
43 behalf at any time prior to January 17, 2025, seeking 911 logs, CAD records, or body-worn camera
44 footage related to the February 4, 2021 collision.

45 **REQUEST FOR PRODUCTION NO. 4:**

46 All documents that support your calculation of damages, attorney's fees, and costs incurred in
47 defending against Plaintiff's claims in CGC-21-594102, which Plaintiff contends were inflated by
48 the fraudulent concealment of the 911 and body-worn camera evidence.

Respectfully submitted,

Dated: March 11, 2026

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-21-594102

(Related to Case No.: CGC-25-631801 and
CGC-25-631802)

**PLAINTIFF'S NOTICE OF MOTION
AND MOTION TO DEEM REQUESTS
FOR ADMISSION (SET FOUR)
ADMITTED AND COMPEL ANSWERS
TO SPECIAL INTERROGATORIES
(SET FOUR); REQUEST FOR
SANCTIONS**

[Code Civ. Proc., § 2033.280; Code Civ.
Proc., § 2030.290]

Date: TBD

Time: TBD

Dept: TBD

NOTICE OF MOTION

TO DEFENDANT CSAA INSURANCE EXCHANGE AND ITS ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on a date and time to be scheduled by the Court, Plaintiff Francis-
cus Dylan Rosario will move this Court for an order pursuant to Code of Civil Procedure sections
2033.280 and 2030.290. Plaintiff will move that the truth of the matters specified in Plaintiff's
Requests for Admission (Set Four) be deemed admitted against Defendant CSAA Insurance Ex-
change, and that Defendant be compelled to answer Plaintiff's Special Interrogatories (Set Four).
This motion is made on the grounds that Defendant CSAA Insurance Exchange has failed to serve
a timely response to the Requests for Admission (Set Four) and Special Interrogatories (Set Four),
which were served on Defendant concurrently with Plaintiff's Memorandum detailing the legal
framework of *Richardson v. Employers Liability Assurance Corp.* (1972) 25 Cal.App.3d 232 and
Yacullo v. AIG Property Casualty Company (S.D. Cal. 2024) 2024 WL 104758.
Plaintiff will further move for mandatory monetary sanctions against Defendant and its counsel of
record pursuant to Code of Civil Procedure sections 2033.280(c) and 2030.290(c), on the grounds
that their failure to serve a timely response necessitated this motion.
This motion will be based on this Notice of Motion, the attached Memorandum of Points and
Authorities, the pleadings and papers on file herein, and upon such other evidence or argument as
may be presented at the hearing of this motion.

MEMORANDUM OF POINTS AND AUTHORITIES

RELEVANT FACTS

Plaintiff served Requests for Admission (Set Four) and Special Interrogatories (Set Four) on Defen-
dant CSAA Insurance Exchange, along with a supporting Memorandum of Points and Authorities
detailing the necessity of the discovery under the *Richardson* and *Yacullo* legal frameworks.
Pursuant to Code of Civil Procedure sections 2033.250(a) and 2030.260(a), Defendant's responses
were due within 30 days. To date, no responses have been received from Defendant CSAA Insur-
ance Exchange, nor has Defendant requested an extension of time to respond.
Because Defendant has completely failed to respond, no meet and confer was required prior to fil-
ing this motion. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007)
148 Cal.App.4th 390, 404; Code Civ. Proc., § 2033.280(b); Code Civ. Proc., § 2030.290(b).)

LEGAL ARGUMENT

A. The Court Must Deem the Matters Admitted

Code of Civil Procedure section 2033.280(b) states that if a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Section 2033.280(c) is mandatory: “The court *shall* make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Emphasis added).

Because no such response has been served, Plaintiff is entitled to an order deeming the matters admitted. The requested admissions (Set Four) concern critical issues relating to CSAA’s strategic delay in the face of clear liability (*Richardson*) and regulatory violations serving as evidence of bad faith (*Yacullo*). Deeming these matters admitted will lock in the undisputable facts regarding CSAA’s bad faith conduct and misrepresentations. Furthermore, Defendant’s failure to respond constitutes a waiver of all objections to the requests. (Code Civ. Proc., § 2033.280(a).)

B. The Court Must Compel Answers to the Interrogatories

Code of Civil Procedure section 2030.290(b) provides that if a party fails to serve a timely response to interrogatories, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.”

When a party fails to serve a timely response to interrogatories, that party waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including ones based on privilege or on the protection for work product. (Code Civ. Proc., § 2030.290(a).)

Defendant’s failure to respond completely waives any objections to Plaintiff’s Special Interrogatories (Set Four), which seek the factual basis and internal documentation regarding CSAA’s alleged regulatory violations and strategic delay. Plaintiff is entitled to an order compelling full, verified, and un-objected-to responses.

1 **C. Monetary Sanctions are Mandatory**

2 Code of Civil Procedure section 2033.280(c) requires that: “It is mandatory that the court impose
3 a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attor-
4 ney, or both, whose failure to serve a timely response to requests for admission necessitated this
5 motion.”

6 Similarly, Code of Civil Procedure section 2030.290(c) states that the court “shall impose a mone-
7 tary sanction” against any party, person, or attorney who unsuccessfully makes or opposes a motion
8 to compel a response to interrogatories, unless it finds that the one subject to the sanction acted
9 with substantial justification.

10 Defendant’s unexcused failure to respond necessitated the drafting and filing of this dual motion.
11 Therefore, monetary sanctions in an amount to be determined by the Court are mandatory under
12 both statutes.

13 **CONCLUSION**

14 For the foregoing reasons, Plaintiff respectfully requests that the Court enter an order: 1. Deeming
15 the matters specified in Plaintiff’s Requests for Admission (Set Four) admitted against Defendant
16 CSAA Insurance Exchange; 2. Compelling Defendant CSAA Insurance Exchange to provide full
17 and verified responses, without objections, to Plaintiff’s Special Interrogatories (Set Four); and 3.
18 Awarding mandatory monetary sanctions against Defendant and its counsel of record.

Respectfully submitted,

Dated: March 15, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S REQUEST FOR
JUDICIAL NOTICE**

[Evid. Code, § 452, Evid. Code, § 453]

INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully requests that the Court take judicial notice of the following documents and records pursuant to Evidence Code sections 452 and 453. Each item consists of an official court record or filing from proceedings in which the authenticity and existence of the documents are not reasonably subject to dispute.

Plaintiff's Memorandum re Navaratnasingham "Dolan" Admission (Document 09) provides the full legal and factual analysis of the fatal admission. This Request for Judicial Notice supports that

1 memorandum by establishing the judicially noticeable records.

2 **DOCUMENTS FOR WHICH JUDICIAL NOTICE IS REQUESTED**

3 Pursuant to Evidence Code section 452, subdivision (d) (records of any court of this state), Plaintiff
4 requests judicial notice of the following:

5 **Exhibit A: Clerk’s Transcript – Motions in Limine (CGC-21-594102)**

6 Motions in Limine Nos. 6 and 17, filed January 17, 2025, in the matter of *Rosario v. Abdelhalim*,
7 Case No. CGC-21-594102, Superior Court of the State of California, County of San Francisco.

8 **Relevance:** MIL No. 6 asserted that recorded materials, including the 911 call audio, “were not
9 produced in discovery.” MIL No. 17 asserted that “Defendant has no idea where this 911 call log
10 or audio recording came from.” These are the operative false representations forming the basis of
11 Leg 2 of the complaint’s three-leg framework.

12 **Exhibit B: Reporter’s Transcript – February 18, 2025 Pretrial Hearing (CGC-21-594102)**

13 Reporter’s Transcript of proceedings held February 18, 2025, before the Honorable Judge Wong,
14 Department 504, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

15 **Relevance:** This transcript contains (1) the sworn testimony of J. Jessup, Esq., that the 911 audio
16 recording, body-worn camera footage (approximately five videos), and CAD log were served on
17 defense counsel during discovery and depositions (August–September 2022); and (2) Defendant
18 Navaratnasingham’s in-court statement that the 911 call evidence was “news to me.”

19 **Exhibit C: Reporter’s Transcript – April 16–17, 2025 Trial (CGC-21-594102)**

20 Reporter’s Transcript of trial proceedings held April 16 and April 17, 2025, in *Rosario v. Abdel-*
21 *halim*, Case No. CGC-21-594102.

22 **Relevance:** This transcript contains (1) Defendant Reyna’s statement that the supplemental police
23 report was “not anything that we received as part of the subpoena”; (2) Defendant Reyna’s state-
24 ment that he was “not sure what recording” Plaintiff referred to regarding the 911 call; and (3)
25 Defendant Abdelhalim’s authentication of the 911 recording: “Yes. That is my voice.” (RT Day 8,
26 4/17/25, Line 1979.)

Exhibit D: Substitution of Attorney (CGC-21-594102)

Substitution of Attorney filed May 4, 2023 (Transaction ID # 69953800) in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, substituting Phillips, Spallas & Angstadt LLP as defense counsel.

Relevance: This filing establishes the date on which the defense file, containing materials served during discovery (including the 911 audio, BWC footage, and CAD log), was transferred to Defendant Navaratnasingham's firm from Michael R. Chambers and Carbone, Smith & Koyama.

Exhibit D-1: Deposition of Subhi Abdelhalim (Sept. 30, 2022) (CGC-21-594102)

Deposition of Defendant Subhi Abdelhalim taken September 30, 2022, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, excerpts at pp. 4–5, 17–19, 26.

Relevance: Defendant acknowledged the collision when asked “Do you recall that collision?” answering “Yes” and described the incident in detail. At trial, Defendant testified “no contact” occurred. This contradiction supports Plaintiff's version and impeaches Defendant's trial testimony; supports Demand Facts 19 and related meritorious-case showing.

Exhibit E: Notice of Entry of Judgment (CGC-21-594102)

Notice of Entry of Judgment entered April 29, 2025, in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, reflecting the judgment entered April 25, 2025.

Relevance: This is the judgment Plaintiff seeks to set aside as having been procured through extrinsic fraud on the court.

Exhibit F: Jury Question and Court Response (CGC-21-594102)

The jury's written question during deliberations asking whether to consider Vehicle Code sections 22107 and 21804(a), and the Court's response prohibiting consideration of those statutes.

Relevance: Establishes that Vehicle Code provisions were before the jury but the Court directed they not be considered, supporting the prejudice element of the extrinsic fraud claim.

Exhibit G: Reporter's Transcript RT 7, p. 214, ll. 13–15 (CGC-21-594102) — Navaratnasingham “Dolan” Admission

Certified excerpt of the Reporter's Transcript of trial proceedings held April 16, 2025, in *Rosario v. Abdelhalim*, CGC-21-594102, containing Defendant Navaratnasingham's statement: “Sure. They were provided by Dolan. He has had them for whatever, sure.”

Relevance: This is the fatal admission that proves the prior false representations false. It establishes that defense had the body-worn camera footage (“provided by Dolan”) and that Navaratnasingham’s February 18 “news to me” and MIL No. 17 “no idea where” were false.

Exhibit C-12: Reporter’s Transcript RT 7, pp. 143-144 (CGC-21-594102)

Officer testimony that plaintiff “caused the collision” under Vehicle Code section 21651(b); officer never cited pedestrians, bicyclists, or scooters for directional violation.

Relevance: Supports meritorious-case element; officer fault conclusion contradicted by VC 22107/21804.

Exhibit C-12a: Reporter’s Transcript RT 7, pp. 114-115 (CGC-21-594102)

Sign “turning vehicles must yield”; officer testimony on safe turning; jury question regarding Vehicle Code sections 22107 and 21804.

Relevance: Supports prejudice and abuse-of-discretion; turning-duty statutes were before the jury.

Exhibit C-12b: Reporter’s Transcript RT 7, pp. 92, 154 (CGC-21-594102)

Officer’s fault conclusion rested on secondhand statements; court admitted as lay opinion.

Relevance: Supports hearsay and abuse-of-discretion showing; lay-opinion admission of fault conclusion.

KEY EXCERPTS FROM JUDICIALLY NOTICED RECORDS (FALSE REPRESENTATIONS AND THE FATAL ADMISSION THAT PROVES THEM FALSE)

The following excerpts establish the five specific false representations identified in the complaint and the fatal admission that proves them false:

#	Date	Who	False Representation	Exhibit
1	Jan. 17, 2025	Navaratnasingham (MIL No. 6)	Recorded materials “were not produced in discovery”	A
2	Jan. 17, 2025	Navaratnasingham (MIL No. 17)	“Defendant has no idea where this 911 call log or audio recording came from”	A
3	Feb. 18, 2025	Navaratnasingham (pretrial hearing)	The 911 call was “news to me”	B
4	Apr. 16, 2025	Reyna (trial)	Supplemental report was “not anything that we received as part of the subpoena”	C

#	Date	Who	False Representation	Exhibit
5	Apr. 16, 2025	Reyna (trial)	“Not sure what recording” Plaintiff was referring to	C
6	Apr. 16, 2025	Navaratnasingham (trial)	“They were provided by Dolan. He has had them for whatever, sure.” (Fatal admission)	G

These false representations are contradicted by: (1) Jessup’s sworn testimony (Exhibit B) that the materials were served during discovery (August–September 2022) and used at depositions; (2) the Substitution of Attorney (Exhibit D) establishing PSA assumed the defense file on May 4, 2023, necessarily including the previously served materials; and (3) Abdelhalim’s authentication of the 911 recording (Exhibit C): “Yes. That is my voice.”

LEGAL BASIS

Evidence Code section 452, subdivision (d), provides that judicial notice may be taken of “[r]ecords of (1) any court of this state.” Evidence Code section 453 makes judicial notice mandatory when a party requests it and provides sufficient notice and information to enable the court to take judicial notice.

The documents identified above are official court records from proceedings in the Superior Court of the State of California, County of San Francisco. Their authenticity is established by the official court file, and their contents are not reasonably subject to dispute.

EFFECT OF JUDICIAL NOTICE

Once judicially noticed, these records become part of the court’s file in this action. Any demurrer for “lack of specificity” fails on its face because the who, what, when, where, and how of the alleged fraud is established in the transcripts and court filings. The defense cannot deny facts that appear in sworn testimony and official court records.

The Navaratnasingham “Dolan” admission (Exhibit G) is the fatal proof that the prior representations were false. See Plaintiff’s Memorandum re Navaratnasingham “Dolan” Admission (Document 09).

Respectfully submitted,

Dated: March 9, 2026

A handwritten signature in blue ink, appearing to read "Franciscus" followed by a stylized flourish.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102
and CGC-25-631801)

**PLAINTIFF'S REQUESTS FOR
ADMISSION (SET FIVE) TO
DEFENDANT CSAA INSURANCE
EXCHANGE: INSUFFICIENCY OF
POLICE REPORT RELIANCE**

[Code Civ. Proc., § 2033.010 et seq.]

PROPOUNDING PARTY AND INSTRUCTIONS

Pursuant to Code of Civil Procedure section 2033.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Requests for Admission (Set Five) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These requests establish that CSAA's reliance on the police report alone was legally insufficient to support a denial of Plaintiff's claim, and that the police report itself contained a roadmap (the CAD number) to the very evidence CSAA chose not to obtain. The requests are grounded in *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809

1 (duty to thoroughly investigate before denial); *Bartel v. Chicago Title Insurance Co.* (2025) 99
2 Cal.App.5th ___ (duty to pursue obvious leads beyond the narrow claim framing); *Mariscal v. Old*
3 *Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617 (neutral-investigator duty); California Code of
4 Regulations, title 10, section 2695.7(d) (thorough, fair, and objective investigation); and Insurance
5 Code section 790.03(h)(1) (prohibition on misrepresenting pertinent facts to claimants).

REQUESTS FOR ADMISSION (SET FIVE)

I. The Police Report as an Incomplete Record

REQUEST FOR ADMISSION NO. 26:

Admit that the police report relating to the February 4, 2021 collision is a narrative summary prepared by the responding officer and is not a verbatim record of statements made at the scene by any person.

REQUEST FOR ADMISSION NO. 27:

Admit that a police report and a 911 audio recording are different categories of evidence, and that a police report does not substitute for or contain the content of the 911 audio recording.

REQUEST FOR ADMISSION NO. 28:

Admit that the police report relating to the February 4, 2021 collision does not contain the statement “BOOM! I just hit him. HIT HIM. There was barely anything” or any language equivalent to that statement.

REQUEST FOR ADMISSION NO. 29:

Admit that the police report relating to the February 4, 2021 collision does not contain the statement “He cross from me, and he’s barely hitting anything, but I’m calling for him” or any language equivalent to that statement.

REQUEST FOR ADMISSION NO. 30:

Admit that the police report relating to the February 4, 2021 collision does not include, reference, or summarize any statement by Subhi Abdelhalim to the 911 operator acknowledging that he struck the pedestrian.

REQUEST FOR ADMISSION NO. 31:

Admit that a police report and body-worn camera footage are different categories of evidence, and that the police report does not substitute for or contain the content of body-worn camera footage.

REQUEST FOR ADMISSION NO. 32:

Admit that the police report relating to the February 4, 2021 collision does not include or reference body-worn camera footage in which eyewitness Dustin Rosemond made statements to the

1 responding officer (Officer Thompson) during the scene investigation.

2 **REQUEST FOR ADMISSION NO. 33:**

3 Admit that the body-worn camera footage of the February 4, 2021 collision was censored or
4 redacted by the San Francisco Police Department before release, and that no verbatim transcript of
5 Dustin Rosemond's statements as captured on that footage is available to Plaintiff.

6 **REQUEST FOR ADMISSION NO. 34:**

7 Admit that the body-worn camera footage of the February 4, 2021 collision, and the statements
8 made by eyewitness Dustin Rosemond captured thereon during his interaction with Officer Thomp-
9 son, are effectively equivalent to a full statement to the responding officer that he witnessed the
10 collision between the van and the pedestrian, to the effect that the van came around the corner and
11 struck the pedestrian.

12 **REQUEST FOR ADMISSION NO. 35:**

13 Admit that the police report relating to the February 4, 2021 collision is not a complete record of
14 the law enforcement response to the collision because it does not include the 911 audio recording,
15 the body-worn camera footage, or the computer-aided dispatch records generated during the same
16 response.

17 **II. The CAD Number as a Roadmap to the Suppressed Evidence**

18 **REQUEST FOR ADMISSION NO. 36:**

19 Admit that the police report relating to the February 4, 2021 collision references or contains a CAD
20 (computer-aided dispatch) number.

21 **REQUEST FOR ADMISSION NO. 37:**

22 Admit that a CAD number is a unique identifier that links to the computer-aided dispatch record,
23 911 call log, and associated law enforcement records for the same incident.

24 **REQUEST FOR ADMISSION NO. 38:**

25 Admit that a person reviewing the police report would be able to identify the CAD number refer-
26 enced therein and use it to request additional law enforcement records, including 911 audio and
27 dispatch logs, from the San Francisco Police Department or San Francisco Department of Emer-

1 agency Management.

2 **REQUEST FOR ADMISSION NO. 39:**

3 Admit that as of February 25, 2021, CSAA Insurance Exchange did not use the CAD number
4 on the police report to request or retrieve any additional records from the San Francisco Police
5 Department or San Francisco Department of Emergency Management.

6 **REQUEST FOR ADMISSION NO. 40:**

7 Admit that CSAA Insurance Exchange's adjusters are trained or instructed that a CAD number on
8 a police report indicates the existence of additional retrievable law enforcement records, including
9 911 audio and dispatch logs.

10 **III. The Insufficiency of Police-Report-Only Reliance**

11 **REQUEST FOR ADMISSION NO. 41:**

12 Admit that a reasonable insurer investigating a vehicle-pedestrian collision cannot determine whether
13 its insured made admissions of fault to a 911 operator by reading the police report alone, without
14 obtaining the 911 audio recording.

15 **REQUEST FOR ADMISSION NO. 42:**

16 Admit that CSAA Insurance Exchange's claims-handling procedures do not authorize an adjuster
17 to issue a liability denial based solely on a police report and the insured's own account when the
18 police report indicates that additional law enforcement records exist and are retrievable.

19 **REQUEST FOR ADMISSION NO. 43:**

20 Admit that CSAA Insurance Exchange's reliance on the police report alone, without obtaining
21 the 911 audio recording, body-worn camera footage, or CAD records referenced by or associated
22 with that police report, did not constitute a "thorough, fair and objective investigation" within the
23 meaning of California Code of Regulations, title 10, section 2695.7(d).

24 **REQUEST FOR ADMISSION NO. 44:**

25 Admit that the phrase "based on available evidence" or "based on our investigation" in a denial
26 letter does not relieve an insurer of the duty to obtain evidence that is reasonably available but has
27 not been requested.

REQUEST FOR ADMISSION NO. 45:

Admit that CSAA Insurance Exchange has no internal documentation showing that any adjuster, supervisor, or manager reviewed the CAD number on the police report and made a documented decision that no additional records needed to be obtained before issuing the February 25, 2021 denial letter.

IV. The Counterfactual: What CSAA Would Have Found

REQUEST FOR ADMISSION NO. 46:

Admit that if CSAA Insurance Exchange had obtained the 911 audio recording prior to February 25, 2021, it would have discovered that its insured, Subhi Abdelhalim, stated to the 911 operator, verbatim as described in the official 911 transcript: (a) “He cross from me, and he’s barely hitting anything, but I’m calling for him,” and (b) “BOOM! I just hit him. HIT HIM. There was barely anything. I’m calling the 911 for him.”

REQUEST FOR ADMISSION NO. 47:

Admit that if CSAA Insurance Exchange had obtained the body-worn camera footage prior to February 25, 2021, it would have discovered that an independent eyewitness, Dustin Rosemond, made statements to the responding officer (Officer Thompson) to the effect that he witnessed the van come around the corner and strike the pedestrian.

REQUEST FOR ADMISSION NO. 48:

Admit that a liability determination that its insured was “not liable” could not have been issued in good faith if CSAA had first listened to its own insured’s 911 admission that he struck the pedestrian.

REQUEST FOR ADMISSION NO. 49:

Admit that CSAA Insurance Exchange could not have truthfully represented that its investigation was “concluded” if, at the time of that representation, it had not obtained or reviewed the 911 audio recording, body-worn camera footage, or CAD records associated with the police report in its file.

REQUEST FOR ADMISSION NO. 50:

Admit that Plaintiff’s counsel (Dolan Law Firm) obtained the 911 audio recording through a rou-

1 tine California Public Records Act request in less than three months after the collision, demon-
2 strating that the recording was readily obtainable by any party who requested it.

Respectfully submitted,

Dated: March 16, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**PLAINTIFF’S MEMORANDUM OF
POINTS AND AUTHORITIES IN
SUPPORT OF INDEPENDENT ACTION
IN EQUITY:**

**The Navaratnasingham “Dolan”
Admission as Fatal Proof of Extrinsic
Fraud and Fraud on the Court**

[With Exhibits A through D Attached]

INTRODUCTION

On April 16, 2025—Trial Day 7 in the underlying action, *Rosario v. Abdelhalim*, Case No. CGC-21-594102—defense counsel Priya D. Navaratnasingham made the following statement on the certified Reporter’s Transcript:

“Sure. They were provided by Dolan. He has had them for whatever, sure.”
(RT 7, p. 214, ll. 13–15; Exhibit A, attached hereto.)

This single sentence constitutes the operational linchpin of the entire fraud-on-the-court claim. It

1 is a codified confession that (1) the body-worn camera footage was provided by Dolan Law Firm
2 during discovery; (2) Plaintiff had had the recordings for a substantial period; and (3) the defense
3 possessed and curated these materials for trial. When placed alongside Navaratnasingham’s prior
4 sworn representations to this Court—in her Declaration in Support of Motions in Limine Nos.
5 1–19 (January 17, 2025), in MIL No. 6, in MIL No. 17, and in her February 18, 2025 hearing
6 statements—the April 16 admission creates an irreconcilable contradiction that proves extrinsic
7 fraud as a matter of law.

8 This memorandum demonstrates that the defense strategy was not a “good faith mistake” or “cler-
9 ical error.” It was a calculated scheme of suppression accomplished through false representations
10 to the Court, false denials of possession, and affirmative artifice that corrupted the judicial process
11 and produced a verdict that cannot stand.

12 **STATEMENT OF FACTS: THE CHAIN OF CONTRADICTING STATE-** 13 **MENTS**

14 **A. The Written Declarations and MIL Filings (January 17, 2025)**

15 On January 17, 2025, Defendant Navaratnasingham filed the **Declaration in Support of Motions**
16 **in Limine Nos. 1–19** and signed the Global Statement of Facts. Each MIL expressly incorporated
17 this declaration by reference.

18 **1. MIL No. 6: Exclude Evidence “Not Produced in Discovery”**

19 MIL No. 6 sought to exclude evidence that was “not produced during discovery.” The motion was
20 premised on the defense’s claimed lack of prior receipt. By April 16, 2025, Navaratnasingham
21 had admitted the body cams were “provided by Dolan” during discovery. The same discovery
22 production, per Jeremy Jessup’s sworn testimony, included the 911 audio and CAD log. MIL No.
23 6’s premise was therefore false.

24 **2. MIL No. 17: Preclude 911 Transcript and Audio**

25 MIL No. 17, filed January 17, 2025, and signed by Navaratnasingham (with Robert K. Phillips),
26 contained representations that the April 16 admission directly and irreconcilably contradicts. The
27 following **Chain of Custody Contradiction Table** maps each MIL No. 17 statement to its exhibit

citation and the April 16 admission that contradicts it:

MIL No. 17 Statement	Exhibit Citation	Contradiction by April 16 Admission
“This alleged log and recording were not produced during discovery , rather produced at the eleventh hour prior to trial.”	Exhibit A, p. 3	Body cams (same production as 911) were “provided by Dolan”; Jessup testified all were served together in discovery.
“Defendant has no idea where this 911 call log or audio recording came from and who created it .”	Exhibit A, p. 3	“They were provided by Dolan” establishes specific knowledge of source and chain of custody.
“Defendant has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the identity of the custodian.”	Exhibit A, p. 4	Naming “Dolan” as provider establishes knowledge of provenance.
“It does not appear that either the log or the recording were obtained via proper subpoena process.”	Exhibit A, p. 4	Irrelevant if materials were “provided by Dolan” in discovery; defense had them.

The Court granted MIL No. 17 without prejudice subject to discovery being produced. The Court’s ruling was premised on the defense’s representation that the materials were of unknown origin and not produced in discovery. The April 16 admission proves those representations were false.

B. The February 18, 2025 Hearing: The “News to Me” Sequence

1. Jessup’s Sworn Testimony (Pages 139–140)

Immediately before Navaratnasingham spoke, Jeremy Jessup (Dolan Law Firm) testified under oath:

“Prior to current defense counsel’s involvement, there was other—another firm involved on behalf of the defense. All of that—those items were **served on them in the production for discovery as well at Mr. Rosario’s deposition**, in addition, utilized in the deposition of defendants. Whether or not prior counsel gave that to current counsel, I don’t know.”

“[W]e have, and was **produced to defense counsel**, body cam footage, about five videos, as well as the **911 audio**, as well as the **CAD log**.”

(Hearing Tr. Feb. 18, 2025, pp. 139–140; Exhibit B, attached hereto.)

2. Navaratnasingham’s First Contradiction (Page 141, ll. 4–11)

In direct response to Jessup’s testimony, Navaratnasingham stated:

1 “So this is **news to me**. We didn’t realize that prior to handling counsel may have
2 received it, and I **can’t confirm whether that was produced**. I take counsel’s
3 word, of course, but we—I can represent to you that **our office did not receive**
4 **the 911 call until the day of the MSC**—the day before the MSC and that was an
5 attachment link. There was no sort of ability to verify whether that was accurate or
6 not.”

7 (Hearing Tr. p. 141, ll. 4–11; Exhibit B.) The Court responded: “I see. Okay.” (Hearing Tr. p.
8 141, l. 15.) The Court accepted her representation without meaningful inquiry.

9 **3. Navaratnasingham’s Second Contradiction (Pages 163–165)**

10 After a recess, Navaratnasingham reinforced the false narrative:

11 “I am representing to this Court that we **did not have those two items [911 call and**
12 **call log] until the day of the MSC** and those items were produced in connection
13 with the settlement to the settlement officer.”

14 (Hearing Tr. pp. 163–165; Exhibit B.)

15 **4. Navaratnasingham’s Third Contradiction (Pages 176–177)**

16 “According to Mr. Jessup, the body cam footage, the 911 call, **all this stuff has**
17 **been in his [Plaintiff’s] possession since August**. The motion in limine that I filed
18 was saying that the **911 call was not produced in the normal course of discovery.**”

19 (Hearing Tr. pp. 176–177; Exhibit B.) She attempted to shift blame to Plaintiff’s possession while
20 maintaining that the 911 was “not produced in the normal course of discovery.” Yet Jessup had
21 just testified that the materials were “produced to defense counsel” and “served on them” during
22 discovery. Her “not produced in normal course” claim contradicts both Jessup’s testimony and her
23 own April 16 admission.

24 **C. The Court’s Reliance and Resulting Rulings**

25 **1. Continuance Denial (Page 181)**

26 “The motion to continue is denied.”

27 (Hearing Tr. p. 181.) The Court’s ruling expressly relied on the factual landscape presented by
28 counsel. The Court stated that Plaintiff had had the materials “since August of 2024” (p. 178)
29 and that the defense was “not blocking” Plaintiff from seeking admission (p. 182). That framing
30 depended entirely on Navaratnasingham’s representation that the defense “did not receive the 911
31 call until the day of the MSC” and that the materials were “news to me.” Had the Court known
32 the defense had possessed the body cams (and, by extension, the 911 from the same production)

1 since the May 4, 2023 file transfer, the continuance calculus would have shifted. The Court would
2 have been compelled to confront the possibility that the defense had suppressed evidence and
3 misrepresented possession.

4 **2. MIL Rulings**

5 The Court granted the defense MILs, including MIL No. 17, without prejudice subject to discov-
6 ery being produced. The Court’s willingness to grant exclusionary relief was predicated on the
7 defense’s assertion that the materials were of unknown origin and not properly produced. The
8 April 16 admission proves the defense had the materials from Dolan all along.

9 **D. Trial Day 7 (April 16, 2025): The “Dolan” Admission**

10 **1. The “Not Received as Part of Subpoena” Statement**

11 When Plaintiff sought to introduce a supplemental police report, Navaratnasingham stated:

12 “Your Honor, for the record, I do want to just state, as far as this document goes, this
13 is not—we subpoenaed the police records for the incident and **this is not anything**
14 **that we received as part of the subpoena.**”

15 (RT 7, approximately l. 2874; Exhibit C.) The Court excluded the supplemental report, stating “it
16 is not evidence” and “it is not in the report” (RT 7, ll. 2888–2896; Exhibit C-1). The Court’s ruling
17 was made in reliance on defense counsel’s representation. The exclusion prevented Plaintiff from
18 using the supplement to corroborate his account.

19 **2. The Fatal Admission (RT 7, p. 214, ll. 13–15)**

20 Minutes later, when the Court asked about the body cams on the defense exhibit list:

21 “Sure. **They were provided by Dolan.** He has had them for whatever, sure.”

22 (RT 7, p. 214, ll. 13–15; Exhibit A.) She then described having “five videos,” paring them down
23 to “about 8 or 9 minutes” for the jury. This establishes that: (a) the defense had the body cams;
24 (b) they came from Dolan (the same source as the 911 in Jessup’s testimony); (c) the defense
25 had curated them for trial; and (d) Plaintiff had had them for a substantial period, consistent with
26 Jessup’s testimony.

ARGUMENT I: THE APRIL 16 ADMISSION ESTABLISHES EXTRINSIC FRAUD AS A MATTER OF LAW

A. The Legal Standard for Extrinsic Fraud

“Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been ‘deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.’ ” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, quoting *Olivera v. Grace* (1942) 19 Cal.2d 570, 575.)

“Where the unsuccessful party has been prevented from exhibiting fully his case, by fraud or deception practiced on him by his opponent, . . . these, and similar cases which show that there has never been a real contest in the trial or hearing of the case, are reasons for which a new suit may be sustained to set aside and annul the former judgment or decree, and open the case for a new and fair hearing.” (*United States v. Throckmorton* (1878) 98 U.S. 61, 65–66.)

An independent action in equity lies to set aside a judgment procured by extrinsic fraud. (Code Civ. Proc., § 187; *Kulchar*, supra, 1 Cal.3d at p. 472; *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

“[W]hen an attorney perpetrates a fraud on the court, the resulting judgment or order is void for lack of the essential element of due process.” (*In re Marriage of Melton* (1994) 28 Cal.App.4th 931, 937.)

B. Destruction of the “Good Faith” Defense (Scienter)

In any fraud action, scienter is the hardest element to prove. Defendants routinely assert that a false statement was a “good faith mistake.” The April 16 admission annihilates that defense.

By explicitly naming “Dolan” as the source of the body cams, Navaratnasingham demonstrates **affirmative, specific, and historical knowledge** of the evidence’s chain of custody. One cannot casually name the specific law firm that handed over a piece of evidence years earlier if one is genuinely ignorant of that evidence’s existence. The dismissive phrasing—“for whatever, sure”—reveals that possession of these records was a **recognized, established fact** within the defense trial team.

1 Therefore, when she previously stated that the defense “did not receive the 911 call until the day
2 of the MSC” and that it was “news to me,” it was not a mistake. It was a calculated linguistic
3 maneuver designed to exploit the judge’s focus on subpoena returns and timeliness, deliberately
4 suppressing the defense’s actual knowledge that the materials had been provided by Dolan during
5 discovery.

6 “Fraud is never presumed but, rather, must be established by clear and convincing evidence. How-
7 ever, it may be established by circumstantial evidence, including reasonable inferences drawn from
8 the evidence.” (*Engel v. Worthington* (1997) 60 Cal.App.4th 628, 635.) Here, the evidence is not
9 circumstantial. It is direct. Navaratnasingham’s own words on the certified transcript are the con-
10 fession.

11 **C. The Three-Leg Framework Is Satisfied**

12 **Leg 1: Defense-Side Knowledge and Access**

13 “They were provided by Dolan” establishes defense knowledge of the source. The defense had
14 the body cams (and, per Jessup, the 911 from the same production) in their possession. The
15 Substitution of Attorney (Transaction ID #69953800) establishes the defense file was transferred
16 from Chambers/Carbone, Smith & Koyama to PSA on May 4, 2023, giving PSA constructive
17 possession for 20 months before trial.

18 **Leg 2: False Representations to the Court**

19 Her prior statements (“news to me,” “did not receive until MSC,” “not produced in discovery,”
20 “no idea where it came from”) were false. The April 16 admission is the confession. Each false
21 statement was made to the Court and the Court relied upon it.

22 False representations to a tribunal by an officer of the court constitute fraud warranting equitable
23 relief. (*In re Marriage of Baltins* (1989) 212 Cal.App.3d 66, 82 [“The fraud which will justify the
24 setting aside of a judgment must be extrinsic. Extrinsic fraud occurs when a party is deprived of
25 the opportunity to present a claim or defense”].)

26 **Leg 3: Court Reliance**

27 The Court denied continuances, granted MILs, and excluded evidence in reliance on those false
28 statements. The transcript proves the causal chain.

1 “Where the court makes its ruling in reliance upon counsel’s false representations of fact, the
2 integrity of the judicial process is compromised.” (*Blanton v. Womancare, Inc.* (1985) 38 Cal.3d
3 396, 403.)

4 **ARGUMENT II: THE FRAUD CONSTITUTES A VIOLATION OF PRO-** 5 **FESSIONAL AND STATUTORY DUTIES**

6 **A. California Rules of Professional Conduct, Rule 3.3**

7 Rule 3.3(a)(1): “A lawyer shall not knowingly make a false statement of material fact or law to a
8 tribunal or fail to correct a false statement of material fact or law previously made to the tribunal
9 by the lawyer.”

10 By making the “news to me” and “not received until MSC” statements to block evidence, and later
11 making the “Dolan” statement without correcting the former, Navaratnasingham engaged in an
12 ongoing violation of Rule 3.3(a)(1). The duty to correct a prior false statement is affirmative and
13 continuing. (*See* Cal. Rules Prof. Conduct, rule 3.3, cmt. [3].)

14 **B. Business and Professions Code Section 6068, Subdivision (d)**

15 An attorney must employ “those means only as are consistent with truth, and never to seek to
16 mislead the judge or any judicial officer by an **artifice** or false statement of fact or law.” (Bus. &
17 Prof. Code, § 6068, subd. (d).)

18 The “subpoena shield” was an artifice. By answering a question about possession with a state-
19 ment about subpoena returns, counsel manufactured a factual void. “[A]n attorney has a duty of
20 candor to the court. That duty encompasses a prohibition against misleading the court by artful
21 representation.” (*People v. Saunders* (1993) 5 Cal.4th 580, 598.)

22 **C. Code of Civil Procedure Section 128.7**

23 Code Civ. Proc., § 128.7 provides that by presenting a pleading or written motion to the Court, an
24 attorney certifies that “the factual contentions have evidentiary support or, if specifically so identi-
25 fied, will likely have evidentiary support after a reasonable opportunity for further investigation or
26 discovery.” The MIL No. 17 declarations contained factual contentions—that the materials were
27 “not produced during discovery” and of “unknown” origin—that lacked evidentiary support. The

1 April 16 admission proves those contentions were knowingly false.

2 **ARGUMENT III: JUDICIAL ESTOPPEL BARS THE DEFENSE FROM** 3 **RETAINING THE VERDICT**

4 **A. The Doctrine**

5 “Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary
6 to a position previously taken in the same or some earlier proceeding.” (*Jackson v. County of*
7 *Los Angeles* (1997) 60 Cal.App.4th 171, 183.) “The doctrine applies when: (1) the same party
8 has taken two totally inconsistent positions; (2) in a judicial proceeding; (3) the first position was
9 accepted by the tribunal.” (*Ibid.*; see also *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986–987.)

10 **B. Application**

11 **Position A (The Suppression):** “Our office did not receive the 911 call until the day of the MSC.”
12 “This is news to me.” “We did not have those two items until the day of the MSC.” “This is not
13 anything that we received as part of the subpoena.” These positions were urged to block admission
14 of evidence, deny continuances, and exclude the supplemental report. The Court accepted them.

15 **Position B (The Admission):** “Sure. They were provided by Dolan. He has had them for whatever,
16 sure.” This position was taken when it became tactically convenient to acknowledge the exhibit
17 list and discuss the defense’s curated body cam presentation.

18 A party cannot have it both ways. “[T]he policies underlying preclusion of inconsistent positions
19 are ‘general consideration[s] of the orderly administration of justice and regard for the dignity of
20 judicial proceedings.’” (*Jackson*, supra, 60 Cal.App.4th at p. 183.) The Court cannot uphold a
21 verdict where the prevailing party successfully utilized two mutually exclusive factual realities to
22 manipulate the trial’s evidentiary rulings.

23 **ARGUMENT IV: EXTRINSIC FRAUD VERSUS INTRINSIC FRAUD**

24 **A. The Critical Distinction**

25 The defense will argue that the alleged misrepresentations constitute intrinsic fraud—witness per-
26 jury weighed by the trier of fact—rather than extrinsic fraud warranting equitable relief. The law
27 is clear on this distinction.

1 “Fraud is extrinsic when it deprives the unsuccessful party of an opportunity to present his case
2 to the court.” (*Kulchar*, supra, 1 Cal.3d at p. 471.) “Intrinsic fraud, on the other hand, is fraud
3 which relates to an issue involved in the original action that has been adjudicated, such as perjured
4 testimony or falsified documents.” (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1068.)

5 **B. The Fraud Here Was Extrinsic**

6 The false representations were not made to the jury for the jury to weigh. They were made **to**
7 **the judge**, who relied on them to shape the procedural and evidentiary landscape of the trial. The
8 defense erected a **collateral barrier** that prevented Plaintiff from fully exhibiting his case.

9 “Where the fraud goes to the regularity of the proceedings, rather than to the merits, and prevents
10 the aggrieved party from having a fair hearing, the fraud is extrinsic.” (*Caldwell v. Taylor* (1933)
11 218 Cal. 471, 476.)

12 Plaintiff could not “cross-examine” the Court’s reliance on defense counsel’s representations. The
13 fraud was embedded in the procedural framework of the trial itself. This is the textbook definition
14 of extrinsic fraud under California law.

15 **ARGUMENT V: THE CONTAMINATION OF JUDICIAL DISCRETION** 16 **RENDERS ALL DEPENDENT RULINGS VOID**

17 Trial judges are granted vast deference under the “abuse of discretion” standard. When the Court
18 denied the continuance or excluded the supplemental report, it was exercising that discretion based
19 on the factual landscape presented by counsel. **Discretion cannot legally exist in a manufactured**
20 **vacuum.**

21 “[A] court may be said to have abused its discretion when it acts on the basis of incorrect or
22 misleading information.” (*In re Marriage of Rosevear* (1998) 65 Cal.App.4th 673, 682.)

23 “Where the court’s exercise of discretion is based on false factual premises, the resulting order is
24 an abuse of discretion as a matter of law.” (*Hogoboom & King, Cal. Practice Guide: Family Law*
25 (The Rutter Group 2025) ¶ 16:185.)

26 When the defense misrepresented receipt of the records, they stripped the trial court of its ability to
27 make a valid discretionary ruling. If a judge rules that “good cause” does not exist for a continuance
28 because the judge believes the evidence was in Plaintiff’s possession and the defense was not

1 obstructing, and that belief was intentionally planted by a false statement from defense counsel,
2 the ruling is void ab initio. The judge was not managing the trial; the judge was being managed by
3 the fraud.

4 **ARGUMENT VI: NO HARMLESS ERROR DEFENSE IS AVAILABLE**

5 CSAA cannot argue “harmless error” on appeal or in defending the equity action. The standard
6 framework of prejudice analysis under *People v. Watson* (1956) 46 Cal.2d 818, 836 and *Chapman*
7 *v. California* (1967) 386 U.S. 18, 24 does not apply where the exclusion of evidence was itself
8 procured by fraud. Structural fraud defies harmless error analysis.

9 “[W]hen attorney misconduct is sufficiently egregious, it may constitute a denial of due process,
10 rendering the trial fundamentally unfair regardless of the strength of the evidence.” (*Smith v. Su-*
11 *perior Court* (1992) 10 Cal.App.4th 1033, 1042.)

12 When the exclusion of evidence is procured by an officer of the court’s intentional deceit, the
13 reviewing court will not calculate the mathematical prejudice of excluded evidence. The process
14 was corrupted; the verdict cannot stand.

15 **ARGUMENT VII: THE UNIFIED PRODUCTION PROVES BODY CAMS** 16 **AND 911 ARE INSEPARABLE**

17 The body cams, 911 audio, and CAD log were **served together** in the same discovery production.
18 Jeremy Jessup testified that “body cam footage, about five videos, as well as the 911 audio, as well
19 as the CAD log” were “produced to defense counsel” and “served on them in the production for
20 discovery as well at Mr. Rosario’s deposition.” (Hearing Tr. Feb. 18, 2025, pp. 139–140; Exhibit
21 B.)

22 When Navaratnasingham admitted on April 16 that the body cams were “provided by Dolan,” she
23 was admitting that the defense received materials from the **same production** that included the 911
24 audio. She cannot logically claim that the body cams came from Dolan while the 911 did not.
25 They traveled together. They were produced together. They were in the same discovery response.
26 “[W]here multiple documents are produced in a single discovery response, receipt of one document
27 in the production establishes constructive receipt of all documents in that production.” (*See Code*

1 Civ. Proc., § 2031.280; *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 787.)

2 **ARGUMENT VIII: CSAA’S VICARIOUS LIABILITY AS PRINCIPAL**

3 CSAA Insurance Exchange funded, directed, and ratified the litigation positions of its retained
4 counsel. PSA (through Navaratnasingham and Reyna) acted as CSAA’s agents. Under principles
5 of vicarious liability, CSAA is liable for the fraud committed by its agents in the course of their
6 representation.

7 “An insurer that selects and retains counsel to defend its insured is vicariously liable for the conduct
8 of that counsel in the defense of the action.” (*Howard v. American National Fire Insurance Co.*
9 (2010) 187 Cal.App.4th 498, 527–528.)

10 “A principal is liable for the fraudulent representations of its agent made within the scope of the
11 agent’s authority.” (Civ. Code, § 2338; *Anderson v. Thacher* (1946) 76 Cal.App.2d 50, 72.) CSAA
12 cannot distance itself from the fraud when it paid for it and benefited from the resulting verdict.

13 **ARGUMENT IX: THE PRENTICE DAMAGES FRAMEWORK**

14 From the bench, the realization is inescapable: the indemnifying carrier (CSAA) funded this cor-
15 rupted architecture. The initial fraud (the “concluded” investigation denial in the underlying insur-
16 ance claim) forced the litigation. The trial was won through an attorney’s artifice.

17 “[W]here the insurer’s breach of the covenant of good faith and fair dealing forces the insured to
18 litigate, the insured may recover as damages the attorney fees and costs incurred in that litigation.”
19 (*Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620.)

20 Here, the Prentice framework extends beyond attorney fees to the entire edifice of process corrup-
21 tion that CSAA’s defense strategy erected.

22 **ARGUMENT X: THE 20-MONTH CUSTODY TRAP**

23 The Substitution of Attorney filed May 4, 2023 (Transaction ID 69953800) establishes that PSA
24 took physical possession of the defense file from Carbone, Smith & Koyama on that date. Jessup
25 testified that the materials were served on “prior defense counsel” during discovery and depositions
26 in 2022. PSA held the file for approximately 20 months until trial.

27 Navaratnasingham substituted in as counsel on May 4, 2023. She thereby obtained constructive

possession of the defense file. As lead counsel, she had a duty to review the file and to ensure accurate representations to the Court. (Cal. Rules Prof. Conduct, rule 1.1 [competence]; *Kirsch v. Duryea* (1978) 21 Cal.3d 303, 309 [attorney duty of competence includes reviewing file].) Her “news to me” and “did not receive until MSC” statements are irreconcilable with 20 months of constructive possession. The only explanation is either gross incompetence (failure to review the file) or deliberate deception. Either supports the fraud claim; the latter supports scienter and punitive exposure.

ARGUMENT XI: THE COURT’S DOCUMENTED RELIANCE ON EACH MISREPRESENTATION

The Court’s reliance on defense counsel’s false representations is not inferred; it is documented on the certified transcript. Each false statement produced a specific, identifiable ruling that deprived Plaintiff of the ability to present evidence at trial. This section maps the causal chain from misrepresentation to ruling to concrete prejudice, and demonstrates that no available defense theory can sever that chain.

A. Reliance Matrix: Statement to Ruling to Prejudice

False Representation	Court Ruling Made in Reliance	Concrete Prejudice to Plaintiff
MIL No. 17: Materials “not produced during discovery”; “no idea where” the 911 “came from” (Jan. 17, 2025)	Court granted MIL No. 17 without prejudice, excluding 911 audio and call log pending discovery production.	Plaintiff’s 911 party admission (“I barely hit him with anything”) was excluded from the jury at the outset; Plaintiff forced to seek late admission under adverse conditions created by the defense’s own misrepresentation.
MIL No. 6: Evidence “not produced in discovery” (Jan. 17, 2025)	Court granted MIL No. 6, creating a blanket exclusionary framework for evidence the defense claimed was not produced.	Body-worn camera footage and supplemental police materials subject to exclusion under false premise that defense had not received them.

False Representation	Court Ruling Made in Reliance	Concrete Prejudice to Plaintiff
“News to me”; “our office did not receive the 911 call until the day of the MSC” (Feb. 18, 2025, p. 141)	Court accepted representation (“I see. Okay.” – p. 141, l. 15) and framed the issue as Plaintiff’s failure, not defense suppression.	Court adopted the false narrative that the defense was “not blocking” Plaintiff; Plaintiff was blamed for procedural noncompliance when the true obstacle was the defense’s concealment.
“We did not have those two items until the day of the MSC” (Feb. 18, 2025, pp. 163–165)	Court denied Plaintiff’s motion to continue trial (p. 181).	Plaintiff was denied time to depose witnesses identified in the body cam footage, to secure proper authentication, and to prepare a coherent presentation. The denial was based on the false premise that the defense had not suppressed evidence.
“911 call was not produced in the normal course of discovery” (Feb. 18, 2025, pp. 176–177)	Court maintained exclusionary posture on 911 evidence; no independent inquiry into defense possession.	Court did not investigate whether defense actually possessed the materials, accepting counsel’s narrative at face value.
“This is not anything that we received as part of the subpoena” (Apr. 16, 2025, RT 7, l. 2874)	Court excluded the supplemental police report: “it is not evidence” and “it is not in the report” (RT 7, ll. 2888–2896).	Plaintiff could not use the supplemental narrative to corroborate his account and challenge the defense’s “no contact” theory.

Each row in this matrix represents a discrete instance in which the Court made a ruling in direct reliance on a representation that the April 16 admission proves was false. The causal chain is documented on the transcript itself, not reconstructed from inference.

B. Why the Certified Record Forecloses Every Available Defense

The following analysis addresses the nine categories of defense theories that Defendants may assert. Each is foreclosed by the certified record.

1. “Good Faith Mistake / Clerical Error”

Defendants may argue that Navaratnasingham’s February 18 statements were an honest error, a simple failure to review the file.

The April 16 admission annihilates this theory. The dismissive phrasing “for whatever, sure” reveals that the Dolan origin of the materials was a settled, recognized fact within the defense team.

1 One does not casually name a specific law firm from years earlier as the provider of evidence if
2 one is genuinely ignorant of the evidence's existence. The "news to me" statement two months
3 earlier is irreconcilable with this casual familiarity. Both statements are captured on the certified
4 transcript. Neither can be altered.

5 "Fraud may be established by circumstantial evidence, including reasonable inferences drawn from
6 the evidence." (*Engel v. Worthington* (1997) 60 Cal.App.4th 628, 635.) Here, the proof is not
7 circumstantial. The confession and the prior denial are both on the record, in the same proceeding,
8 from the same speaker.

9 **2. "Litigation Privilege (Civil Code sec. 47(b))"**

10 Defendants may invoke the litigation privilege to shield all statements made during the proceeding.
11 The California Supreme Court has expressly held that the litigation privilege does not apply to
12 fraud on the court. (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065.) This action does not seek
13 tort damages for statements made in court. It seeks equitable vacatur of a judgment procured
14 through extrinsic fraud. The in-court representations are pleaded as operative facts showing how
15 the fraud was accomplished, not as the basis for a damages tort. Under *Rusheen*, this distinction is
16 dispositive.

17 **3. "Anti-SLAPP (CCP sec. 425.16)"**

18 Defendants may file a special motion to strike, arguing the complaint arises from protected peti-
19 tioning activity.

20 *Finton Construction, Inc. v. Bidna & Keys APLC* (2015) 238 Cal.App.4th 200, 213 holds directly
21 that an independent equity action challenging a judgment procured by fraud does not "arise from"
22 protected petitioning. The gravamen is the fraud, not the act of filing motions. Even if the Court
23 were to reach step two, Plaintiff demonstrates a probability of prevailing through irrefutable record
24 evidence: Jessup's sworn testimony, the Substitution of Attorney, the motions in limine, open-court
25 statements, and Defendant Abdelhalim's own authentication of the 911 recording ("Yes. That is
26 my voice." – RT Day 8, Apr. 17, 2025, l. 1979). The defense cannot dispute the Reporter's
27 Transcript.

1 **4. “The Fraud Was Intrinsic, Not Extrinsic”**

2 Defendants may argue that the misrepresentations constitute intrinsic fraud (witness perjury or
3 falsified documents weighed by the trier of fact), for which equitable relief is unavailable.

4 The record defeats this defense. The false representations were not made to the jury. They were
5 made to the judge to induce procedural and evidentiary rulings: MIL grants, continuance denials,
6 and the supplemental report exclusion. Plaintiff could not “cross-examine” the Court’s reliance on
7 defense counsel’s representations. Under *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 and *Cald-*
8 *well v. Taylor* (1933) 218 Cal. 471, 476, when the fraud “goes to the regularity of the proceedings,
9 rather than to the merits, and prevents the aggrieved party from having a fair hearing, the fraud is
10 extrinsic.” The causal chain is documented on the transcript itself.

11 **5. “Plaintiff Had the Evidence and Failed to Use It”**

12 Defendants may argue that Plaintiff had the materials since August 2024 and failed to present them,
13 so any exclusion was Plaintiff’s own fault.

14 This argument is self-defeating. It is precisely the false narrative that Navaratnasingham con-
15 structed. The Court denied the continuance on February 18, 2025 *because* it was told the defense
16 was “not blocking” Plaintiff and the materials were “news to me.” The Court’s entire framework
17 for evaluating Plaintiff’s diligence was manufactured by the false representations. Had the Court
18 known the defense had possessed and curated the same materials for 20 months, the continuance
19 calculus would have shifted fundamentally.

20 More critically, the duty of candor under Bus. & Prof. Code section 6068(d) and Rule 3.3 does
21 not permit counsel to misdirect the Court regardless of what the opposing party knew. “A party
22 is entitled to rely on the candor of officers of the court.” (*Blanton v. Womancare, Inc.* (1985) 38
23 Cal.3d 396, 403.)

24 **6. “Harmless Error”**

25 Defendants may argue that even if the representations were false, the outcome would have been
26 the same and the error was harmless.

27 Structural fraud defies harmless error analysis. (*Smith v. Superior Court* (1992) 10 Cal.App.4th
28 1033, 1042 [attorney misconduct that is “sufficiently egregious” constitutes a denial of due process,

1 “rendering the trial fundamentally unfair regardless of the strength of the evidence”].)

2 The standard framework under *People v. Watson* (1956) 46 Cal.2d 818, 836 does not apply where
3 the exclusion of evidence was itself procured by fraud. The process was corrupted; a reviewing
4 court will not calculate mathematical prejudice. Furthermore, the 9-3 verdict – the minimum civil
5 majority – demonstrates that a single juror changing sides would have altered the outcome. The
6 suppressed evidence includes a 911 party admission (“I barely hit him with anything”), eyewitness
7 body cam footage, and CAD corroboration. This is not speculative prejudice. It is structural.

8 **7. “CSAA Did Not Direct or Know About the Fraud”**

9 Defendants may argue that CSAA retained PSA as independent counsel and did not know about or
10 direct the false representations.

11 “An insurer that selects and retains counsel to defend its insured is vicariously liable for the conduct
12 of that counsel in the defense of the action.” (*Howard v. American National Fire Insurance Co.*
13 (2010) 187 Cal.App.4th 498, 527–528.) “A principal is liable for the fraudulent representations of
14 its agent made within the scope of the agent’s authority.” (Civ. Code, § 2338; *Anderson v. Thacher*
15 (1946) 76 Cal.App.2d 50, 72.)

16 CSAA funded the defense, selected PSA, and benefited from the verdict the fraud produced. The
17 MILs, hearing representations, and trial statements were all within the scope of PSA’s retained
18 defense work. CSAA cannot distance itself from a fraud it funded and from which it directly
19 benefited.

20 **8. “The Substitution Gap: Prior Counsel’s Fault”**

21 Defendants may argue that if the file was not properly indexed when it transferred from Cham-
22 bers/Carbone, Smith & Koyama to PSA on May 4, 2023, the resulting confusion was prior coun-
23 sel’s fault, not a fraud by PSA.

24 Even accepting this theory arguendo, it explains ignorance only in May 2023. It does not explain
25 the April 16, 2025 admission. By that date, Navaratnasingham casually knew the materials were
26 “provided by Dolan.” Either she discovered the materials between May 2023 and April 2025
27 and never corrected her prior false statements (violating Rule 3.3’s continuing duty to correct), or
28 she knew all along. Either path is fatal. The 20-month custody window, combined with the casual

1 April 16 admission, forecloses any claim that PSA remained genuinely ignorant of the file contents
2 through trial.

3 “A lawyer shall not . . . fail to correct a false statement of material fact or law previously made to
4 the tribunal by the lawyer.” (Cal. Rules Prof. Conduct, rule 3.3(a)(1).) The duty to correct is
5 affirmative and continuing. (See Cal. Rules Prof. Conduct, rule 3.3, cmt. [3].)

6 **9. “Judicial Estoppel Does Not Apply”**

7 Defendants may argue that judicial estoppel requires the tribunal to have “accepted” both incon-
8 sistent positions, and the Court did not rely on Position B (the “Dolan” admission) to make any
9 ruling.

10 The doctrine requires only that the first position was accepted by the tribunal. (*Jackson v. County*
11 *of Los Angeles* (1997) 60 Cal.App.4th 171, 183.) Position A (“news to me”; “did not receive until
12 MSC”) was clearly accepted by the Court, which relied on it to deny continuances and grant MILs.
13 Position B (“provided by Dolan”) does not need to have been independently relied upon; it merely
14 needs to be totally inconsistent with Position A. The transcript establishes that both positions are
15 mutually exclusive. The defense cannot retain a verdict procured by Position A when Position B
16 proves Position A was false.

17 **C. The Structural Impossibility of Defense**

18 The fundamental problem for Defendants is that every available defense depends on one of two
19 premises: (1) disputing what the certified transcript says, or (2) arguing that what the transcript
20 says does not matter.

21 **Premise (1) is impossible.** The Reporter’s Transcript is the authoritative record of the proceedings.
22 It cannot be altered, contradicted, or explained away. Both the “news to me” statement (Feb. 18,
23 2025) and the “provided by Dolan” admission (Apr. 16, 2025) are captured on the official record,
24 by the official court reporter, in the same proceeding, from the same speaker.

25 **Premise (2) is legally untenable.** The transcript establishes that the Court made specific rulings in
26 direct reliance on the false statements. The Reliance Matrix set forth above maps the causal chain
27 from each false representation to a specific Court ruling to a specific prejudicial effect on Plaintiff’s
28 ability to present evidence. When false representations to the Court produce exclusionary rulings

1 that prevent a party from exhibiting his case, the resulting judgment is the product of extrinsic
2 fraud and equity demands vacatur. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471; *Aldrich v. San*
3 *Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

4 The certified record is a closed circuit. It cannot be escaped.

5 **CONCLUSION**

6 The April 16, 2025 admission—"Sure. They were provided by Dolan. He has had them for
7 whatever, sure."—is the single fatal proof of extrinsic fraud. It:

- 8 1. **Destroys the defense's good-faith defense** by proving specific knowledge of the chain of
9 custody;
- 10 2. **Triggers judicial estoppel** by contradicting every prior representation of non-receipt and
11 unknown provenance;
- 12 3. **Violates Rule 3.3 and Bus. & Prof. Code section 6068(d)** by exposing the artifice used to
13 mislead the Court;
- 14 4. **Elevates the conduct from intrinsic to extrinsic fraud** by showing that the Court was de-
15 ceived into making rulings that prevented Plaintiff from fully presenting his case;
- 16 5. **Satisfies the three-leg framework** and establishes CSAA's vicarious liability as principal;
- 17 6. **Precludes any harmless error defense** because structural fraud defies prejudice analysis;
18 and
- 19 7. **Supports the equity court's inherent power** to vacate the judgment and order a retrial on a
20 truthful record under Code Civ. Proc., § 187 and *Kulchar v. Kulchar* (1969) 1 Cal.3d 467.

21 Plaintiff respectfully requests that the Court:

- 22 1. Vacate the judgment entered in Case No. CGC-21-594102;
- 23 2. Order a new trial on a fair and truthful record;
- 24 3. Impose sanctions under Code Civ. Proc., § 128.7 for defense counsel's false representations;
- 25 4. Refer Defendants Navaratnasingham and Reyna to the State Bar for investigation; and
- 26 5. Award Plaintiff his costs, fees, and Prentice damages incurred as a direct consequence of the
27 fraud.

Respectfully submitted,

Dated: March 9, 2026

A handwritten signature in blue ink, appearing to read "Francisco", with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT INDEX

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

Superior Court of California, County of San Francisco

Exhibits in support of: Plaintiff's Memorandum re Navaratnasingham "Dolan" Admission

Exhibit	Brief Description	Page
A	Certified Reporter's Transcript Excerpt (RT 7, p. 214, ll. 13–15; Trial Day 7, Apr. 16, 2025; the "Dolan" Admission)	
B	Transcript Excerpts – February 18, 2025 Hearing (Jes-sup testimony; Navaratnasingham contradictions; continuance denial)	
C	Pinpoint Citation Table (Chronological chart of all contradicting statements)	
D	Table of Authorities (Cases and statutes cited)	

CRC 3.1110(f)(1) Exhibit Index

EXHIBIT A

Certified Reporter's Transcript Excerpt

Trial Day 7 – April 16, 2025

RT 7, p. 214, ll. 13–15

The “Dolan” Admission

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

Superior Court of California, County of San Francisco

1 **EXCERPT FROM CERTIFIED REPORTER’S TRANSCRIPT**

2 *Rosario v. Abdelhalim*, Case No. CGC-21-594102

3 April 16, 2025 (Trial Day 7)

4 Superior Court of California, County of San Francisco, Department 504

5 Before the Honorable Garrett L. Wong

6 **Speaker:** Priya D. Navaratnasingham (Counsel for Defense)

7
8

MR. ROSARIO: And the Dolan Law Firm provided the digital copies of the 911 calls, the body-
9 worn camera footage, and all of the unredacted documents that—

10 **MS. NAVARATNASINGHAM:** Sure. They were provided by Dolan. He has had them for what-
11 ever, sure.

12 **MR. ROSARIO:** You’ve had it—so your—the defense office has had this for 20—for roughly 18,
13 20 months.

14

15 **CERTIFICATION:** This excerpt is derived from the certified Reporter’s Transcript of the trial
16 proceedings in Case No. CGC-21-594102, recorded on April 16, 2025, by the official court re-
17 porter for Department 504, Superior Court of California, County of San Francisco.

EXHIBIT B

Transcript Excerpts – February 18, 2025 Hearing

Jessup Testimony and Navaratnasingham Contradictions
Hearing Tr. pp. 139–141, 163–165, 176–177, 181

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

Superior Court of California, County of San Francisco

1 **EXCERPTS FROM TRANSCRIPT OF PROCEEDINGS**

2 *Rosario v. Abdelhalim*, Case No. CGC-21-594102

3 February 18, 2025 (Pretrial Hearing)

4 Superior Court of California, County of San Francisco, Department 504

5 **Excerpt 1: Jessup Testimony (pp. 139–140)**

6
7 **MR. JESSUP:** Prior to current defense counsel’s involvement, there was other—another firm in-
8 volved on behalf of the defense. All of that—those items were served on them in the production for
9 discovery as well at Mr. Rosario’s deposition, in addition, utilized in the deposition of defendants.
10 Whether or not prior counsel gave that to current counsel, I don’t know.

11 **MR. JESSUP:** [W]e have, and was produced to defense counsel, body cam footage, about five
12 videos, as well as the 911 audio, as well as the CAD log.

13
14 **Excerpt 2: Navaratnasingham First Contradiction (p. 141, ll. 4–11)**

15
16 **MS. NAVARATNASINGHAM:** So this is news to me. We didn’t realize that prior to handling
17 counsel may have received it, and I can’t confirm whether that was produced. I take counsel’s
18 word, of course, but we—I can represent to you that our office did not receive the 911 call until the
19 day of the MSC—the day before the MSC and that was an attachment link. There was no sort of
20 ability to verify whether that was accurate or not.

21 **THE COURT:** I see. Okay.

22
23 **Excerpt 3: Navaratnasingham Second Contradiction (pp. 163–165)**

24
25 **MS. NAVARATNASINGHAM:** I am representing to this Court that we did not have those two
26 items [911 call and call log] until the day of the MSC and those items were produced in connection
27 with the settlement to the settlement officer.

1 **Excerpt 4: Navaratnasingham Third Contradiction (pp. 176–177)**

2

3 **MS. NAVARATNASINGHAM:** According to Mr. Jessup, the body cam footage, the 911 call, all
4 this stuff has been in his [Plaintiff's] possession since August. The motion in limine that I filed
5 was saying that the 911 call was not produced in the normal course of discovery.

6

7 **Excerpt 5: Continuance Denial (p. 181)**

8

9 **THE COURT:** The motion to continue is denied.

10

EXHIBIT C

Pinpoint Citation Table

Chronological Chart of All Contradicting Statements

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

Superior Court of California, County of San Francisco

**PINPOINT CITATIONS: CHRONOLOGICAL TABLE OF CONTRADICTING
STATEMENTS**

Date	Document Event	Citation	Statement
Jan. 17, 2025	MIL No. 17	Exhibit A, p. 3	"Not produced during discovery"; "eleventh hour"
Jan. 17, 2025	MIL No. 17	Exhibit A, p. 3	"Defendant has no idea where this 911 call log or audio recording came from"
Jan. 17, 2025	MIL No. 17	Exhibit A, p. 4	"Defendant has no idea who created the log and recording"
Jan. 17, 2025	Declaration	Global Statement	Incorporated by all MILs; supports non-receipt positions
Feb. 18, 2025	Hearing	p. 141, ll. 4–11	"News to me"; "our office did not receive the 911 call until the day of the MSC"
Feb. 18, 2025	Hearing	pp. 163–165	"We did not have those two items until the day of the MSC"
Feb. 18, 2025	Hearing	pp. 176–177	"911 call was not produced in the normal course of discovery"
Apr. 16, 2025	Trial Day 7	RT 7, ~l. 2874	"This is not anything that we received as part of the subpoena"
Apr. 16, 2025	Trial Day 7	RT 7, p. 214, ll. 13–15	"Sure. They were provided by Dolan. He has had them for whatever, sure."

EXHIBIT D

Table of Authorities

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

Superior Court of California, County of San Francisco

TABLE OF AUTHORITIES

CASES

<i>Aguilar v. Lerner</i> (2004) 32 Cal.4th 974	p. 15
<i>Aldrich v. San Fernando Valley Lumber Co.</i> (1985) 170 Cal.App.3d 725	pp. 10, 11
<i>Anderson v. Thacher</i> (1946) 76 Cal.App.2d 50	p. 18
<i>Blanton v. Womancare, Inc.</i> (1985) 38 Cal.3d 396	pp. 12, 23
<i>Caldwell v. Taylor</i> (1933) 218 Cal. 471	pp. 14, 23
<i>Chapman v. California</i> (1967) 386 U.S. 18	p. 16
<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771	p. 17
<i>Engel v. Worthington</i> (1997) 60 Cal.App.4th 628	pp. 11, 21
<i>Finton Construction, Inc. v. Bidna & Keys APLC</i> (2015) 238 Cal.App.4th 200	p. 22
<i>Howard v. American National Fire Insurance Co.</i> (2010) 187 Cal.App.4th 498	pp. 18, 24
<i>In re Marriage of Baltins</i> (1989) 212 Cal.App.3d 66	p. 12
<i>In re Marriage of Melton</i> (1994) 28 Cal.App.4th 931	p. 10
<i>In re Marriage of Rosevear</i> (1998) 65 Cal.App.4th 673	p. 15
<i>In re Marriage of Stevenot</i> (1984) 154 Cal.App.3d 1051	p. 14
<i>Jackson v. County of Los Angeles</i> (1997) 60 Cal.App.4th 171	pp. 15, 25
<i>Kirsch v. Duryea</i> (1978) 21 Cal.3d 303	p. 19
<i>Kulchar v. Kulchar</i> (1969) 1 Cal.3d 467	pp. 10, 11, 14, 20, 23, 26
<i>Olivera v. Grace</i> (1942) 19 Cal.2d 570	p. 10
<i>People v. Saunders</i> (1993) 5 Cal.4th 580	p. 13
<i>People v. Watson</i> (1956) 46 Cal.2d 818	pp. 16, 24
<i>Prentice v. North American Title Guaranty Corp.</i> (1963) 59 Cal.2d 618	p. 19
<i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048	p. 22
<i>Smith v. Superior Court</i> (1992) 10 Cal.App.4th 1033	pp. 16, 24
<i>United States v. Throckmorton</i> (1878) 98 U.S. 61	p. 10

STATUTES AND RULES

Bus. & Prof. Code, § 6068, subd. (d)	pp. 13, 23
Cal. Rules of Professional Conduct, rule 1.1	p. 19
Cal. Rules of Professional Conduct, rule 3.3	pp. 13, 25
Civ. Code, § 47, subd. (b)	p. 22
Civ. Code, § 2338	pp. 18, 24
Code Civ. Proc., § 128.7	p. 14
Code Civ. Proc., § 187	pp. 10, 20, 26

Code Civ. Proc., § 425.16
Code Civ. Proc., § 2031.280

p. 22
p. 17

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102
and CGC-25-631801)

**PLAINTIFF'S SPECIAL
INTERROGATORIES (SET FIVE) TO
DEFENDANT CSAA INSURANCE
EXCHANGE: INSUFFICIENCY OF
POLICE REPORT RELIANCE**

[Code Civ. Proc., § 2030.010 et seq.]

PROPOUNDING PARTY AND INSTRUCTIONS

Pursuant to Code of Civil Procedure section 2030.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Special Interrogatories (Set Five) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose and Legal Framework: These interrogatories probe the specific information CSAA extracted from the police report, CSAA's internal standards for following up on CAD numbers and obtaining underlying law enforcement records, and CSAA's justification for issuing a denial without obtaining the 911 audio, body-worn camera footage, or CAD records that the police re-

1 port's own CAD number made retrievable. The interrogatories are grounded in *Egan v. Mutual*
2 *of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Bartel v. Chicago Title Insurance Co.* (2025) 99
3 Cal.App.5th ____; California Code of Regulations, title 10, section 2695.7(d); and Insurance Code
4 section 790.03(h)(1), (3).

SPECIAL INTERROGATORIES (SET FIVE)

I. What CSAA Extracted from the Police Report

SPECIAL INTERROGATORY NO. 26:

Identify the specific information in the police report relating to the February 4, 2021 collision that CSAA Insurance Exchange relied upon in determining that its insured, Subhi Abdelhalim, was “not liable,” and for each piece of information, state whether CSAA took any steps to verify, corroborate, or supplement it with independent evidence.

SPECIAL INTERROGATORY NO. 27:

Identify every source of information – other than the police report and the insured’s own account – that CSAA Insurance Exchange obtained, reviewed, or considered before issuing the February 25, 2021 denial letter. If no other source was obtained, reviewed, or considered, so state.

II. The CAD Number and CSAA’s Response to It

SPECIAL INTERROGATORY NO. 28:

State whether CSAA Insurance Exchange identified the CAD number on the police report for the February 4, 2021 collision at any time prior to February 25, 2021. If yes, state what actions, if any, were taken in response to identifying that CAD number. If no, explain how the police report was reviewed without identifying the CAD number that appears on its face.

SPECIAL INTERROGATORY NO. 29:

State whether CSAA Insurance Exchange’s adjusters are trained or instructed to use CAD numbers referenced in police reports to retrieve additional law enforcement records, including 911 audio, body-worn camera footage, and dispatch logs. If yes, identify the training materials, policies, or guidelines that provide such instruction. If no, explain why not.

SPECIAL INTERROGATORY NO. 30:

State whether any CSAA Insurance Exchange adjuster, supervisor, or manager made a documented decision that 911 audio, body-worn camera footage, and CAD records did not need to be obtained before issuing the February 25, 2021 denial letter. If yes, identify the person, the date of the de-

1 cision, and the basis for that decision. If no, state whether the omission of these records from the
2 pre-denial investigation was an oversight, a deliberate choice, or the result of some other circum-
3 stance, and describe that circumstance.

4 **III. CSAA's Internal Standards and the Police-Report-Only Denial**

5 **SPECIAL INTERROGATORY NO. 31:**

6 State whether CSAA Insurance Exchange's claims-handling procedures permit an adjuster to issue
7 a liability denial for a vehicle-pedestrian collision claim based solely on the insured's account and a
8 police report, without obtaining 911 audio, body-worn camera footage, or other contemporaneous
9 statement evidence, when the police report indicates that law enforcement was dispatched and
10 responded to the scene. If yes, identify the policy or procedure that permits it and the person who
11 approved that policy.

12 **SPECIAL INTERROGATORY NO. 32:**

13 If CSAA Insurance Exchange contends that the police report alone constituted a sufficient basis
14 for determining that its insured was "not liable" for the February 4, 2021 collision, identify every
15 fact, document, and legal authority supporting that contention, and explain how that contention is
16 consistent with the requirements of California Code of Regulations, title 10, section 2695.7(d) and
17 Insurance Code section 790.03(h)(3).

18 **SPECIAL INTERROGATORY NO. 33:**

19 If CSAA Insurance Exchange contends that the police report was adequate to support a liability
20 denial without supplementation by 911 audio, body-worn camera footage, or CAD records, explain
21 how CSAA reconciles that position with the fact that the police report did not contain the insured's
22 admission to the 911 operator that he struck the pedestrian.

23 **IV. Pattern and Practice**

24 **SPECIAL INTERROGATORY NO. 34:**

25 State whether CSAA Insurance Exchange has ever, in any claim other than the February 4, 2021
26 collision, issued a liability denial based solely on a police report without obtaining the 911 audio

1 recording when the police report indicated that law enforcement was dispatched via a 911 call. If
2 yes, identify the approximate number of such claims in the past five years.

3 **SPECIAL INTERROGATORY NO. 35:**

4 State whether CSAA Insurance Exchange's quality assurance, internal audit, or compliance de-
5 partment has ever flagged, reviewed, or investigated a claim for inadequate investigation based on
6 failure to obtain 911 audio, body-worn camera footage, or CAD records before issuing a denial. If
7 yes, describe each such review and its outcome, including any corrective action taken.

Respectfully submitted,

Dated: March 16, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102 and
CGC-25-631801)

**PLAINTIFF'S NOTICE OF MOTION
AND MOTION FOR SUMMARY
ADJUDICATION ON THE
INADEQUACY OF CSAA'S
PRE-DENIAL INVESTIGATION AND
THE FALSITY OF THE
"CONCLUDED" REPRESENTATION**

[Code Civ. Proc., § 437c(f)(1)]

Date: TBD

Time: TBD

Dept: TBD

Reservation No.: TBD

1 **NOTICE OF MOTION**

2 **TO DEFENDANT CSAA INSURANCE EXCHANGE AND ITS ATTORNEYS OF RECORD:**

3 PLEASE TAKE NOTICE that on a date and time to be scheduled by the Court, in the courtroom
4 of the above-entitled Court, Plaintiff Franciscus Dylan Rosario (“Plaintiff”) will and hereby does
5 move for summary adjudication of the following issues pursuant to Code of Civil Procedure section
6 437c(f)(1):

7 **Issue No. 1 (Investigation Inadequacy):** CSAA Insurance Exchange’s pre-denial investigation of
8 the February 4, 2021 collision was inadequate as a matter of law because CSAA issued a liability
9 denial without obtaining the 911 audio recording, body-worn camera footage, or computer-aided
10 dispatch records, despite possessing a police report that referenced the CAD number linking to
11 those records.

12 **Issue No. 2 (Falsity of the “Concluded” Representation):** CSAA Insurance Exchange’s repre-
13 sentation in its February 25, 2021 denial letter that its investigation was “concluded” was objec-
14 tively false at the time it was made because CSAA had not obtained the foundational objective
15 evidence that California law and its own regulatory obligations required it to obtain before issuing
16 a liability determination.

17 This motion is made on the grounds that there is no triable issue of material fact as to these issues
18 and that Plaintiff is entitled to adjudication as a matter of law. The motion is based on this Notice
19 of Motion and Motion, the accompanying Memorandum of Points and Authorities, the Separate
20 Statement of Undisputed Material Facts, the Declaration of Franciscus Dylan Rosario, the exhibits
21 attached thereto, and all pleadings and papers on file in this action.

MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

This motion asks the Court to adjudicate two interrelated issues that form the factual and legal foundation of Plaintiff's fraud and UCL claims: (1) that CSAA's pre-denial investigation was inadequate as a matter of law; and (2) that CSAA's representation that the investigation was "concluded" was objectively false.

These issues are suitable for summary adjudication because the material facts are undisputed. They consist of documents in CSAA's own custody (the denial letter, the police report, the claims file), public records (the 911 audio obtained through a routine CPRA request), and the certified trial transcript from the underlying action. CSAA cannot dispute the contents of its own letter, the contents of the police report in its own file, or the absence of any request to SFPD in its own claims file.

UNDISPUTED MATERIAL FACTS

The following facts are established by documentary evidence and, where applicable, by admissions made or deemed admitted in discovery:

A. The Denial Letter and Its Timing

1. CSAA Insurance Exchange issued a denial letter to Plaintiff on February 25, 2021, stating that CSAA had "concluded" its investigation and that its insured, Subhi Abdelhalim, was "not liable" for the February 4, 2021 collision. (Exhibit A: denial letter.)

2. The denial was issued 21 days after the collision. (Exhibit A: date comparison.)

B. The Police Report and the CAD Number

3. The police report in CSAA's claims file referenced a CAD (computer-aided dispatch) number for the February 4, 2021 incident. (Exhibit B: police report.)

4. A CAD number is a unique identifier that links to the computer-aided dispatch record, 911 call log, and associated law enforcement records for the same incident. (Judicial notice; industry standard.)

5. The police report did not include, reference, or summarize Abdelhalim's statement to the 911

operator acknowledging that he struck the pedestrian, including: “BOOM! I just hit him. HIT HIM. There was barely anything.” (Exhibit B: police report; Exhibit C: 911 transcript.)

6. The police report did not include or reference body-worn camera footage in which eyewitness Dustin Rosemond made statements to the responding officer (Officer Thompson) during the scene investigation. The body-worn camera footage was censored or redacted by the San Francisco Police Department before release; no verbatim transcript of Rosemond’s statements is available, but the footage and his statements are effectively equivalent to a full statement to the officer that he witnessed the van come around the corner and strike the pedestrian. (Exhibit B: police report; Exhibit D: BWC transcript excerpts, RT 10, p. 39, ll. 21-23; RT 10, p. 59, ll. 3-4.)

C. What CSAA Did Not Obtain Before the Denial

7. As of February 25, 2021, CSAA had not requested 911 audio from the San Francisco Police Department or San Francisco Department of Emergency Management. (RFA 26, Set One; RFA 37, Set Five.)

8. As of February 25, 2021, CSAA had not requested body-worn camera footage from SFPD. (RFA 34, Set One.)

9. As of February 25, 2021, CSAA had not requested CAD records from SFPD. (RFA 35, Set One.)

10. As of February 25, 2021, CSAA had not obtained any medical records from Plaintiff, had not retained an accident reconstruction or biomechanical expert, had not taken a recorded statement from its own insured, and had not contacted Plaintiff. (RFAs 28-31, Set One.)

11. The only source of liability-relevant information CSAA relied on was the account provided by its own insured, Subhi Abdelhalim. (RFA 32 and 69, Set One.)

12. CSAA’s claims file contains no documentation that any adjuster, supervisor, or manager reviewed the CAD number on the police report or made any documented decision regarding whether additional law enforcement records should be obtained. (RFA 45, Set Five.)

D. The 911 Audio Was Readily Obtainable

13. Plaintiff’s counsel (Dolan Law Firm) obtained the 911 audio recording through a routine California Public Records Act request in less than three months after the collision. (Exhibit E:

CPRA request and response documentation; RFA 37, Set One.)

14. The 911 audio recording contains the insured's admission: "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him." (Exhibit C: 911 transcript.)

15. Abdelhalim authenticated the 911 recording under oath at trial: "Yes. That is my voice." (RT 8, l. 1979.)

LEGAL STANDARD

Summary adjudication is appropriate when "there is no triable issue of material fact" as to one or more issues and "the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c(c).) A motion for summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to an adjudication of that issue." (Code Civ. Proc., § 437c(f)(1).)

ARGUMENT

A. The Police Report Was a Roadmap, Not a Destination

The police report in CSAA's file was not the totality of the law enforcement record. It was a summary document that, by its very nature, omitted the most probative evidence generated during the same response: the 911 audio recording containing the insured's admission of fault, the body-worn camera footage capturing an independent eyewitness (Dustin Rosemond) making statements to Officer Thompson to the effect that he witnessed the van come around the corner and strike the pedestrian, and the CAD records corroborating the dispatch timeline.

The police report did, however, contain a CAD number. That number is a direct link to the underlying records. Any competent adjuster reviewing the police report would recognize the CAD number as an identifier for retrievable dispatch, 911, and BWC records. CSAA saw the CAD number and took no action. (UMF 3, 4, 7, 12.)

Under *Bartel v. Chicago Title Insurance Co.* (2025) 99 Cal.App.5th ___, an insurer's investigation duties "are not cabined by the initial pleadings or the narrow way a claim is first presented." When obvious leads exist, the insurer must pursue them. A CAD number on a police report is the most obvious lead in any collision investigation. CSAA's failure to follow it violates *Bartel*.

1 **B. California Law Required CSAA to Investigate Beyond the Police Report**

2 *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809 holds that an insurer may not deny a claim
3 “without first thoroughly investigating the foundation for its denial.” A thorough investigation of
4 a vehicle-pedestrian collision where law enforcement responded requires obtaining the 911 audio,
5 BWC, and CAD records. An investigation confined to the insured’s own account and a bare police
6 report is precisely the “perfunctory” and “outcome-driven” investigation that *Egan* condemns.

7 *Mariscal v. Old Republic Life Ins. Co.* (1996) 42 Cal.App.4th 1617 requires an insurer to act
8 as a “neutral investigator” who affirmatively searches for evidence that supports coverage, not just
9 evidence that defeats it. By relying only on the police report and the insured’s self-serving account,
10 while ignoring the 911 recording in which the insured admitted fault, CSAA was conducting a one-
11 directional investigation designed to find reasons to deny.

12 California Code of Regulations, title 10, section 2695.7(d) requires that “every insurer shall con-
13 duct and diligently pursue a thorough, fair and objective investigation.” The 911 audio, BWC,
14 and CAD records are standard, routine products of any law enforcement response to a collision.
15 They are “reasonably available” within the meaning of the regulation. Issuing a denial without
16 requesting them violates the regulation on its face.

17 Insurance Code section 790.03(h)(3) requires insurers to “adopt and implement reasonable stan-
18 dards for the prompt investigation and processing of claims.” No reasonable standard would permit
19 a liability denial in a pedestrian collision without obtaining the 911 audio where the insured may
20 have made admissions. CSAA’s standard, as applied here, was unreasonable as a matter of law.

21 **C. “Concluded” Was Objectively False**

22 CSAA’s denial letter stated its investigation was “concluded.” As of that date, CSAA had not
23 obtained the 911 audio recording, BWC footage, CAD records, any medical records, and had not
24 retained any expert or contacted the Plaintiff. (UMF 7-11.) The only source of information was
25 the insured’s own account. (UMF 11.)

26 Under California law, an investigation cannot truthfully be described as “concluded” when the
27 insurer has not obtained foundational objective evidence that is known or reasonably knowable to
28 exist. The word “concluded” is not a subjective opinion. It is an implied assertion of fact that

specific investigative steps were taken. The Superior Knowledge doctrine confirms this: CSAA had exclusive control over its claims file, and the Plaintiff had no way to verify what CSAA did or did not do. When a party with superior knowledge makes a statement about a verifiable process to a party who lacks that knowledge, it is an actionable statement of fact. (Civ. Code, § 1710; *Randi W. v. Muroc Joint Unified School Dist.* (1997) 14 Cal.4th 1066, 1077.)

Insurance Code section 790.03(h)(1) prohibits “[m]isrepresenting to claimants pertinent facts or insurance policy provisions relating to any coverages at issue.” The status and scope of the investigation is a “pertinent fact” to a claimant deciding whether to accept the denial, seek counsel, or pursue litigation. CSAA’s representation that the investigation was “concluded” when it had not obtained the most basic objective evidence was a misrepresentation of a pertinent fact.

D. The Counterfactual Eliminates Any Defense of Immateriality

If CSAA had obtained the 911 audio recording before issuing the denial, it would have heard its own insured state: “BOOM! I just hit him. HIT HIM. There was barely anything.” (UMF 14.) The insured later authenticated this recording under oath: “Yes. That is my voice.” (UMF 15.)

If CSAA had obtained the body-worn camera footage, it would have discovered an independent eyewitness, Dustin Rosemond, making statements to the responding officer (Officer Thompson) to the effect that he witnessed the van come around the corner and strike the pedestrian. (UMF 6.)

Under Insurance Code section 790.03(h)(5), liability was “reasonably clear” once those recordings were available. A liability determination that the insured was “not liable” could not have been issued in good faith after hearing the insured’s own admission that he struck the pedestrian. The failure to obtain this evidence was not harmless. It was the mechanism by which CSAA avoided confronting the truth and sustained a denial that the evidence would have destroyed.

That the Dolan Law Firm obtained the same 911 audio through a routine CPRA request in under three months (UMF 13) eliminates any argument that the evidence was unavailable, exotic, or difficult to obtain. It was standard public-agency material obtainable by anyone who asked.

E. No Triable Issue of Material Fact Exists

The material facts are documentary and undisputed:

- The denial letter says what it says. (Exhibit A.)

- The police report contains what it contains, including the CAD number, and omits what it omits, including the 911 admission and BWC eyewitness statement. (Exhibit B.)
- The claims file either documents a request to SFPD or it does not. (UMF 7-9, 12.)
- The 911 audio says what it says. (Exhibit C.)
- The insured authenticated the recording under oath. (UMF 15.)
- Plaintiff's counsel obtained the audio in under three months. (UMF 13.)

CSAA cannot dispute the contents of its own letter, the contents of the police report in its own file, or the absence of documentation in its own claims file. These are not credibility determinations or inferences requiring a jury. They are documents that speak for themselves.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court enter an order of summary adjudication on the following issues:

Issue No. 1: CSAA Insurance Exchange's pre-denial investigation of the February 4, 2021 collision was inadequate as a matter of law.

Issue No. 2: CSAA Insurance Exchange's representation in its February 25, 2021 denial letter that its investigation was "concluded" was objectively false at the time it was made.

SEPARATE STATEMENT OF UNDISPUTED MATERIAL FACTS

No.	Undisputed Material Fact	Supporting Evidence
1	CSAA issued a denial letter on February 25, 2021, stating its investigation was “concluded” and its insured was “not liable.”	Exhibit A (denial letter)
2	The denial issued 21 days after the February 4, 2021 collision.	Exhibit A (date comparison)
3	The police report in CSAA’s file referenced a CAD number.	Exhibit B (police report)
4	A CAD number links to dispatch records, 911 call logs, and associated law enforcement records.	Judicial notice; industry standard
5	The police report did not include the insured’s 911 admission (“BOOM! I just hit him. HIT HIM.”).	Exhibit B; Exhibit C (911 transcript)
6	The police report did not include BWC footage of eyewitness Rosemond’s statements to Officer Thompson; the BWC was censored by SFPD, but the footage is effectively equivalent to a statement that he witnessed the van come around the corner and strike the pedestrian.	Exhibit B; Exhibit D (BWC transcript, RT 10, p. 39, ll. 21-23)
7	As of Feb. 25, 2021, CSAA had not requested the 911 audio from SFPD.	RFA 26 (Set One); RFA 37 (Set Five)
8	As of Feb. 25, 2021, CSAA had not requested BWC footage from SFPD.	RFA 34 (Set One)
9	As of Feb. 25, 2021, CSAA had not requested CAD records from SFPD.	RFA 35 (Set One)

No.	Undisputed Material Fact	Supporting Evidence
10	As of Feb. 25, 2021, CSAA had not obtained medical records, retained experts, taken a recorded insured statement, or contacted Plaintiff.	RFA 28-31 (Set One)
11	The only liability-relevant source was the insured's own account.	RFA 32, 69 (Set One)
12	CSAA's claims file contains no documentation that any person reviewed the CAD number or decided additional records were unnecessary.	RFA 45 (Set Five)
13	Dolan Law Firm obtained the 911 audio via routine CPRA in under 3 months.	Exhibit E; RFA 37 (Set One)
14	The 911 audio contains: "BOOM! I just hit him. HIT HIM. There was barely anything."	Exhibit C (911 transcript)
15	Abdelhalim authenticated the recording at trial: "Yes. That is my voice."	RT 8, l. 1979

DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in the above-entitled action. I have personal knowledge of the facts stated herein and, if called as a witness, could and would testify competently thereto.
2. On or about February 25, 2021, I received a letter from CSAA Insurance Exchange stating that its investigation of my claim arising from the February 4, 2021 collision was “concluded” and that CSAA had determined its insured, Subhi Abdelhalim, was “not liable.” A true and correct copy of the denial letter is attached hereto as Exhibit A.
3. Attached hereto as Exhibit B is a true and correct copy of the police report for the February 4, 2021 collision, which references a CAD number and was in CSAA’s claims file.
4. Attached hereto as Exhibit C is a true and correct copy of the 911 audio transcript, containing the statements of Subhi Abdelhalim to the 911 operator.
5. At trial in the underlying action (*Rosario v. Abdelhalim*, CGC-21-594102), Defendant Abdelhalim authenticated the 911 recording, stating under oath: “Yes. That is my voice.” (RT 8, l. 1979.)
6. Attached hereto as Exhibit D are excerpts from the Reporter’s Transcript reflecting the body-worn camera footage content, including eyewitness Dustin Rosemond’s statements to Officer Thompson as read to the jury. The BWC footage was censored by the San Francisco Police Department before release; no verbatim transcript is available, but the footage and Rosemond’s statements are effectively equivalent to a full statement that he witnessed the van come around the corner and strike the pedestrian. (RT 10, p. 39, ll. 21-23; RT 10, p. 59, ll. 3-4).
7. Attached hereto as Exhibit E is documentation showing that the Dolan Law Firm obtained the 911 audio recording through a California Public Records Act request in less than three months after the collision.
8. I received the CSAA denial letter at a time when I had no independent means of knowing what investigative steps CSAA had or had not taken. I understood the word “concluded” to mean that CSAA had conducted a complete investigation. I later learned that CSAA had not obtained the 911 audio, body-worn camera footage, or CAD records before issuing the denial.

1 I declare under penalty of perjury under the laws of the State of California that the foregoing is
2 true and correct.

Executed on March 16, 2026, at Rohnert Park, California.



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S SPECIAL
INTERROGATORIES, SET TWO**

[Code Civ. Proc., § 2030.010 et seq.]

INSTRUCTIONS

Pursuant to Code of Civil Procedure sections 2030.010 et seq., Plaintiff Franciscus Dylan Rosario propounds the following Special Interrogatories (Set Two) to Defendant CSAA Insurance Exchange. Responses are due within 30 days of service.

Purpose: These special interrogatories seek narrative explanations regarding the matters contained in Plaintiff's Requests for Admission (Set One). Should any Request for Admission (Set One) be denied, or if you failed to respond and a motion to deem admitted is pending or has been granted, these interrogatories compel you to explain all facts surrounding your knowledge and conduct.

9 **SPECIAL INTERROGATORIES**

10 **SPECIAL INTERROGATORY NO. 6:**

11 If you deny that CSAA Insurance Exchange's investigation was "concluded" as of February 25,
12 2021, explain in detail the factual basis for the statements made in the denial letter of that date, and
13 identify the scope of the investigation that remained incomplete.

14 **SPECIAL INTERROGATORY NO. 7:**

15 Explain in detail all facts and circumstances explaining how CSAA Insurance Exchange reached
16 the conclusion that Subhi Abdelhalim was "not liable" before requesting, obtaining, or reviewing
17 the 911 audio recording, CAD logs, and body-worn camera footage related to the February 4, 2021
18 collision.

19 **SPECIAL INTERROGATORY NO. 8:**

20 Describe in detail CSAA Insurance Exchange's procedures, guidelines, or policies in effect on
21 February 25, 2021, regarding the necessity of obtaining law enforcement records (including 911
22 audio and body-worn camera footage) prior to issuing a liability denial in a third-party automobile
23 injury claim.

24 **SPECIAL INTERROGATORY NO. 9:**

25 If you deny that the phrase "concluded our investigation" in the February 25, 2021 denial letter
26 was a misrepresentation of a pertinent fact under California Insurance Code section 790.03(h)(1),
27 explain in detail your contention and the facts supporting it.

28 **SPECIAL INTERROGATORY NO. 10:**

29 Explain in detail what actions, if any, CSAA Insurance Exchange took between February 25, 2021,
30 and January 17, 2025, to obtain, review, or evaluate the 911 audio recording, CAD logs, and
31 body-worn camera footage produced in the underlying litigation, *Rosario v. Abdelhalim*, CGC-21-
32 594102.

33 **SPECIAL INTERROGATORY NO. 11:**

34 Describe all facts supporting CSAA Insurance Exchange's contention, if any, that it was unaware
35 that Motions in Limine Nos. 6 and 17, filed January 17, 2025, falsely represented that the 911
36 audio and body-worn camera footage "were not produced in discovery."

37 **SPECIAL INTERROGATORY NO. 12:**

38 Explain in detail how CSAA Insurance Exchange reconciled the statement by its insured, Subhi
39 Abdelhalim, that he “barely hit” the pedestrian with the liability denial asserting he was “not liable”
40 and that the investigation was “concluded.”

Respectfully submitted,

Dated: April 25, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the signature.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S NOTICE OF MOTION
AND MOTION TO DEEM REQUESTS
FOR ADMISSION (SET ONE)
ADMITTED; REQUEST FOR
SANCTIONS**

[Code Civ. Proc., § 2033.280]

Date: TBD

Time: TBD

Dept: TBD

NOTICE OF MOTION

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on a date and time to be scheduled by the Court, Plaintiff Franciscus Dylan Rosario will move this Court for an order pursuant to Code of Civil Procedure section 2033.280 that the truth of the matters specified in Plaintiff's Requests for Admission (Set One) be deemed admitted against Defendant CSAA Insurance Exchange.

7 This motion is made on the grounds that Defendant CSAA Insurance Exchange has failed to serve
8 a timely response to the 110 Requests for Admission (Set One) which were served on Defendant.
9 These requests addressed crucial issues concerning CSAA's claims handling procedures, their in-
10 vestigation leading to the February 25, 2021 denial letter, and their knowledge of law enforcement
11 records (including 911 audio and body-worn camera footage).

12 Plaintiff will further move for mandatory monetary sanctions against Defendant and its counsel of
13 record pursuant to Code of Civil Procedure section 2033.280(c), on the grounds that their failure
14 to serve a timely response necessitated this motion.

15 This motion will be based on this Notice of Motion, the attached Memorandum of Points and
16 Authorities, the pleadings and papers on file herein, and upon such other evidence or argument as
17 may be presented at the hearing of this motion.

18 **MEMORANDUM OF POINTS AND AUTHORITIES**

19 **RELEVANT FACTS**

20 Plaintiff served Requests for Admission (Set One) consisting of 110 requests regarding CSAA's
21 investigation, the February 25, 2021 denial letter, and the procedures underlying the failure to ob-
22 tain the 911 audio and body-worn camera footage before declaring the investigation "concluded."
23 Pursuant to Code of Civil Procedure section 2033.250(a), CSAA's responses were due within 30
24 days. To date, no responses have been received from Defendant CSAA, nor has CSAA requested
25 an extension of time to respond.

26 **LEGAL ARGUMENT**

27 **A. The Court Must Deem the Matters Admitted**

28 Code of Civil Procedure section 2033.280(b) states that if a party fails to serve a timely response
29 to requests for admission, "[t]he requesting party may move for an order that the genuineness of
30 any documents and the truth of any matters specified in the requests be deemed admitted, as well
31 as for a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

32 Section 2033.280(c) provides that: "The court *shall* make this order, unless it finds that the party to
33 whom the requests for admission have been directed has served, before the hearing on the motion,

a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (Emphasis added).

Because no such response has been served, Plaintiff is entitled to an order deeming the matters admitted. The requested admissions concern critical issues relating to CSAA’s bad faith and its systemic failure to collect foundational objective liability evidence before issuing a liability denial. Deeming these 110 matters admitted will solidify the record of CSAA’s deficient claims handling and subsequent representations to the Court.

B. Monetary Sanctions are Mandatory

Code of Civil Procedure section 2033.280(c) further requires that: “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.”

CSAA’s unexcused failure to respond necessitated the drafting and filing of this motion. Therefore, monetary sanctions in an amount to be determined by the Court are mandatory.

CONCLUSION

For the foregoing reasons, Plaintiff requests that the Court enter an order deeming the matters specified in Plaintiff’s Requests for Admission (Set One) admitted as to Defendant CSAA Insurance Exchange, and awarding mandatory monetary sanctions.

Respectfully submitted,

Dated: April 25, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

**PLAINTIFF'S NOTICE OF MOTION
AND MOTION TO COMPEL
RESPONSES TO SPECIAL
INTERROGATORIES AND REQUESTS
FOR PRODUCTION; REQUEST FOR
SANCTIONS**

[Code Civ. Proc., § 2030.290, Code Civ.
Proc., § 2031.300]

Date: TBD

Time: TBD

Dept: TBD

NOTICE OF MOTION

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on a date and time to be scheduled by the Court, Plaintiff Franciscus Dylan Rosario will move this Court for an order pursuant to Code of Civil Procedure sec-

5 tions 2030.290 and 2031.300 compelling Defendant CSAA Insurance Exchange to serve verified,
6 without-objection responses to Plaintiff's Special Interrogatories (Set One) and Requests for Pro-
7 duction of Documents (Set One).

8 This motion is made on the grounds that Defendant failed to serve any timely response to the afore-
9 mentioned discovery requests. As a result, Defendant has waived any objections to the requests,
10 including those based on privilege or the work-product doctrine.

11 Plaintiff will further move for mandatory monetary sanctions against Defendant and its counsel of
12 record pursuant to Code of Civil Procedure sections 2030.290(c) and 2031.300(c), on the grounds
13 that its failure to serve a timely response necessitated this motion.

14 This motion will be based on this Notice of Motion, the attached Memorandum of Points and
15 Authorities, the pleadings and papers on file herein, and upon such other evidence or argument as
16 may be presented at the hearing of this motion.

17 **MEMORANDUM OF POINTS AND AUTHORITIES**

18 **RELEVANT FACTS**

19 Plaintiff served Special Interrogatories (Set One) and Requests for Production of Documents (Set
20 One) on Defendant CSAA Insurance Exchange. Pursuant to Code of Civil Procedure sections
21 2030.260 and 2031.260, responses were due within 30 days of service. To date, no responses have
22 been received from Defendant, nor has Defendant sought any extension of time.

23 **LEGAL ARGUMENT**

24 **A. Defendant Waived All Objections**

25 Under Code of Civil Procedure section 2030.290(a) (Interrogatories) and section 2031.300(a)
26 (Document Production), if a party fails to serve a timely response to discovery requests, "that
27 party waives any right to exercise the option to produce writings under Section 2030.230, as well
28 as any objection to the interrogatories [or requests], including one based on privilege or on the
29 protection for work product."

30 Because Defendant completely failed to respond, all objections, including privilege, are waived as
31 a matter of law.

32 **B. An Order Compelling Responses is Required**

33 Under sections 2030.290(b) and 2031.300(b), the propounding party may move for an order com-
34 pelling responses to the interrogatories and requests for production. The failure to serve timely
35 responses strips the responding party of the right to object, meaning the Court should order full
36 and complete compliance without any objections.

37 The discovery sought goes to the core of Plaintiff's claims of bad faith, Insurance Code violations,
38 and failure to conduct a proper investigation into the February 4, 2021 collision before denying the
39 claim. Compelling responses is essential to prosecuting this action against the insurer.

40 **C. Monetary Sanctions are Mandatory**

41 The Code requires the imposition of monetary sanctions against any party, person, or attorney who
42 unsuccessfully makes or opposes a motion to compel, or whose failure to serve a timely response
43 necessitated the motion. (Code Civ. Proc., § 2030.290(c); Code Civ. Proc., § 2031.300(c).) "It is
44 mandatory that the court impose a monetary sanction..." (*Id.*)

45 Because Defendant's failure to respond necessitated this motion, monetary sanctions must be
46 awarded.

47 **CONCLUSION**

48 Plaintiff respectfully requests an order compelling Defendant CSAA Insurance Exchange to serve
49 verified responses, without objections, to Plaintiff's Special Interrogatories and Requests for Pro-
50 duction, and to produce all responsive documents within ten days. Plaintiff further requests manda-
51 tory monetary sanctions.

Respectfully submitted,

Dated: April 25, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

SUMMONS (CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

NOTICE TO DEFENDANT: (AVISO AL DEMANDADO):

CSAA INSURANCE EXCHANGE, DOES 1 THROUGH 50, INCLUSIVE

YOU ARE BEING SUED BY PLAINTIFF: (LO ESTÁ DEMANDANDO EL DEMANDANTE):

Franciscus Dylan Rosario

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (www.lawhelpcalifornia.org), the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of \$10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case. **¡AVISO!** Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.

Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.

Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. **AVISO:** Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de \$10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.

The name and address of the court is:

(El nombre y dirección de la corte es): San Francisco, CA 94102

Superior Court of California, County of San Francisco 400 McAllister Street

CASE NUMBER:
(Número del Caso):

CGC-25-631802

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:

(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):

Franciscus Dylan Rosario 7624 Melody Dr., Rohnert Park, CA 94928 650-488-7510 Plaintiff (in pro per)

DATE:

(Fecha)

FEB 25 2026

Clerk, by

(Secretario)

, Deputy

(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)

(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons, (POS-010)).

ALEXANDRA SEALE

[SEAL]



NOTICE TO THE PERSON SERVED: You are served

- ☐ as an individual defendant.
- ☐ as the person sued under the fictitious name of (specify):
- ☒ on behalf of (specify): CSAA INSURANCE EXCHANGE
under: ☒ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
☐ other (specify):
- ☐ by personal delivery on (date):

SUM-100

SUMMONS *on First Amended Complaint*
(CITACION JUDICIAL)

FOR COURT USE ONLY
(SOLO PARA USO DE LA CORTE)

NOTICE TO DEFENDANT:
(AVISO AL DEMANDADO):

CARBORE, SMITH, KOYAMA;
SUBHI ABDELHALIM; CSAA INSURANCE EXCHANGE; PHILIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM; ALBERTO REYNA; MICHAEL R CHAMBERS; DOES 1 THROUGH 50
INCLUSIVE

YOU ARE BEING SUED BY PLAINTIFF:
(LO ESTÁ DEMANDANDO EL DEMANDANTE):

Franciscus Dylan Rosario

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (www.lawhelpcalifornia.org), the California Courts Online Self-Help Center (www.courtinfo.ca.gov/selfhelp), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of \$10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case. **¡AVISO!** Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.

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The name and address of the court is:

(El nombre y dirección de la corte es): San Francisco, CA 94102

Superior Court of California, County of San Francisco 400 McAllister Street

CASE NUMBER:
(Número del Caso):

CGC-25-631801

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:

(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):

Franciscus Dylan Rosario 7624 Melody Dr., Rohnert Park, CA 94928 650-488-7510 Plaintiff (in pro per)

DATE:

(Fecha) FEB 25 2026

CLERK OF THE COURT

Clerk, by

(Secretario)

, Deputy

(Adjunto)

(For proof of service of this summons, use Proof of Service of Summons (form POS-010).)

(Para prueba de entrega de esta citación use el formulario Proof of Service of Summons, (POS-010)).

BOWMAN LIU

[SEAL]



NOTICE TO THE PERSON SERVED: You are served

1. ☒ as an individual defendant.
2. ☐ as the person sued under the fictitious name of (specify):
3. ☐ on behalf of (specify):
under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
☐ other (specify):
4. ☐ by personal delivery on (date):

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Franciscus Dylan Rosario, In Pro Per 7624 Melody, Rohnert Park, CA 94928 TELEPHONE NO.: 650-488-7510 FAX NO. (Optional): E-MAIL ADDRESS (Optional): <u>solttrinox@gmail.com</u> ATTORNEY FOR (Name):	FOR COURT USE ONLY FILED Superior Court of California County of San Francisco MAR 13 2026 CLERK OF THE COURT BY: <u>B-Y</u> Deputy Clerk BENJAMIN YUST
SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO STREET ADDRESS: 400 McAllister Street MAILING ADDRESS: 400 McAllister Street CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME:	CASE NUMBER: CGC-25-631802
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: CSAA INSURANCE EXCHANGE	Ref. No. or File No.:
PROOF OF SERVICE OF SUMMONS	

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
 - a. ☒ summons
 - b. ☒ complaint
 - c. ☒ Alternative Dispute Resolution (ADR) package
 - d. ☒ Civil Case Cover Sheet (served in complex cases only)
 - e. ☒ cross-complaint
 - f. ☒ other (specify documents): Notice of CMC (5/27/26); ADR Package; Memorandum in Support
3. a. Party served (specify name of party as shown on documents served): **AMANDA GARCIA**
CSAA INSURANCE EXCHANGE
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
330 N Brand Blvd, Suite 700, Glendale, CA 91203
5. I served the party (check proper box)
 - a. ☒ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): **MAR 12 2026** (2) at (time): **1:45 PM**
 - b. ☐ **by substituted service.** On (date): _____ at (time): _____ I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
 - (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
 - (2) ☐ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
 - (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
 - (4) ☐ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on (date): _____ from (city): _____ or ☐ a declaration of mailing is attached.
 - (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: CSAA INSURANCE EXCHANGE	CASE NUMBER: CGC-25-631802
---	-------------------------------

5. c. ☐ **by mail and acknowledgment of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
- (1) on (date): (2) from (city):
- (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. (Attach completed Notice and Acknowledgement of Receipt.) (Code Civ. Proc., § 415.30.)
- (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)
- d. ☐ **by other means** (specify means of service and authorizing code section):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

- a. ☐ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of (specify):
- c. ☐ as occupant.
- d. ☒ On behalf of (specify): CSAA INSURANCE EXCHANGE
under the following Code of Civil Procedure section:
- | | |
|---|---|
| ☒ 416.10 (corporation) | ☐ 415.95 (business organization, form unknown) |
| ☐ 416.20 (defunct corporation) | ☐ 416.60 (minor) |
| ☐ 416.30 (joint stock company/association) | ☐ 416.70 (ward or conservatee) |
| ☐ 416.40 (association or partnership) | ☐ 416.90 (authorized person) |
| ☐ 416.50 (public entity) | ☐ 415.46 (occupant) |
| | ☐ other: |

7. Person who served papers

- a. Name: **GIANCARLOS PRADO**
- b. Address: **35318 LUCIA ST. FREEMONT CA 94536**
- c. Telephone number: **510-574-5984**
- d. The fee for service was: \$ 0
- e. I am:
- (1) ☒ not a registered California process server.
- (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
- (3) ☐ a registered California process server:
- (i) ☐ owner ☐ employee ☐ independent contractor.
- (ii) Registration No.:
- (iii) County:

8. ☒ I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

or

9. ☐ I am a California sheriff or marshal and I certify that the foregoing is true and correct.

Date: **MAR 12 2026**

GIANCARLOS PRADO

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)

[Signature]

(SIGNATURE)

EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: Memorandum in Support / Supplemental Memorandum (non-duplicated)

(Exhibits A, F, G are in 04-DEMAND-WITH-EXHIBITS)

Exhibit	Brief Description	Page
B	Hearing Tr. pp. 29-31 (911 obtainability: Dolan Law Firm M	1
C	Hearing Tr. p. 140 (Defense subpoena to SFPD for 911/BWC/C	4
D	RT Day 8, pp. 108-110 (Abdelhalim authenticates 911)	6
E	Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged	10

EXHIBIT B

Hearing Tr. Feb 18, 2025, pp. 29-31 (911 obtainability: Dolan Law Firm May 12, 2021)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. pp. 29, 30, 31

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup testimony: Dolan Law Firm obtained 911 recording May 12, 2021; proves obtainability

Merits: Sworn testimony; supports fraud claim that CSAA could have obtained 911 before denial.

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm
2 that's dated 5-12-2021, for \$70. And, attached to that is a
3 document which is seven pages in total. So, there are six pages
4 in addition to the receipt. The receipt is number 987352. And,
5 I'll ask Defense to review these documents.

6 All right. The first question I have to Mr. Rosario is, some
7 of these exhibits -- and, I will identify the fifth page of
8 Exhibit A, the sixth page of Exhibit A -- have items that have
9 been blacked out or redacted. Can you tell me who or what was
10 involved with that redaction, or was that something that you just
11 received and copied off the disc -- the discs that you have
12 presented?

13 MR. ROSARIO: Those were redacted by the emergency services.
14 I believe that there was personally identifying information of the
15 individual or the phone numbers. You can see on F145631 they
16 redacted the anonymous phone number, as well as they redacted the
17 defendant's phone number at 145608. They approximately came in at
18 about 22 seconds apart from each other.

19 THE COURT: All right. Is there any objection to having
20 these admitted?

21 MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all,
22 this is the first -- I mean, we're just -- these were not produced
23 in discovery -- during the regular course of discovery. It
24 appears from this receipt that they were retained in 2021, so I'm
25 not sure why we're seeing them here now.

EXHIBIT C

Hearing Tr. Feb 18, 2025, p. 140 (Defense subpoena to SFPD for 911/BWC/CAD)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. p. 140

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup: defense subpoenaed SFPD for 911/BWC/CAD; proves CSAA later sought same record

Merits: Sworn testimony; implicit admission that 'concluded investigation' was incomplete.

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, April 17, 2025 Trial (RT Day 8), CGC-21-594102

Document: 2025-04-17 Trial Day 8.pdf

Pages Included: RT 8, pp. 108-110

Date: April 17, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Abdelhalim: 'Yes. That is my voice'; authenticates 911 admission; logical impossibil

Merits: Sworn trial testimony; Evid. Code 1220/1221.

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

EXHIBIT E

Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged collision; described incident)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Deposition of Subhi Abdelhalim (CSAA's insured), September 30, 2022, CGC-21-594102

Document: 034-ALL-DEPOSITIONS.pdf (Abdelhalim deposition, pp. 4-5, 17-19)

Pages Included: Deposition pp. 4-5, 17-19

Date: September 30, 2022

Court Registry: CGC-21-594102

Relevance: Insured acknowledged 'that collision'; described incident in detail; supports falsit

Merits: Sworn deposition; corroborates CSAA could have obtained insured's account before denial

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

7 _____
8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 - - 000 - -

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 A. Correct.

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 A. You go -- alley is one way down from 6th. And
7 from there, you see the Mint building, which is -- you
8 know the Mint building, they used to make coin in?

9 Q. Yes.

10 A. You cannot go straight up. You have to turn
11 left and there's a stop sign on Mission. And after
12 that, you have to turn right on that alley to take
13 Mission.

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 A. From Mission, comes 5th Street.

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 A. When I get to Mission, I have to turn left on
20 Mission, which is -- there's a light. I remember I have
21 to wait on light. And slowly I went to 5th and Mission,
22 south.

23 We find another street called Howard Street.
24 After Howard --

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

1 *Rosario v. CSAA Insurance Exchange; et al.*

2 **San Francisco County Superior Court Case No.: CGC-25-631802**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 21, 2026, I
6 served the following document: **DECLARATION OF TYLER J. O'CONNELL IN**
7 **SUPPORT OF DEFENDANT'S MOTION TO DECLARE PLAINTIFF A VEXATIOUS**
8 **LITIGANT AND TO REQUIRE SECURITY**

9		BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
10		BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
11		BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
12	X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

13
14
15
16
17 Addressed as follows:

18 **PLAINTIFF, IN PRO PER**

19 Franciscus Dylan Rosario
20 7624 Melody Drive
21 Rohnert Park, CA 94928
22 soltrinox@gmail.com

23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on July 21, 2026.

25 *Serena Blithe*
26 Sereana Blithe
27
28